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FEDERAL REGISTER

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Washington, Thursday, February 7, 1946

The President

EXECUTIVE ORDER 9692

AMENDING EXECUTIVE ORDER 9472 OF AUGUST 29, 1944, ESTABLISHING CERTAIN AWARDS FOR THE MERCHANT MARINE

By virtue of the authority vested in me as President and as Commander in Chief of the Army and Navy of the United States, it is hereby ordered that Executive Order 9472 of August 29, 1944 entitled "Establishing Certain Awards for the Merchant Marine," be, and it is hereby, amended as follows:

1. There shall be inserted between sections 3 and 4 of the said Executive Order 9472 a new section to read as follows:

"4. The Administrator is hereby authorized to provide and issue, under such regulations as he may prescribe, a Merchant Marine Honorable Service Button, as public evidence of honorable service in the merchant marine, to any person who receives a certificate of substantially continuous service pursuant to the provisions of the act of June 23, 1943, ch. 142, 57 Stat. 162."

2. Section 5 of the said Executive Order is amended to read as follows:

"6. The design of the plaques, medal, ribbons and service button herein authorized shall not duplicate the design of any plaques, medals, ribbons or service buttons awarded by the War Department, Navy Department, or the Coast and Geodetic Survey."

3. Sections 4 and 6 of the said Executive Order are renumbered as sections 5 and 7 respectively.

HARRY S. TRUMAN

THE WHITE HOUSE,
February 5, 1946.

[F. R. Doc. 46-2057; Filed, Feb. 5, 1946; 2:14 p. m.]

EXECUTIVE ORDER 9693

POSSESSION, CONTROL, AND OPERATION OF THE TRANSPORTATION SYSTEMS, PLANTS, AND FACILITIES OF CERTAIN TOWING AND TRANSPORTATION COMPANIES OPERATING IN NEW YORK HARBOR AND CONTIGUOUS WATERS

WHEREAS after investigation I find and proclaim that as a result of a labor disturbance there are existing interruptions of the operations of transportation systems, plants, and facilities owned or operated by companies conducting towing and transportation operations in New York Harbor and contiguous waters (including but not limited to the transportation systems, plants, and facilities of the companies named in the list attached hereto and made a part hereof); that the war effort will be unduly impeded and delayed by such interruptions; that it has become necessary to take possession and assume control of said transportation systems, plants, and facilities for purposes that are needful or desirable in connection with the present wartime emergency; and that the exercise, as hereinafter specified, of the powers vested in me is necessary to insure in the national interest the operation of the said transportation systems, plants, and facilities:

NOW, THEREFORE, by virtue of the power and authority vested in me by the Constitution and laws of the United States, including section 9 of the Selective Training and Service Act of 1940 as amended by section 3 of the War Labor Disputes Act (57 Stat. 164), the act of August 29, 1916, 39 Stat. 619, 645, and the First War Powers Act, 1941 (55 Stat. 838), as President of the United States and Commander in Chief of the Army and Navy, it is hereby ordered as follows:

1. The Director of the Office of Defense Transportation is authorized and directed, through or with the aid of any public officers, Federal agencies, or other governmental instrumentalities that he may designate, to take possession and assume control of the said transportation systems, plants, and facilities owned or operated by companies conducting towing or transportation operations in New York Harbor and contiguous waters (including but not limited to the transportation systems, plants, and facilities of the companies named in the list attached hereto and made a part hereof), including all real and personal property and other assets used or useful in connection with the operation of such transportation systems, plants, and facilities, and to operate or arrange for the operation of said transportation systems, plants, and facilities in such manner as he may deem necessary to carry out the provisions and to accomplish the purposes of this order.

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FEDERAL REGISTER

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Book 1: Titles 1–10, including Presidential documents in full text.

Book 2: Titles 11–32.

Book 3: Titles 33–50, including a general index and ancillary tables.

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[1] Appears under Interior Department in Notices section.

2. Subject to applicable provisions of existing law, including the orders of the Office of Defense Transportation issued pursuant to Executive Order 8989, as amended, the said transportation systems, plants, and facilities shall be managed and operated under the terms and conditions of employment in effect at the time possession is taken under this order.

3. Except with the prior written consent of the Director, no attachment by mesne process, garnishment, execution, or otherwise shall be levied on or against any of the real or personal property or other assets, tangible or intangible, in the possession of the Director hereunder.

4. Possession, control, and operation of any plant or facility, or of any transportation system, or any part thereof, or of any real or personal property taken under this order shall be terminated by the Director when he determines that such possession, control, and operation are no longer necessary to carry out the provisions, and to accomplish the purposes, of this order.

5. For the purposes of paragraphs 1 to 4, inclusive, of this order, there are hereby transferred to the Director the functions, powers, and duties vested in the Secretary of War by that part of section 1 of the said act of August 29, 1916, reading as follows:

"The President, in time of war, is empowered through the Secretary of War, to take possession and assume control of any system or systems of transportation, or any part thereof, and to utilize the same, to the exclusion as far as may be necessary of all other traffic thereon, for the transfer or transportation of troops, war material and equipment, or for such other purposes in connection with the emergency as may be needful or desirable."

6. The Director of the Office of Defense Transportation may request the Secretary of War and the Secretary of the Navy to furnish protection for persons employed or seeking employment in the plants, facilities, or transportation systems of which possession is taken, to furnish protection for such plants, facilities, and transportation systems, and to furnish equipment, manpower, and other facilities or services deemed necessary by the Director to carry out the provisions, and to accomplish the purposes, of this order. The Secretary of War and the Secretary of the Navy are authorized and directed, upon such requests, to take such action as they deem necessary to furnish such protection, equipment, manpower, or other facilities or services.

HARRY S. TRUMAN

THE WHITE HOUSE,
February 5, 1946.

LIST

1. Amboy Towboats, Inc., Tottenville, Staten Island, New York
2. Anderson Water & Towing Co., 59 Pearl Street, New York, New York
3. The Arundel Corp., Ft. Fulton Street, Brooklyn, New York
4. E. E. Barrett & Co., 90 West Street, New York, New York
5. Bay Ridge Water & Lighterage Co., Inc., 90 Broad Street, New York, New York
6. Berwind White Coal Co., 1 Broadway, New York, New York
7. Bouchard Transportation Co., 17 Battery Place, New York, New York
8. Bridgeport Towing Line, 2 Stratford Avenue, Bridgeport, Conn.
9. Bronx Towing Line, Inc., 152nd St., Harlem River, New York, New York
10. Ira S. Bushey & Sons, 764 Court Street, Brooklyn, New York
11. Canal Lakes Towing Corp., 17 State Street, New York, New York
12. Card Towing Line, 17 State Street, New York, New York
13. Carroll Towing Co., Inc., 17 Battery Place, New York, New York
14. Cleary Brothers, 67 Wall Street, New York, New York
15. Cornell Steamboat Co., Ft. W. 53rd Street, New York, New York
16. Croton Water Company, 15 Moore Street, New York, New York
17. Cullen Transportation Co., 80 Broad Street, New York, New York
18. Dalzell Towing Co., Inc., 21 State Street, New York, New York
19. Dauntless Towing Line, Inc., 70 Pine Street, New York, New York
20. Delaware Towing Co., #3 North Pier Street, Brooklyn, New York
21. Dillon Towing Line, 26 Court Street, Brooklyn, New York
22. Downer Towing Corp., Pier 56, North River, New York, New York
23. Henry DuBois Sons Co., 17 State Street, New York, New York
24. Essex Transportation Co., 15 Exchange Place, Jersey City, New Jersey
25. Gallagher Brothers Sand & Gravel Corp., 39 Broadway, New York, New York
26. Henry Gillam's Sons Lighterage, Inc., 15 Moore Street, New York, New York
27. Gowanus Towing Co., Ft. Smith Street, Brooklyn, New York
28. Grace Line, Pier 57, North River, New York, New York
29. Great Lakes Dredge & Dock Co., 17 Battery Place, New York, New York
30. Harbor Towboat Co., 4 Coenties Slip, New York, New York
31. James Healing Co., 76 Montgomery St., Jersey City, New Jersey
32. W. E. Hedger Transportation Co., 120 Wall Street, New York, New York
33. Henjes Marine Corp., 24 State Street, New York, New York
34. Hills Towing Trans., 67 Wall Street, New York, New York
35. Hudson Towboat Co., Ft. 6th Street, Hoboken, New Jersey
36. International Elevating Co., #2 Broadway, New York, New York
37. Jamaica Bay Towing, Beach 77 Rockaway Blvd., Long Island, New York, New York
38. Jersey City Stockyards, Ft. of 6th Street, Jersey City, New Jersey
39. John & Frederick Barge Corp., 17 Battery Place, New York, New York
40. Lee & Simmons, Inc., 44 Whitehall Street, New York, New York
41. Lee Transit Corp., 17 State Street, New York, New York
42. Manhattan Lighterage Co., 17 Battery Place, New York, New York
43. Mathiasen Shipping Co., 70 Pine Street, New York, New York
44. Matton Towing Co., Waterford, New York
45. McAllister Lighterage Line, Inc., 17 State Street, New York, New York
46. McCarren Towing Line, Inc., 15 Exchange Place, New York, New York
47. McWilliams Blue Line, 1 Broadway, New York, New York
48. Merritt, Chapman & Scott Corp., 17 Battery Place, New York, New York
49. Meseck Towing Lines, Inc., 1 Broadway, New York, New York
50. Metropolitan Sand & Gravel Corp., 551 Fifth Avenue, New York, New York
51. Moran Towing & Trans. Co., 17 Battery Place, New York, New York
52. Mutual Towing Co., 24 State Street, New York, New York
53. Nelson & Ellingsen, 1149 77th Street, Brooklyn, New York
54. New Haven Towing Line, Wyatt's Dock, New Haven, Conn.
55. Newark Terminal & Transportation Co., Ft. of Madison Street, Newark, New Jersey
56. Newtown Creek Towing Co., 51 Madison Avenue, New York, New York
57. Anthony O'Boyle, Inc., 15 Moore Street, New York, New York
58. O'Brien Bros. Towing Co., 233 Broadway, New York, New York
59. O'Donnell Trans. Co., 44 Whitehall Street, New York, New York
60. Oil Transfer Corp., 17 Battery Place, New York, New York
61. Olsen & Kron, 365 E. 35th Street, Brooklyn, New York
62. Olsen Water & Towing Co., 17 State Street, New York, New York
63. Petterson Lighterage & Towing Corp., 44 Whitehall Street, New York, New York
64. Pfeifer Oil Transportation Co., Buffalo, New York
65. Chester A. Poling, Inc., 99 Wall Street, New York, New York
66. Russell Poling, Inc., 51 Madison Avenue, New York, New York
67. Pontin Lighterage & Trans. Corp., 90 West Street, New York, New York
68. Red Star Towing & Trans. Co., 17 Battery Place, New York, New York
69. Reichert Towing Line, Inc., 80 Broad Street, New York, New York
70. Reinauer Transportation Companies, 1983 Richmond Terrace, Staten Island, New York, New York
71. Rockland Oil Transport Co., 4 Coenties Slip, New York, New York
72. Rudolph Coal Co., 8 Sackett Street, Brooklyn, New York
73. Russell Bros. Towing Co., 51 Madison Avenue, New York, New York
74. Seaboard Shipping Corp., 17 Battery Place, New York, New York
75. Sears Navigation Co., Inc., Rome, New York
76. Shamrock Towing Co., Pier 93, North River, New York, New York
77. Socony-Vacuum Oil Co., 26 Broadway, New York, New York
78. Sound & Harbor, Inc., 15 Exchange Place, Jersey City, New Jersey
79. William Spencer & Son, Corp., 40 Rector Street, New York, New York
80. Spentonbush Fuel Transport Service, Inc., 500 Fifth Avenue, New York, New York
81. Standard Towing Corp., 21 West Street, New York, New York
82. Steel Barge Corp., 21 West Street, New York, New York
83. Steers Sand & Gravel Corp., 17 Battery Place, New York, New York
84. Steers Towing Corp., 17 Battery Place, New York, New York
85. Tice Towing Line, 17 Battery Place, New York, New York
86. M. & J. Tracy, Inc., 1 Broadway, New York, New York
87. Tracy Towing Line, Inc., 1 Broadway, New York, New York
88. B. Torecamo Towing Corp., Ft. 24th Ave., Brooklyn, New York
89. Ulster Oil Transport Co., 4 Coenties Slip, New York, New York
90. Valoil Transportation Corp., 220 East 42nd Street, New York, New York
91. Westervelt Towing Line, Pier 43, North River, New York, New York

[F. R. Doc. 46-2073; Filed, Feb. 6, 1946; 9:51 a. m.]

EXECUTIVE ORDER 9694

INSPECTION OF INCOME, EXCESS-PROFITS, AND DECLARED VALUE EXCESS-PROFITS TAX RETURNS BY THE WAR CONTRACTS PRICE ADJUSTMENT BOARD

By virtue of the authority vested in me by sections 55 (a), 508, 603, and 729 (a) of the Internal Revenue Code (53 Stat., 1, 29, 111; 54 Stat., 974, 989), it is hereby ordered that income, excess-profits, and declared value excess-profits tax returns made under the Internal Revenue Code for the year 1939 and subsequent years, shall be open to inspection by the War Contracts Price Adjustment Board, subject to the conditions stated in the Treasury decision relating to the inspection of such returns by such Board approved by me this date.[1]

This Order shall be published in the FEDERAL REGISTER.

HARRY S. TRUMAN

THE WHITE HOUSE,
February 6, 1946.

[F. R. Doc. 46-2112; Filed, Feb. 6, 1946; 11:06 a. m.]

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[1] See Title 26, Chapter I, Part 458, *infra*.

Regulations

TITLE 5—ADMINISTRATIVE PERSONNEL

Chapter I—Civil Service Commission

PART 18—WAR SERVICE REGULATIONS

CROSS REFERENCE: For supersedure of Part 18 see Part 27 of this chapter, *infra*.

PART 27—TEMPORARY CIVIL SERVICE REGULATIONS

Pursuant to the authority conferred by Executive Order No. 9691 of February 4, 1946 (11 F.R. 1381), "Directing the Civil Service Commission to resume operations under the civil service rules, and authorizing the adoption of special regulations during the transitional period", and the Veterans' Preference Act of 1944, the Commission hereby prescribes the following regulations to provide for the transitional period until such time as the civil service rules are revised.

These regulations shall be effective thirty days from the date of the order and shall supersede the war service regulations (Part 18 of this chapter). On and after that date all appointments, transfers, reinstatements, reappointments, changes in status, and other actions involving the classified (competitive) civil service shall be made in accordance with these regulations. Any agency may, in its discretion, begin to operate under these regulations at any time prior to that date.

Sec.

27.1 Politics and religion.
27.2 Classification of the service.
27.3 Examinations.
27.4 Boards of Examiners.
27.5 Qualifications of applicants.
27.6 Ratings and eligibility.
27.7 Certification.
27.8 Temporary appointments.
27.9 Reinstatement.
27.10 Transfer.
27.11 Promotion.
27.12 Removals and reductions.
27.13 Report of changes.
27.14 Testimony.
27.15 Withholding salary.
27.16 Transition promotions, transfers, reappointments.
27.17 Restoration after return from military service.

AUTHORITY: §§ 27.1 to 27.17, inclusive, issued under E.O. 9691, 11 F.R. 1381.

§ 27.1 *Politics and religion*—(a) *No interference with elections.* No person in the executive civil service shall use his official authority or influence for the purpose of interfering with an election or affecting the results thereof. Persons who by this part are in the competitive classified service, while retaining the right to vote as they please and to express their opinions on all political subjects, shall take no active part in political management or in political campaigns.

(b) *No disclosure or discriminations.* No question in any form of application or in any examination shall be so framed as to elicit information concerning the political or religious opinions or affiliations of any applicant, nor shall any inquiry be made concerning such opinions or affiliations, and all disclosures thereof shall be discountenanced, except as to such membership in political parties or organizations as constitutes by law a disqualification for Government employment. No discrimination shall be exercised, threatened, or promised by any person in the executive civil service against or in favor of any applicant, eligible, or employee in the classified service because of race, or his political or religious opinions or affiliations, except as may be authorized or required by law.

(c) *Prohibited recommendations.* No recommendation of an applicant, eligible, or employee in the classified service involving disclosure of his political or religious opinions or affiliations shall be considered or filed by the Commission, or by an officer concerned in making appointments or promotions.

(d) *Attempting to secure withdrawals.* No applicant for competitive examination, or eligible on any civil service register, or officer or employee in the executive civil service, shall directly or indirectly persuade, induce, or coerce, or attempt to persuade, induct, or coerce any prospective applicant, applicant, or eligible to withhold filing application or to withdraw from competition or eligibility for positions in the competitive classified civil service, for the purpose of either improving or injuring the prospects or chances of any such applicant or eligible. The penalty for violation of this paragraph by applicants or eligibles shall be cancellation of application or eligibility, as the case may be, and such other penalty as the Commission may deem appropriate. The penalty for violation of this paragraph on the part of officers or employees in the executive civil service shall be such disciplinary action as the Commission shall direct.

§ 27.2 *Classification of the service*—(a) *Extent of the classified service.* The classified service shall include all persons who have heretofore or may hereafter be given a competitive status in the classified civil service, with or without competitive examination, by legislative enactment, or under the civil service rules or regulations, or by Executive orders covering groups of employees with their positions into the competitive classified service, or authorizing the appointment of individuals to positions within such service. It shall include all positions now existing or hereafter created by legislative or Executive action, of whatever function or designation, whether compensated by a fixed salary or otherwise, unless excepted from classification by specific affirmative legislative or Executive action. No right of classification shall accrue to persons whose appointment or assignment to classified duties is in violation of the civil service rules.

(b) *Examination required.* No person shall be appointed, employed, promoted, or transferred in the classified service, or perform the duties of any position therein, until he passes the examination prescribed by the Commission in his case, unless especially exempted.

(c) *Exemptions from classification.* (1) Parts 50 and 51 are continued as a part of this chapter, and positions named in such parts are excepted from the classified service.

(2) Whenever the Commission and the department or agency concerned agree that any position or class of positions in the professional, scientific, or technical fields should be excepted from the classified service, appointment to such positions may be made under the authority of section 7 of Executive Order 9691 of February 4, 1946, pending a general revision of Part 50. Unless specifically limited to one year or less, appointments made under this subparagraph shall not be regarded as temporary appointments. Persons serving under war service appointments in positions which the Commission has agreed to recommend for inclusion in Part 50 may be retained in such positions until such part is specifically amended to include such positions.

(3) Appointments to the excepted positions named in Part 50 may be made without examination or upon noncompetitive examination.

(4) Appointments to the excepted positions named in Part 51 may be made upon such noncompetitive examination as the Commission shall prescribe.

(5) The proper appointing officer may fill any position named in Part 50 or Part 51, or any other excepted position, as classified positions are filled, in which case the person so appointed shall be eligible for transfer, reinstatement, or promotion to positions in the classified service, subject to the provisions of this part. The incumbent of any excepted position so filled will not be entitled to protection against removal afforded by this part.

(d) *Assignment of excepted employees.* A person appointed without competitive examination under paragraph (c) of this section or by authority of an act of Congress shall not be assigned to the work of a competitive classified position without the approval of the Commission or specific provision of law.

(e) *Apportionment.* The appointments of persons covered into the classified service under this section, by Executive order, or otherwise, shall be exempted from the quota restrictions applied in certification: *Provided*, That such appointments shall be included in the apportionment figures in those cases which would be included if the position were being filled in accordance with § 27.7 of this chapter.

(f) *Excepted employees; when classified.* Except as provided in paragraph (g) of this section, a person holding a position when it is placed in the classified (competitive) service or otherwise is made subject to competitive examination shall, upon recommendation to the Commission by the head of the department or agency in which he is employed, have all the rights which he would have acquired if appointed thereto by competitive examination: *Provided*,

(1) That he has rendered six months of satisfactory active service in such position or in the civilian Executive branch of the Federal Government immediately prior to the effective date of the change in status of the position, and continues to serve in such position for sixty days thereafter;

(2) That he shall pass such appropriate noncompetitive tests of fitness as the Commission may prescribe;

(3) That he is not disqualified by any provision of § 27.5 (c) of this chapter or of any other civil service regulation or by any provision of the Civil Service Act or any other statute or Executive order;

(4) That this paragraph shall not apply to any person who received a war service appointment under § 18.5 (f) of this chapter (5 CFR 1945 Supp.)[1] until six months after the end of the war, as officially determined. At the expiration of six months after the war, such person may be recommended for a classified civil service status provided (i) his position has become a permanent position in the classified civil service; (ii) he has remained continuously employed in the same establishment in which appointed under § 18.5 (f) (1) or in the same agency in which appointed under § 18.5 (f) (2); and (iii) he entered on duty in such establishment or agency prior to March 16, 1942, the effective date of Part 18 of this chapter.

(5) That in conferring a classified competitive status upon any employee under this or any other rule or any statute or Executive order, the Commission:

(i) May, in its discretion, exempt from the physical requirements established for any position any employee who has rendered long and faithful service in a civil capacity for the Government;

(ii) May consider a person whose name is carried on the compensation rolls of the Employees' Compensation Commission as having rendered satisfactory active service in the position in which he last served for the period which his name is carried on such rolls:

Provided further, That any person who in order to perform active service with the military or naval forces of the United States has left, or leaves, a position (other than a temporary position) which is covered into the classified civil service under this paragraph, may acquire a classified civil service status upon a finding by the Commission on the basis of the personal record of the incumbent that such incumbent has served with merit for not less than six months immediately prior to the date such office or position was covered into the classified civil service; *Provided,* That he meets the requirements of subparagraphs (2) and (3) of this paragraph.

Any person who fails to meet the above-stated requirements of this paragraph may, in the discretion of the head of the agency concerned, be retained in the position in which he is serving without acquiring a classified (competitive) status, but such employee may not be promoted, transferred, or assigned to any other classified (competitive) position.

(g) *Classification in post offices.* The Postmaster General shall promptly notify the Commission of each order for the advancement of any post office from the fourth class to the third class, or for the consolidation of any post office with one in which the employees are classified as competitive. On the effective date of any such order, paragraph (f) of this section shall apply to the positions, officers, and employees of the offices affected, and all other provisions of this part shall become applicable to all officers and employees who so qualify and to all such positions thereafter filled in the same manner as they apply to those in offices now classified. Paragraph (f) of this section shall also apply to the position of postmaster of any office which may have been heretofore or may be hereafter relegated to the fourth class.

(h) *Appointment without competitive examination in rate cases.* Whenever the Commission shall find that the duties or compensation of a position are such, or that qualified persons are so rare, that in its judgment such position cannot, in the interest of good civil-service administration, be filled at that time through open competitive examination, it may authorize such position to be filled without competitive examination; and in any case in which such authority is given, evidence satisfactory to the Commission of the qualifications of the person to be appointed without competitive examination shall be required. During the transition period from war to peace the Commission shall also consider under this paragraph cases of persons who have been serving during the war period in highly specialized scientific or professional positions and have in those positions, secured experienced which makes their retention in the service essential to the programs in which they have been engaged. A detailed statement of the reasons for its action in any case arising hereunder shall be made in the records of the Commission and shall be published in its annual report. Any person heretofore or hereafter appointed under this paragraph shall acquire a competitive classified status under such regulations as the Commission may prescribe. Any subsequent vacancy in such position shall not be filled without competitive examination except upon express authority of the Commission in accordance with this paragraph.

(i) *Service beyond seas.* A citizen of the United States who has rendered faithful service for not less than seven years beyond the seas in a civil capacity not in contravention of the civil service laws or rules may be given a classified status under such regulations as the Commission may prescribe, upon certification by the head of the department or office in which he served that the case is one of exceptional merit: *Provided,* That shortly before such employment he resided for a substantial period of time in the United States.

§ 27.3 *Examinations* — (a) *Competitive examinations.* The Commission shall prepare, recruit for, hold, and rate open competitive examinations for probational appointment to positions in the classified service. These examinations shall be of a practicable and suitable character, and shall be held at such times and places as may most nearly meet the needs of the service, with due consideration for the convenience of applicants: *Provided,* That in examinations for the positions of guards, elevator operators, messengers, and custodians competition shall be restricted to persons entitled to five- or ten-point preference under this part as long as such persons are available and, during the second World War and for a period of five years following the termination of such war as proclaimed by the President or by a concurrent resolution of the Congress, for such other positions as may from time to time be determined by the President: *Provided further,* That where in the opinion of the Commission unlimited competition would result in far more eligibles than are required for the needs of the service, receipt of applications may be limited to that number which will meet the needs of the service for a reasonable length of time; in any such case of examinations for the departmental service or of any other examinations where the area of competition extends beyond the boundaries of one state, the number of applications to be accepted from each state or territory or portion thereof that is included in the competitive area shall be in the same proportion to the total number of applications to be accepted as the population of the state or territory or portion thereof in the area of competition is to the entire area of competition.

NOTE: For other examinations restricted to persons entitled to preference under the Veterans' Preference Act of 1944, see E.O. 9589 (10 F.R. 9063) and E.O. 9662 (10 F.R. 14653).

(b) *Examinations.* Examinations shall whenever practicable be assembled and include written, performance and practical tests; the rating of experience when part of the test shall, so far as practicable, follow personal interview and be qualitative as well as quantitative. Whenever the announcement of any examination in which education, training or experience is prerequisite shall so state, and the applicants are given opportunity to file detailed sworn statements of their qualifications, a preliminary competitive rating may be given on the basis of the duties, requirements, and conditions of work in the position to be filled before any applicant shall be required to travel for further tests. Applicants rated highest on such preliminary rating, to a number not incommensurate with the number of vacancies expected during the life of the list, shall be afforded opportunity to assemble or otherwise compete in such further competitive tests as the Commission may require. The character, record, and physical fitness of applicants shall be tested or investigated and approved whenever practicable prior to certification.

(c) *Examinations for scientific, technical, or professional positions.* All examinations for scientific, technical, or professional positions or positions which under existing executive practice are filled only by persons having professional or technical training shall be formulated by the Commission in collaboration with the head of the affected department, independent establishment, or corporation, or his designated representative, and shall make due allowance

[1] 10 F.R. 13353.

for the particular training, experience, and skill regarded as requisite under existing administrative practice. No minimum educational requirement will be prescribed in any civil service examination except for such scientific, technical or professional positions, the duties of which the Commission decides cannot be performed by a person who does not have such education. The Commission shall make a part of its public records its reasons for such decisions.

NOTE: Part 25 of this chapter lists the positions for which formal education requirements have been prescribed and justifications filed.

(d) *Reopened examinations.* An applicant granted ten-point preference under this part may file application at any time for any position he may specify for which there is an existing register or a register about to be established or to which any appointment has been made within the preceding three years. This paragraph will be applicable only to registers and appointments resulting from examinations that are held for probational appointment. Reopened examinations will be scheduled as the needs of the service require but in any case at least once each quarter.

§ 27.4 *Boards of Examiners*—(a) *Appointment and duties.* (1) (i) In order to assure the maximum utilization of the field service resources of the departments and agencies in the recruitment and placement of persons for the Federal service, the Commission, after consulting the department or agency concerned, may establish Boards of Examiners in the field service, composed of not less than three officers or employees of the particular department or agency.

(ii) In addition, the Commission, for positions which occur in more than one department or agency, may, after consulting the departments or agencies concerned, establish similar Boards of Examiners in the field service, composed of officers or employees of the departments or agencies concerned.

(2) (i) In order to assure the maximum utilization of the resources of the departments and agencies in the departmental service in Washington, D. C., in the recruitment and placement of persons for the Federal service, the Commission, after consulting the department or agency concerned, may, for professional, scientific, or technical examinations for positions which are peculiar to a department or agency, establish Committees of Expert Examiners in the departmental service in Washington, D. C., composed of not less than three officers or employees of the particular department or agency, who are of outstanding competence in the various professional, scientific, or technical fields for which examinations are held.

(ii) In addition, the Commission, for professional, scientific, or technical positions which occur in more than one department or agency, may, after consulting the departments or agencies concerned, establish similar Committees of Expert Examiners in the departmental service composed of similarly qualified officers or employees of the departments or agencies concerned.

(3) The work of the boards or committees referred to in this section in connection with the execution of the Civil Service Act, rules and regulations, shall be under the direction and supervision of the Commission.

(4) The duties performed by the members of such boards or committees shall be considered part of the duties of the office or organization in which they are serving and time shall be allowed therefor during regular working hours.

(5) Where qualified special examiners are not available in the Federal service, the Commission may designate individuals outside the service specially qualified by experience and training, and of outstanding reputation in their own field, to serve on a board of examiners for a particular examination, and may compensate them for such service on a per-diem basis.

(b) *Cooperation with other boards, commissions, and agencies.* The Commission shall render all practicable assistance to the Philippine and Puerto Rico civil service boards, and such other Federal, State, or local agencies as shall request its cooperation and offer like cooperation or adequately provide its share of the expense, and shall conduct or join in conducting examinations, upon their request, under such regulations as may be jointly agreed upon. The Commission may, in its discretion, certify eligibles from appropriate registers maintained by the Philippine and Puerto Rico civil service boards and the civil service boards of State and local agencies: *Provided,* That in the opinion of the Commission the examinations from which such registers were established meet the requirements of this part and the standards established for examinations for the Federal classified civil service.

(c) *Executive officers to facilitate examinations.* Persons in the executive civil service shall facilitate the holding of examinations and other work of the Commission; and executive officers in charge of public buildings shall permit and arrange for the use of suitable rooms under their charge, and for heating, lighting, and furnishing them.

§ 27.5 *Qualifications of applicants*—(a) *Citizenship.* No person shall be admitted to examination unless he is a citizen of or owes allegiance to the United States.

(b) *Form of application.* Application for examination must be made in such form and manner and be accompanied by such certificates as the Commission may prescribe.

(c) *Disqualifications.* The Commission may, in its discretion, refuse to examine an applicant for appointment or reinstatement or to certify an eligible for any of the following reasons: (1) Dismissal from the service for delinquency or misconduct, (2) physical or mental unfitness for the position for which he applies: *Provided,* That, in the case of any person granted five- or ten-point preference under this part who is, in the opinion of the Commission, physically able to discharge efficiently the duties of the position for which examined or to which appointment is proposed, the Commission shall waive the physical requirements, after giving due consideration to the recommendation of any accredited physician, and the age, height, and weight requirements; (3) criminal, infamous, dishonest, immoral, or notoriously disgraceful conduct; (4) intentional false statements as to any material fact, or deception or fraud in securing examination or appointments; (5) refusal to furnish testimony as required by Part 14 of this chapter; (6) habitual use of intoxicating beverages to excess; (7) a reasonable doubt as to his loyalty to the Government of the United States; (8) any legal disqualification for appointment.

Any of the reasons stated in the foregoing subparagraphs from (2) through (8) inclusive, shall also be sufficient cause for removal from the service.

(d) *Age limits.* The Commission may establish minimum and maximum age requirements in examinations. Any requirement as to age except a requirement determined by the Commission to be essential for the performance of the duties of the position shall be waived in the case of persons entitled to five- or ten-point preference under this part.

§ 27.6 *Rating and eligibility*—(a) *Rating.* Examination papers shall be rated on a scale of 100 and all competitors rated 70 or more shall be eligible for appointment. The subjects in examinations shall be given such relative weights as the Commission may prescribe. When an applicant granted five- or ten-point preference under this part is rated in examinations where experience is an element of qualifications, time spent in the military or naval service of the United States shall be considered as an extension of time spent in the position in which the applicant was employed immediately prior to his entrance into the military or naval service where such position was similar to that for which he is filing application. In all examinations to determine the qualifications of an applicant credit shall be given for all valuable experience, including experience gained in religious, civic, welfare, service, and organizational activities, regardless of whether any compensation was received therefor.

(b) *Preference.* In examinations for appointment or reappointment five points shall be added to the earned ratings of honorably discharged ex-service men and women who have served in any branch of the armed forces of the United States during any war or in any campaign or expedition (for which a campaign badge has been authorized). The following shall have ten points added to their ratings:

(1) Honorably discharged ex-service men and women who have served in any branch of the armed forces of the United States and who have established the present existence of service-connected disability or receipt of compensation, disability retirement benefits, or pension by reason of public laws administered by the Veterans' Administration, the War Department or the Navy Department.

(2) The wives of honorably discharged service-connected disabled ex-service men who have themselves been unable to qualify for any civil service appointment.

(3) The unmarried widows of honorably discharged deceased ex-service men who had served in any branch of the armed forces of the United States during any war, or in any campaign or expedition (for which a campaign badge has been authorized).

(4) As used in this section "honorably discharged" shall mean any separation from active duty in any branch of the armed forces under honorable conditions. A transfer to inactive status, a transfer to retired status, the acceptance of a resignation, or the issuance of a discharge will be considered as covered by the above definition if such separation was under honorable conditions.

(c) *Lists of eligibles.* All persons rated at 70 or more in open competitive and reopened examinations shall be eligible for appointment and their names shall be entered on appropriate registers in accordance with their ratings; except that the names of eligibles granted five- or ten-point preference under this part shall be entered on registers in accordance with their respective augmented ratings, and the name of a preference eligible shall be entered ahead of all others having the same rating: *Provided,* That except on registers for positions in the professional and scientific services for which the basic entrance salary is over $3000 per annum, the names of eligibles granted ten-point preference under this part shall be placed at the top of the appropriate register: *And provided further,* That when the Commission has established an eligible register for probational appointment for a particular position as the result of an open competitive examination, the following classes of persons upon their application may be entered on the register in accordance with their qualifications as rated by the same standards applied to all other eligibles on that register: (1) Persons having a classified civil service status who fail of restoration after military service or of reemployment after war transfer or after their appeal from separation under section 14 of the Veterans' Preference Act has been acted upon favorable to them, and (2) persons having a classified civil service status who since August 14, 1945, have been, or are about to be, because of a reduction in force, separated or furloughed for 80 days or more from a similar or higher grade position in the same line of work. However, both before and after the establishment of probational registers the names of persons in subparagraph (1) who are eligible for reinstatement or reappointment will be submitted to the departments and agencies by the Commission on an individual basis and positive efforts will be made to place them.

(d) *Termination of eligibility.* Eligibility on any list shall be terminated under the following conditions:

(1) By acceptance of appointment of other than temporary duration from such list in accordance with § 27.7 of this chapter.

(2) By action of the Commission terminating the eligibility of all eligibles on such list: *Provided,* That this provision shall not operate to terminate the eligibility in less than one year for the following classes of persons, unless a new list is established on the basis of more exacting requirements which have been determined to be more appropriate for the position concerned: (i) Preference eligibles entered on such list as a result of reopened examinations, or (ii) preference eligibles restored to the list after separation because of reduction in force or resignation.

§ 27.7 *Certification*—(a) *Methods of filling vacancies.* Vacancies in any position or employment not excepted from examination shall be filled as follows:

(1) Prior to establishment of register for probational appointment, vacancies in any position for which an appropriate register of eligibles for probational appointment has not been established may be filled in accordance with §§ 27.8 or 27.16.

(2) After establishment of register for probational appointment, vacancies in any position for which an appropriate register of eligibles for probational appointment has been established shall be filled by noncompetitive action in accordance with this part exclusive of § 27.16 or by selection in accordance with this section from open competitive eligible registers: *Provided,* That whenever public announcement is made of an open competitive examination for filling a specific vacancy, such vacancy may not thereafter be filled noncompetitively by transfer, promotion, reassignment, or reinstatement, except that applications may be accepted by the Commission from persons eligible for promotion, transfer, reassignment or reinstatement who are recommended by the appointing officer at any time before appointment is made to the vacancy involved. The qualifications of such persons will be rated in accordance with the terms of the announcement and such persons may be reinstated, promoted, transferred, or reassigned to the position only if they are within reach for certification.

(b) *Method of certification.* Whenever a nominating or appointing officer requests the certification of eligibles, the Commission shall certify, from the top of the appropriate register a number of names sufficient to permit the nominating or appointing officer to consider at least three names in connection with such vacancy. When so provided by the Commission, selection shall be made from the register by the nominating or appointing officer without preliminary certification of the Commission. Where the Commission finds that there is no register in existence appropriate as a whole to fill a particular vacancy, the Commission at its discretion may certify from the most nearly appropriate existing register, in the order of their ranking, the names of any individuals thereon found by it to be adequately qualified to fulfill the particular requirements of the vacant position. Certification of an eligible for temporary appointment shall not affect his eligibility for certification for probational appointment. Certification shall be made without regard to sex unless the sex desired is specified in the original requisition.

(c) *Selection.* (1) The nominating or appointing officer shall, with sole reference to merit and fitness, make selections for appointment to each vacancy from not more than the highest three names available for appointment on the certificate: *Provided,* That the appointing officer need not consider any eligible who has been within his reach in connection with three separate appointments or against whom objections shall be made and sustained for any of the reasons stated in § 27.5 (c). The second and any additional vacancies shall be filled in like manner.

(2) An appointing officer who passes over an eligible granted five- or ten-point preference under this part and tentatively selects a nonpreference eligible, shall file with the Commission his reasons in writing for so doing and the Commission shall determine the sufficiency or insufficiency of such submitted reasons and notify the appointing officer. If the reasons are found sufficient, the nonpreference eligible tentatively selected may be appointed. If the reasons are found insufficient and the appointing officer still intends to appoint the nonpreference eligible, he must in conformity with the Veterans' Preference Act of 1944 (58 Stat. 387) submit either more detailed information concerning his reasons for passing over the preference eligibles or a statement that he has no more information in support of his selection. The nonpreference eligible tentatively selected may not be legally appointed except as provided in the following paragraph until the appointing officer has received notification from the Commission concerning his second statement or until fifteen calendar days have elapsed from the date the second statement was sent to the Commission, whichever is earlier.

(3) When a certificate has been issued for filling several vacancies and the appointing officer submits reasons for passing over a preference eligible on such certificate and selecting a nonpreference eligible, he need not await receipt of the Commission's findings as to the sufficiency of such reasons before making appointment to one or more of the remaining positions: *Provided,* That he holds open one of the vacancies for further consideration of the preference eligible in case the reasons for passing him over are found insufficient by the Commission. Where a seniority system of promotion is established by law, such appointment shall be made on a temporary basis until the vacancy held open is filled by probational appointment.

(4) A copy of the appointing officer's reasons and the Commission's findings shall, upon request, be sent to the eligible or his designated representative.

(5) If upon certification, reasons deemed sufficient by the Commission for passing over a preference eligible's name shall three times have been given by appointing officers, certification of his name for appointment will thereafter be discontinued, prior notice of which shall be sent to the eligible. Any eligible who has been within reach in connection with three separate appointments in his turn, and any preference eligible who has been passed over three times for reasons

deemed sufficient by the Commission, may be subsequently selected, subject to the approval of the Commission, from the certificate on which his name last appeared if the condition of the register has not so changed as to place him in other respects beyond reach of certification.

(d) *Probationary appointment.* (1) A person selected for appointment shall be duly notified by the appointing officer and upon accepting and reporting for duty shall receive from such officer a notice of probational appointment. The first year of service under this appointment shall be a probationary period, but the Commission may by regulation fix a six months probationary period for any specified positions. If and when, after a full and fair trial, the conduct, capacity or efficiency of the probationer is not satisfactory to the appointing officer, the probationer shall prior to the completion of his probationary period be so notified in writing, with a statement of reasons, and this notice shall terminate his service.

(2) A probationer voluntarily or involuntarily separated from the service without delinquency or misconduct may be restored to the register of eligibles for the remainder of any period of eligibility thereon whenever in the opinion of the Commission he is suitable and eligible for further Federal employment.

(e) *Apportionment.* Certification for appointment in headquarters offices of departments and independent agencies shall be so made as to maintain as nearly as the conditions of good administration warrant, the apportionment of appointments among the several States, Territories, and the District of Columbia upon the basis of population: *Provided,* That certification in the following cases shall be made without regard to the apportionment, and appointments in such cases shall be excluded from the apportionment figures:

(1) Certification of eligibles entitled to military preference.

(2) Certification for appointment to the following positions in all departments and agencies: Positions in headquarters offices which are located outside the metropolitan area of Washington, D. C., positions in the professional and scientific services for which the entrance salary is over $3000 per annum; apprentices in recognized trades and skilled occupations; artisans and helpers in all trades and occupations (including all phases of the graphic and map reproduction arts) requiring trade knowledge and manual skill and effort in performance, rather than clerical, technical or professional knowledge and performance; operating enginemen, firemen, oilers, general helpers, laborers, foremen of laborers, gardeners, groundkeepers, animal keepers, chauffeurs, truck drivers, and telephone operators. The Commission may, by regulation, add similar classes of positions to this subparagraph where necessary in the interests of good administration.

(3) Certification for appointment to all positions in the following establishments: The Government Printing Office, field offices of departments and agencies in the District of Columbia, field service of the military staff departments, Army Headquarters.

(f) *Regional and area certification.* The Commission may arrange the territory of the United States into appropriate regions and areas for the purpose of certification to position in parts of the service not subject to apportionment, and certification to any such position may be confined to residents of the region or area in which such position is located.

§ 27.8 *Temporary appointment*—(a) *Pending regular filling of vacancy.* Temporary appointment without examination and certification by the Commission shall not be made to a competitive position in any case, except when the public interest so requires, and then only upon the prior authorization of the Commission; and any appointment so authorized shall continue only for such period as may be necessary to make appointment through certification of eligibles, and in no case, without prior approval of the Commission, shall extend beyond 30 days from the date of the receipt by the appointing officer of the Commission's certificate. When a vacancy is to be filled by promotion, transfer, or reinstatement under the civil service rules and a temporary appointment is authorized by the Commission under the provisions of this paragraph pending the promotion, transfer, or reinstatement, such temporary appointment shall in no case continue beyond the period of 30 days without prior approval of the Commission.

(b) *Pending establishment of register.* Whenever there are no eligibles upon a register for any grade in which a vacancy exists and the public interest requires that the vacancy be filled before eligibles can be provided by the Commission, the Commission may authorize temporary appointment without examination by the Commission provided that the agency determine that standards prescribed by the Commission are met. Such appointment shall continue only for such period as may be necessary to make appointment through certification, and in no case, without prior approval of the Commission, shall extend beyond thirty days from the date of the receipt by the appointing officer of the Commission's certification of eligibles.

Persons serving under appointments under this paragraph shall not be regarded as occupying permanent positions for the purpose of section 7 of the Classification Act of March 4, 1923, as amended, and shall not by virtue of such appointments be subject to the Civil Service Retirement Act. Persons appointed under this paragraph may not be transferred between agencies.

(c) *Pending full certification.* Whenever there are less than three eligibles on any appropriate register for a position in which a vacancy exists, the Commission shall, upon requisition from the proper appointing officer, certify those eligibles who are on the register, who shall be considered by the appointing officer with a view to probational appointment. If the appointing officer shall elect not to make probational appointment from such certification and temporary appointment is required, the eligible or eligibles shall be considered by the appointing officer with a view to temporary appointment. Such temporary appointment may continue until three eligibles are provided. If selection is not made from the certification for either probational or temporary appointment under this paragraph, the temporary appointment, if required, may be made under the provisions of this section.

(d) *Job employment.* When there is work of a temporary character, at the completion of which the services of an additional employee will not be required, a temporary appointment may be made with the prior consent of the Commission for a period not to exceed six months. Such temporary appointment shall be made through certification from the Commission's eligible registers unless the Commission shall decide, in a particular case, that there are no available eligibles. Such temporary appontment may be extended only if there are no eligibles available for the additional period or after an adequate showing that such extension is necessary to complete the job of work for which the person was originally employed. The Commission may restrict certification for temporary appointment to such eligibles as by reason of residence or other conditions are immediately available.

(e) *Temporary appointment made probational.* A temporary appointment may be made permanent when the temporary appointee is within reach for permanent appointment at the time of his temporary appointment or in case he is so within reach during his temporary service, and the probational appointment may date from the time when he came within reach for probational appointment. Such probational appointment may not be effected after expiration of the register, except that any person who meets the following conditions may be accorded a classified status after expiration of the register: (1) He shall have been appointed to a classified (competitive) position for other than temporary-job employment lasting for one year or less, (2) his appointment shall have been prior to March 16, 1942, with respect to positions generally or prior to October 23, 1943, with respect to positions in the field service of the Post Office Department, and (3) the records of the Commission clearly show that he stood higher higher on an appropriate civil-service list of eligibles than another eligible who received an original probational appointment from such list.

(f) *Temporary appointments authorized by agency.* Whenever the Commission shall delegate authority to an agency to make temporary appointments under this section, the following conditions must be observed:

(1) Preference shall be given in appointment first to fully qualified persons entitled to 10-point preference under the Veterans' Preference Act of 1944, second to fully qualified persons entitled to 5-point preference under that act, and third to fully qualified former Federal employees. Upon establishment before the Commission that this order of selection has not followed in any case, the person appointed may be removed.

(2) All appointees must meet qualifications standards prescribed by the Com-

mission for the position to which appointed.

(3) A person who is serving in another agency under an appointment other than one limited to six months or less, or who has within the 30 days preceding the date of appointment so served, may not be appointed under this paragraph unless he presents an official notice of his actual or impending separation because of reduction in force, an official notice of furlough, or an official release granted by the agency or the Commission stating that he is available for employment elsewhere.

(g) The Commission is authorized to inspect the records of any department or office to aid it in observing and enforcing of the operation of this section and reporting thereon to the President.

§ 27.9 *Reinstatement*—(a) *General requirements for reinstatement.* A person separated from a civilian position in the Federal service may be reinstated to a position in the classified service if the following requirements are met:

(1) He must have had a classified (competitive) status at the time he was separated, and have completed satisfactorily a probationary period or otherwise have received an absolute appointment.

(2) He must be reinstated within one year of separation if his period of service was less than two years, within two years if his period of service was two years or more but less than three years, within three years if his period of service was three years or more but less than four years, within four years if his period of service was four years or more but less than five years, but if his period of service was five years or more he may be reinstated without time limit after separation: *Provided*, That (i) These time limits shall be waived for former classified employees either entitled to preference by the Veterans' Preference Act of 1944, or whose war service appointments may be converted to reinstatements under paragraph (d) of this section; (ii) the person is otherwise eligible under the conditions of the Executive order of June 2, 1920, which limits the reinstatement of persons who are within ten years of retirement age.

(3) Reinstatement may not be made within 30 days of separation from the Federal service unless he presents an official notice of separation because of a reduction in force, or an official release granted by his former department or agency or, upon appeal, by the Commission.

(4) He must have the knowledge and abilities required for the performance of the duties of the position to which reinstatement is proposed and he must meet the current qualifications standards.

(5) If the proposed reinstatement is to a position in the apportioned service, he must prove his residence in the same manner as for original appointment and he must meet the requirements of the apportionment unless he has previously served in the apportioned service or such requirements are waived by the Commission upon the certificate of the appointing officer showing that the reinstatement is required in the interest of good administration.

(b) *Certificate required for reinstatement.* A certificate issued by the Commission will be required for reinstatement in the following cases:

(1) When the residence of the employee proposed for reinstatement is in a state which is in excess of its quota and a waiver of the apportionment is necessary.

(2) When the proposed reinstatement is in a department or agency other than the one from which the employee was separated and more than one year has passed since such separation.

(3) When the proposed reinstatement involves either a reassignment to a different line of work or a promotion to a position of higher grade from that of the position from which separated, unless standards for promotion without prior approval of the Commission are met or the employee has established by examination his qualifications for the new position with the appropriate office of the Commission subsequent to February 4, 1946.

(c) *Certificate not required for reinstatement.* Except as provided in paragraph (b) of this section, reinstatements of employees who meet the requirements of paragraph (a) may be made by the departments and agencies without certificate of the Commission. Such reinstatements will be subject to postaudit by the Commission.

(d) *Conversion of war service appointment to reinstatement.* Any employee eligible for reinstatement under this section who is serving under a war service indefinite appointment, may, in the discretion of the head of the agency concerned and without the prior approval of the Commission, have his appointment converted to a reinstatement in the position in which employed: *Provided*, That the agency concerned determines that such employee has a civil service status for reinstatement under this section. All conversions of appointments under this section shall be reported to the Commission on the regular report of personnel action and will be subject to post-audit by the Commission.

§ 27.10 *Transfer*—(a) *General requirements for transfer.* An employee occupying a position in the classified service may be transferred to another position in the classified service if the following requirements are met:

(1) He must have a classified (competitive) status at the time he is transferred, and have received an absolute appointment or have completed satisfactorily at least six months of service under a probational appointment. If he is transferred before the completion of his probation, he shall serve a probationary period of sufficient duration to complete his original probationary period.

(2) He must have the knowledges and abilities required for the performance of the duties of the position to which he is transferred and meet the current qualifications standards.

(3) He must present an official notice of his actual or impending separation because of a reduction in force, an official notice or furlough, or an official release granted by his department or agency or, upon appeal, by the Commission.

(4) If the transfer is from a nonapportioned to an apportioned position, he must prove his residence in the same manner as for original appointment and he must meet the requirements of the apportionment unless he has previously served in the apportioned service, or such requirements are waived by the Commission upon the certificate of the appointing officer showing that the transfer is required in the interest of good administration.

(b) *Certificate required for transfer.* A certificate issued by the Commission will be required for transfer in the following cases:

(1) When the residence of the employee proposed for transfer is in a state which is in excess of its quota and a waiver of the apportionment is necessary.

(2) When the transfer is to a position in a higher grade than the position in which the employee is serving if the standards for promotion without prior approval of the Commission are not met.

(3) When the transfer also involves a reassignment to a different line of work from that of the position in which the employee is serving unless the employee has established by examination his qualifications for the new position with the appropriate office of the Commission subsequent to February 4, 1946.

(4) When a retransfer or a special transfer as provided in paragraphs (d) and (e) of this section is involved.

(c) *Certificate not required for transfer.* Except as provided in paragraph (b) of this section, transfers of employees who meet the requirements of paragraph (a) may be made by the departments and agencies without certificate of the Commission. Such transfers will be subject to post-audit by the Commission.

(d) *Retransfer.* Any person may be retransferred to a position in which he was formerly employed or to any position to which transfer could be made therefrom if, since his transfer, he has served continuously and satisfactorily under any of the following conditions:

(1) In the Executive or judicial civil service of the United States or of its insular possessions.

(2) In the legislative service.

(3) In the service of an international governmental organization, or of a State, county, municipality or foreign government in a position in which he has acquired valuable training and experience.

(4) In a training course approved by the Commission in any educational institution of recognized standing.

(e) *Special transfers*—(1) *From the office of the President.* Any person who has served for at least two years in the office of the President of the United States may be transferred to a classified position upon such tests of fitness as the Commission may deem proper.

(2) *From the Philippine service.* An officer or employee occupying a competitive position in the Philippine classified service who has served three years or more therein, may be transferred to the Federal classified service, subject to the provisions of this part; but the Commission may authorize the transfer to an officer or employee who has served

two years in the Philippine classified service and who has been separated by necessary reduction of force or by displacement by a Filipino, if he is especially recommended by the Department of the Interior because of his efficiency and good character. In all cases of proposed transfer from the Philippine classified service the Interior Department shall furnish the Commission, for its consideration, all relevant information contained in its files, together with the service record of the employee.

(3) *From the Puerto Rican service.* The Commission may, in its discretion, authorize the transfer of employees from the civil service of Puerto Rico to that of the United States, subject to the limitations respecting transfer within the civil service of the United States.

(4) *From the Panama Canal service.* A citizen of the United States in the service of the Panama Canal on or before January 1, 1916, in an excepted position may, if recommended by the Panama Canal, be transferred to any position in the classified service for which he can qualify: *Provided,*

(i) This section shall not apply to a person appointed to a competitive position in accordance with the civil service rules or regulations, the transfer of such person to be governed by the general provisions of the regulations.

(ii) This section shall not apply to a person appointed without examination to perform the duties of clerk of any grade, bookkeeper, stenographer, typist, surgeon, physician, trained nurse, or draftsman.

(iii) The transferee has rendered at least two years of service in a position above the grade of unskilled laborer in the service of the Panama Canal or of the Panama Railroad by transfer from the Panama Canal.

§ 27.11 *Promotion*—(a) *Requirement for promotion.* (1) No employee can be promoted or reassigned to a position in the classified service unless he has a classified status and unless he has the knowledge and abilities required for the performance of the duties of the position to which he is proposed for promotion or reassignment.

(2) In making a promotion or reassignment from a nonapportioned position to an apportioned position, the apportionment shall be observed, unless wavied by the Commission upon the certificate of the appointing officer showing that in the interests of good administration the promotion or reassignment is required without regard to apportionment and setting forth in detail the reasons therefor. Any person proposed for promotion or reassignment from a nonapportioned position to an apportioned position shall be required to prove his residence in the same manner as for original appointment to an apportioned position.

(b) *Promotion during probationary period.* (1) No employee shall be eligible for promotion during the first six months of probation except upon prior approval of the Commission.

(2) An employee promoted before the completion of probation shall be required to serve a probationary period of sufficient duration to complete his original probationary period.

(c) *Promotion of substitutes.* Substitutes shall be promoted to the first vacancies occurring in regular positions in the order of their original appointment, whenever there are substitutes of the required sex who are eligible and will accept, unless such vacancies are filled by promotion, transfer, or reinstatement. Whenever in the Postal Service two or more substitutes are appointed on the same date, they shall be promoted to the regular force in the order in which their names appeared on the civil service register from which they were originally appointed, whenever there are substitutes of the required sex who are eligible and will accept, unless such vacancies are filled by transfer or reinstatement.

(d) *Promotion or reassignment without prior approval.* Subject to such standards, limitations, or exceptions as may be issued by the Commission, the head of any department or agency or his designated representatives may make promotions or reassignments in individual cases without the prior approval of the Civil Service Commission. In its discretion, the Commission may disapprove any promotion or reassignment or suspend or withdraw this delegation of authority from any department or agency whenever it determines that the promulgated standards have not been observed.

§ 27.12 *Removals and reductions*—(a) *Procedure to be followed.* No permanent or indefinite employee in the classified civil service of the United States who has completed a probationary period shall be removed therefrom except for such cause as will promote the efficiency of the service and in accordance with following procedure:

(1) *Employees not entitled to military preference.* The person whose removal is sought shall be notified in writing of his proposed removal and shall be furnished with a copy of the charges preferred against him. He shall be allowed a reasonable time for personally answering the same in writing and to furnish affidavits in support of his answer. No examination of witnesses nor any trial or hearing shall be required except in the discretion of the officer making the removal. Copies of the charges, notice of hearing, answer, reasons for removal, and of the order of removal shall be made a part of the records of the department or agency concerned. The reasons for reduction in rank or compensation shall also be made a part of the records of the department or agency concerned. Copies of the foregoing records shall, upon request, be furnished to the person affected and to the Commission.

(2) *Employees entitled to military preference.* For the procedure to be followed in these cases see the regulations governing appeals to the United States Civil Service Commission under section 14 of the Veterans' Preference Act of 1944 (Part 22 of this chapter, 45 CFR, 1945 Supp., 10 F.R. 12181.)

(b) *Like penalties for like offenses.* In making removals or reductions, and in other punishment, like penalties shall be imposed for like offenses, and no discrimination shall be exercised for political or religious reasons, or because of race, creed, color, or national origin.

(c) *Suspensions.* Pending action under paragraph (a) (1) of this section, or for disciplinary reasons, an employee may be suspended for a period not to exceed 90 days: *Provided,* That no permanent or indefinite employee entitled to military preference under these rules who has completed a probationary period shall be suspended for more than thirty days except in accordance with paragraph (a) (2) of this section. The reasons for such suspension shall at the time of the suspension be filed in the records of the department or agency concerned and copies shall be furnished the Commission upon request. The period of suspension may be extended beyond 90 days with the prior consent of the Commission.

(d) *Power to investigate.* Except as provided in paragraph (b) (2) of this section, the Commission shall have no jurisdiction to review the findings of a removing officer upon the charges and answer provided for in paragraph (a) of this section, nor shall the Commission have authority to investigate any removal or reduction, unless it is alleged, with offer of proof, that the procedure required by paragraph (a) of this section has not been followed, or that the removal was made because of marital status, race, or for religious or political reasons. However, an employee who has been removed on charges shall not for that reason be ineligible for further employment in the classified service but his suitability for further employment shall be determined by the Commission upon receipt of an official request for his reinstatement, or when he files application for an examination.

(e) *Reduction in force.* For the procedures to be followed see the Retention Preference regulations for use in reductions in force. (Part 22 of this chapter, 5 CFR, 1945 Supp., 10 F.R. 12181).

§ 27.13 *Report of changes*—(a) *Report by appointing officer.* Every nominating or appointing officer in the executive civil service shall report to the Commission whenever and in such manner as it may prescribe, all changes in the service under his authority, whether they affect positions or employees that are classified, unclassified, excepted, permanent, temporary, or subject to contract.

(b) *List of positions.* Such officers shall also furnish to the Commission, when requested, and in such manner as it may prescribe, information as to numbers of employees, pay-roll data, and a list of all the positions, and employments under their authority, together with the names, designations, compensations, duties, and dates of appointment of employment of all persons serving therein.

§ 27.14 *Testimony*—(a) *Duty of officers and employees.* It shall be the duty of every officer and employee in the executive civil service, and of every applicant or eligible for a position therein, to give to the Commission or its authorized representative all proper and competent information and testimony in regard to matters inquired of arising under the

Civil Service Act and these regulations, and to subscribe such testimony and make oath or affirmation thereto before an officer authorized by law to administer oaths.

§ 27.15 *Withholding salary*—(a) *Legal appointment necessary to compensation.* Whenever the Commission finds, after due notice and opportunity for explanation, that any person has been appointed to or is holding any position, whether by original appointment, promotion, reassignment, transfer, or reinstatement, in violation of the Civil Service Act or this part, or of any Executive order or any regulation of the Commission, or that any employee subject thereto has violated such act, orders, or regulations, it shall certify the facts to the proper appointing officer with specific instructions as to discipline or dismissal of the person or employee affected. If the appointing officer fails to carry out the instructions of the Commission within ten days after receipt thereof, the Commission shall certify the facts to the proper disbursing and auditing officers, and such officers shall make no payment or allowance of the salary or wages of any such person or employee thereafter accruing.

§ 27.16 *Transition promotions, transfers, reappointments*—(a) *Coverage with respect to positions.* Positions for which no appropriate register of eligibles for probational appointment has been established may be filled under this section. Upon establishment of a register of eligibles for probational appointment, the provisions of paragraphs (b), (c) and (d) of this section will cease to be operative with respect to the filling of all positions for which the register is an appropriate source of eligibles.

(b) *Promotion, intra-agency transfer, and reassignment.* A civilian employee of an agency in the executive branch of the Federal Government, or in the General Accounting Office, the Government Printing Office, the District of Columbia Government, or the Administrative Office of the U. S. Courts, who is serving under a war service indefinite, probational or permanent civil service appointment, or under an appointment in accordance with § 27.8 (b) of this chapter may be promoted, transferred, or reassigned within the same department or agency in accordance with standards and procedures issued by the Commission for such action.

(c) *Inter-agency transfer.* A civilian employee of an agency in the executive branch of the Federal Government, or in the General Accounting Office, the Government Printing Office, the District of Columbia Government, or the Administrative Office of the U. S. Courts, who is serving under a war service indefinite, probational, or permanent civil service appointment may be transferred by a department or agency without prior approval of the Commission: *Provided*, That (1) the employee presents an official notice of his actual or impending separation because of reduction in force, an official notice of furlough, an official release granted by his agency or the Commission stating that he is available for employment elsewhere, and (2) he is transferred to a position of the same or equivalent grade as, or a lower grade than, the position he held prior to transfer, or to a higher grade position if he meets the requirements for promotion.

(d) *Reappointment.* (1) A former Federal employee separated for less than 30 calendar days who was eligible for transfer under paragraph (c) of this section prior to separation may be reappointed without prior approval of the Commission under the same conditions that would be required for transfer if he were still serving in the agency from which separated.

(2) A former Federal employee who has restoration or reemployment rights in a Federal agency, who has not been restored or reemployed by such agency, may be reappointed by another agency without prior approval of the Commission: *Provided*, (1) He is reappointed to a position of the same or equivalent grade as, or a lower grade than, the position he last held or to a higher grade position if he meets the requirements for promotion, and (2) he applied for such employment within the same period as would be required for restoration or reemployment in the agency in which he has such right.

(e) *Reinstatement.* A former Federal employee having a status for reinstatement under § 27.9 who is not eligible for reappointment under paragraph (d) (1) of this section may be reinstated in accordance with § 27.9.

(f) *Trial period.* Persons who are serving a trial or probationary period when promoted, reassigned, or transferred under this section will complete their trial or probationary period in the new position. Persons reappointed under this section who were serving a trial or probationary period at the time of separation from their last positions will complete their trial or probationary period in the position to which reappointed. No trial or probationary period will be required in other promotions, reassignments, transfers, and reappointments under this section.

(g) *Status of employees.* The civil service status and tenure of an employee will not be changed by virtue of promotion or reassignment under this section.

In all transfers under this section the employee shall retain for all intents and purposes under the civil service laws and rules the same civil service status which he had in the agency from which he was originally transferred. No employee who has been transferred from a probational or permanent civil service appointment during the period the war service regulations were in effect, or who is transferred during the period this section is in effect, shall, by reason of any such transfer made lose his right to permanent tenure as a classified civil service appointee. No indefinite time limit administratively placed on the appointment to the position to which transferred shall affect the employee's rights to permanent tenure as a classified civil service appointee in the agency in which employed.

Any employee who, on or after March 16, 1942, has been appointed or reappointed under the war service regulations within 30 calendar days after separation from a probational or permanent civil service appointment, shall be entitled to the same benefits he would have had under reinstatement in accordance with Civil Service Rule IX (Part 9 of this chapter). Such an employee has permanent tenure as a classified civil service employee in the agency in which employed unless he was appointed or reappointed with a time limitation of one year or less.

An employee reappointed under this section will have the same civil service status and tenure in the agency to which reappointed as he had in the agency in which he last served. An employee last separated from a permanent or probational civil service appointment shall upon reappointment under this regulation be entitled to the same benefits he would have had under reinstatement in accordance Civil Service Rule IX (Part 9 of this chapter). Such an employee has permanent tenure as a classified civil service appointee in the agency in which employed unless he was reappointed with a time limitation of one year or less.

Any transfer or reappointment of an employee who was originally appointed "subject to investigation" will be subject to the results of the investigation.

Any transfer or reappointment of an employee who has been recommended for classification in his former position, and whose suitability for classification was under investigation, shall be subject to the results of such investigation.

(h) *Reemployment benefits.* (1) Any person, except one who was holding a temporary position, who was transferred by the Commission with reemployment rights under authority of Executive Order 8973 (3 CFR, Cum. Supp., p. 1039) or 9067 (3 CFR, Cum. Supp., p. 1093) or War Manpower Commission Directive No. 10, and who is subsequently involuntarily furloughed or separated without cause as would reflect upon his suitability for employment in the Federal service or who meets the conditions of subparagraph (1) (vi) of this paragraph, shall be entitled to the rights specified below, provided he is still qualified to perform the duties of his position and that he makes application for reemployment within forty days after the termination of his services, but in no event later than six months after the end of the war:

(i) If his transfer was to another Federal department or agency, he shall be entitled to thirty days' notice from the department or agency to which he was transferred, prior to the termination of his services with such department or agency, unless such termination is for cause.

(ii) He shall be reemployed within thirty days of his application in the same department or agency and to the maximum extent practicable, in the same locality, in his former position, or in a position of like seniority, status, and pay, in such manner, to the extent consistent with law, that he does not lose any of the rights or benefits to which he would have been entitled had he not been transferred or released: *Provided*, That such a position then exists, that is not held by a person having a higher retention preference.

(iii) In the event of the transfer of any employee under a series of transfers, all

of which were with reemployment rights, such reemployment rights shall continue to be applicable only to the agency from which the employee was originally transferred.

(iv) An employee who was transferred within the Government service with reemployment rights or an employee who was transferred with reemployment rights from a Government position for employment in an essential activity conducted by a public or private enterprise, and who, while employed in the agency or enterprise to which transferred, enters active service with the armed forces of the United States, shall be entitled to the same reemployment rights with respect to the Government position from which he was transferred as those to which he would have been entitled had he entered active military or naval service while employed in such Government position.

(v) A person who had war service tenure in the agency from which transferred with reemployment rights may not be reemployed under this section after a register of eligibles for probational appointment has been established appropriate for filling the position to which the person has reemployment rights.

(vi) Whenever the filling of any position by promotion from within for an indefinite period is being considered by any department or agency, employees who have been transferred with reemployment rights in such department or agency may be given the same consideration they would have received had they not been transferred, and may be selected for such promotion. In the event of such selection, if such employee is not authorized to return to the position to which promotion was made, his reemployment rights shall be applicable to the position to which promotion was made.

(vii) An employee having reemployment rights by reason of transfer who has not been involuntarily terminated or furloughed by the agency or public or private enterprise to which so transferred may exercise such rights and may be reemployed in accordance with the provisions of this section by the agency, in which he has reemployment rights whenever such action is agreed to by such agency, the employee, and his present agency or private or public enterprise: *Provided,* That such agreement is reached before termination of the employee's services or on or before the fortieth day following termination.

§ 27.17 *Restoration after return from military service and service in the Merchant Marine*—(a) *Persons entitled to restoration by law*—(1) *After military service.* Any civilian employee of the Executive branch of the Government covered by the Selective Training and Service Act or other statutes providing for reemployment after military service who has left or leaves his position (other than a temporary position) in order to perform active military or naval service for the United States and (i) is honorably separated from such service, (ii) is still qualified to perform the duties of such position, and (iii) makes application for reemployment within ninety days after he is relieved from such active duty or service or from hospitalization continuing after discharge for a period of not more than one year, shall be restored within thirty days to the position he left or, if that position does not exist, to a position of like seniority, status, and pay: *Provided,* That failure of the agency to act within the said period will not affect the employee's right to restoration: *Provided further,* That the employee's tenure with the agency will determine whether he left other than a temporary position and the fact that the last position the returning veteran held through promotion or reassignment carried a time limitation will not of itself affect his right to be restored to that position or one of like seniority, status, and pay.

(2) *After service in the Merchant Marine.* Any civilian employee of the United States Government, its territories, or possessions, or the District of Columbia who, after May 1, 1940, has left or before the termination of the unlimited national emergency declared by the President on May 27, 1941, leaves his position (other than a temporary position) in order to perform service in the Merchant Marine and (i) receives a certificate of substantially continuous service, (ii) is still qualified to perform the duties of such position, and (iii) makes application for reemployment within forty days after completion of such service, shall be restored to such position or to a position of like seniority, status, and pay.

(b) *Persons not entitled to restoration by law.* (1) Any person having appointment under the civil service rules or the war service regulations not limited to one year or less who left or leaves a temporary position (within the meaning of the statutes providing for restoration) in any department or agency of the Executive branch of the Federal Government in order to perform active military or naval service for the United States and (i) is honorably separated from such service, (ii) is still qualified to perform the duties of such position, and (iii) makes application for reemployment within ninety days after he is relieved from such active duty or service or from hospitalization continuing after discharge for a period of not more than one year, shall be reemployed within thirty days either in the position he left or in a position of like seniority, status, and pay in the same geographical locality in which he was employed formerly: *Provided,* That such reemployment will not require the removal through reduction in force of any employee with higher retention preference: *Provided further,* That upon establishment of a register of eligibles for making probational appointment, the provisions of this section will cease to be operative with respect to restoration of persons without classified civil service status to any positions for which the register is appropriate: *Provided further,* That failure of the agency to act within the said period will not affect the employee's right to restoration: *And provided further,* That the fact that the last position the returning veteran held through promotion or reassignment carried a time limitation will not of itself affect his right to be restored to that position or one of like seniority, status, and pay.

(2) Any person who, in order to perform active military or naval service for the United States, left or leaves a position in a public or private enterprise (other than a temporary position limited to one year or less) which was or is subsequently taken over by the Federal Government shall be entitled to the reemployment rights set forth in paragraph (b) (1) of this section upon meeting the conditions therein.

(c) *Transfer of functions.* Whenever a function or activity is transferred from one agency to another agency or agencies, arrangements shall be made by the agencies involved and, when necessary, by the Civil Service Commission and the Bureau of the Budget, for the receiving agency or agencies to assume the reemployment obligations to those former employees who left such function or activity in order to enter the armed forces. The agency to which the reemployment obligation is transferred, together with the function, should notify the employee either through a copy of a regular journal or through a special letter that the employee's reemployment rights pertain to such agency.

Similar steps shall be taken by the head of an agency in connection with the transfer of functions or activities within his agency whenever this will assist the agency and the veteran in identifying the office having primary responsibility within the agency for his reemployment.

By the United States Civil Service Commission.

[SEAL] H. B. MITCHELL,
President.

[F. R. Doc. 46-2075; Filed, Feb. 6, 1946; 10:29 a. m.]

TITLE 26—INTERNAL REVENUE

Chapter I—Bureau of Internal Revenue

Subchapter E—Administrative Provisions Common to Various Taxes

[T. D. 5493]

PART 458—INSPECTION OF RETURNS

INSPECTION OF INCOME, EXCESS-PROFITS, AND DECLARED VALUE EXCESS-PROFITS TAX RETURNS BY WAR CONTRACTS PRICE ADJUSTMENT BOARD

§ 458.311 *Inspection of income, excess-profits, and declared value excess-profits tax returns by the War Contracts Price Adjustment Board.* Pursuant to the provisions of sections 55 (a), 508, 603, and 729 (a) of the Internal Revenue Code, income, excess-profits, and declared value excess-profits tax returns made under the Internal Revenue Code, as amended, for the year 1939 and subsequent years, shall be open to inspection by the War Contracts Price Adjustment Board. The inspection of such returns herein authorized may be made by any officer or employee of such Board duly authorized by the Chairman of the Board to make such inspection.

Upon written notice by the Chairman to the Secretary of the Treasury stating the classes of returns which it is desired to inspect, the Secretary of the Treasury and any officer or employee of the Treasury Department, with the approval of the Secretary of the Treasury, may furnish the Board with any data on such returns or make the returns, or any of them, available in the Office of the Commissioner of Internal Revenue for inspection, and taking of such data as the Chairman may designate. The information so obtained may be published or disclosed in statistical form, provided such publication does not disclose, directly or indirectly, the name or address of any taxpayer.

(E.O. 9694, Feb. 6, 1946, and secs. 55 (a), 508, 603, and 729 (a), 53 Stat. 1, 29, 111; 54 Stat., 974, 989; 26 U.S.C., 55 (a), 508, 603, and 729 (a))

FRED M. VINSON,
Secretary of the Treasury.

Approved: February 6, 1946.

HARRY S. TRUMAN,
The White House.

[F. R. Doc. 46-2113; Filed, Feb. 6, 1946; 11:06 a. m.]

TITLE 30—MINERAL RESOURCES

Chapter VI—Solid Fuels Administration for War

PART 602—GENERAL ORDERS AND DIRECTIVES

STATEMENT TO SOLID FUELS INDUSTRIES

It is contemplated that the Solid Fuels Administration for War will discontinue completely its activities by June 30, 1946. Many of the SFAW regulations and orders now in effect will expire or be revoked March 31, 1946. After April 1, SFAW will, however, to meet emergency conditions, continue to exercise its authority to issue directions under SFAW Regulation No. 1 and to exercise limited control over the movement of solid fuels for export under SFAW Regulation No. 31.

Contracts for the shipment of bituminous coal to the Great Lakes and contracts for the shipment of special purpose coal for the coming fuel year, April 1, 1946 to March 31, 1947, will not have to be filed with the Solid Fuels Administration for War and producers, distributors and consumers of solid fuels will be free to make their own agreements without governmental restriction as to quantity or source of supply. However, no shipments may be made priod to April 1 which do not comply with existing regulations unless prior approval of such shipments is obtained from the Solid Fuels Administration for War.

Issued this 4th day of February 1946.

HAROLD L. ICKES,
Solid Fuels Administrator for War.

[F. R. Doc. 46-2138; Filed, Feb. 6, 1946; 11:53 a. m.]

TITLE 32—NATIONAL DEFENSE

Chapter XI—Office of Price Administration

PART 1305—ADMINISTRATION

[2d Rev. SO 13]

RETAIL SELLERS OPERATING OR INTENDING TO OPERATE MORE THAN ONE ESTABLISHMENT

Revised Supplementary Order No. 13, *Retail Sellers Operating or Intending to Operate More Than One Establishment*, is redesignated Second Revised Supplementary Order No. 13, *Retail Sellers Operating or Intending to Operate More Than One Establishment*, and is revised and amended to read as follows:

A statement of the considerations involved in the issuance of this order, issued simultaneously herewith, has been filed with the Division of the Federal Register.

AUTHORITY: § 1305.17 issued under 56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; Pub. Law 108, 79th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681; E.O. 9599, 10 F.R. 10155; E.O. 9651, 10 F.R. 13487.

§ 1305.17. *Retail sellers operating or intending to operate more than one establishment*—(a) *Orders under this section.* Upon application made in accordance with paragraph (b), the Administrator may, by order, grant authorization to establish or continue the practice of selling designated commodities at retail at uniform prices in all or certain establishments which are under common ownership or operation in any case where the applicant can propose a practicable method of determining prices centrally without increasing the general level of prices and can demonstrate the advisability thereof as an aid to price control. Any regional office of the OPA and such other offices as may be authorized by the appropriate regional office, may, by order grant or deny applications filed hereunder when the applicant's main office and all the selling units to be included in the authorization are located within its jurisdiction.

(b) *Applications.* Written applications for orders of authorization, signed by the applicant or by a duly authorized officer or agent of the applicant, shall be filed in duplicate in the regional office of the OPA within which Region all of the applicant's selling units and main office are located or if all of the applicant's selling units and main office are not located within the same Region, in the Central Pricing Office of the OPA, Washington, D. C., and shall set forth:

(1) The legal name of the applicant, the address of its principal office, and the nature of its organization. Corporations shall list the names of their principal officers and stockholders holding more than 10% of the stock. Partnerships shall list the names and addresses of all partners. A sole owner shall give his own name and address.

(2) The legal names of any separate corporations, partnerships or single proprietorships which own or operate to any degree the retail outlets, and the extent of such ownership or operation as well as the legal relationships involved.

(3) The name of each principal officer, stockholder or partner who is affiliated with a producer, manufacturer or fabricator of any of the merchandise sold in any of applicant's retail outlets and a description of that affiliation.

(4) A list of applicant's retail outlets by states showing for each outlet:

(i) The name under which it is doing business

(ii) Its complete address

(iii) Whether it is a store or a leased department, and

(iv) The name of the corporation, partnership or single proprietorship which is directly responsible for its operation. The list shall include outlets which applicant plans to open in the future and anticipated dates of opening of these outlets. For outlets acquired after March 1942, applicant shall give the dates on which it started to operate these outlets and shall state whether it opened the outlets or acquired them from a former owner.

(5) The lines of merchandise applicant carries.

(6) The proportion of the total dollar volume of applicant's purchases that are made by the principal office. Applicant shall specify whether the retail outlets make some purchases, listing the lines of merchandise they purchase and shall indicate whether it plans in the future to purchase all merchandise from the principal office.

(7) The proportion of the total dollar volume of commodities that are distributed to applicant's outlets from a central warehouse and the addresses of applicant's central warehouses.

(8) A statement as to whether or not all prices are determined by applicant's principal office. If not, applicant shall indicate whether the outlets determine any of the original prices and whether they adjust any prices originally determined by the principal office.

(9) A statement as to whether the billing to the outlets shows the cost price only, the cost and retail price, or the retail price only. If the cost shown is not the net invoice cost, applicant shall indicate what charges it includes and shall describe any differences between the billing of commodities distributed from the central warehouse, and commodities shipped directly from the source of supply. Applicant shall indicate where and how commodities are marked or price-ticketed or how applicant's retail outlets are informed of retail selling prices.

(10) A statement as to whether or not applicant's selling prices were determined by its principal office in March 1942, and whether its prices were the same in all its retail outlets during that month.

(11) The estimated percentage of the dollar volume of applicant's commodities that are subject to the General Maximum Price Regulation and a statement as to whether or not prices of the commodities under that regulation are the same in all applicant's retail outlets. If these prices are not uniform, applicant shall give the extent of the existing nonuniformity and the reasons therefor.

(12) Copies of all pricing charts filed with any field office of the Office of Price Administration or a statement showing

the OPA offices in which such charts have been filed. If applicant has filed the same chart for more than one outlet, applicant shall indicate what retail outlets are covered by each of these charts.

(13) A description in detail of the procedure applicant desires to use in determining prices and the means applicant proposes to adopt to insure centralized control of prices in its retail outlets.

(14) The names and addresses of applicant's most closely competitive sellers of the same class on a national or a regional basis, and if applicant has fewer than ten outlets and wishes to open one or more additional outlets, a list of the three closest competitors each of these new outlets would have if it were a separate seller.

(c) *Definitions.* (1) "Price regulation," as used in this supplementary order, means a price schedule effective in accordance with the provisions of section 206 of the Emergency Control Act of 1942, a maximum price regulation or temporary maximum price regulation heretofore or hereafter issued by the Office of Price Administration or any amendment or supplement thereto or order heretofore or hereafter issued thereunder.

(d) *Records.* All records of costs, pricings, and computations for commodities the prices of which are determined centrally shall be kept by applicant in the central or main pricing office unless otherwise directed by the uniform pricing order. Whenever a price for any commodity is required to be determined centrally under a uniform pricing order, the applicant shall send written notification thereof to each outlet in which that commodity is offered for sale and shall keep the notification in that outlet available for inspection by the Office of Price Administration. In the case of articles which are preticketed by the central or main pricing office compliance with this requirement may be made by the central office transmitting to the outlet a separate notice, memorandum or invoice sufficient to identify the merchandise as preticketed. Unless the notification has been kept by the outlet, as herein directed, the applicant shall not sell, offer for sale or deliver the commodity in that outlet; and in no case shall the applicant sell, offer for sale or deliver any commodity at a price higher than the price stated for that commodity on the notification to that outlet, unless the ceiling price is also stated on the invoice, in which case the applicant shall not sell, offer for sale or deliver that commodity in that outlet at a price higher than the stated ceiling price.

As to merchandise priced by the individual outlet (in contrast to that priced centrally), the outlet must keep all records pertaining to such commodities.

(e) Orders issued prior to February 11, 1946. All orders in effect under Supplementary Order 13 or Revised Supplementary Order 13 on February 10, 1946, shall remain in full force and effect under this Second Revised Supplementary Order 13, provided, however, that all orders of authorization issued prior to February 11, 1946 are amended to exclude therefrom any provision which requires periodic reporting of markups.

NOTE: The reporting and record-keeping requirements of this supplementary order have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

This supplementary order shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2120; Filed, Feb. 6, 1946; 11:43 a. m.]

PART 1334—SUGAR

[MPR 16,[1] Amdt. 2]

RAW CANE SUGAR

A statement of the considerations involved in the issuance of this amendment issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 16 is amended in the following respects:

1. Section 8 (d) is added to read as follows:

(d) *Specific additions to applicable maximum prices for sales of raw cane sugar*—(1) *Sales by persons who own no raw cane sugars at the close of business on February 9, 1946.* Any person subject to this regulation who owns no raw cane sugars at the close of business on February 9, 1946, may add .455 of a cent per pound to the applicable maximum prices established by the preceding paragraphs (a) to (c) inclusive of this section 8, for sales by him of raw cane sugars on and after February 10, 1946.

(2) *Sales by persons who own raw cane sugars at the close of business on February 9, 1946.* Any person subject to this regulation, except Commodity Credit Corporation, who owns raw cane sugars at the close of business on February 9, 1946, may add .455 of a cent per pound to the applicable maximum prices established by the preceding paragraphs (a) to (c) inclusive, of this section 8, for sales by him of raw cane sugars, on and after February 10, 1946, upon the condition that he complies with all the pertinent requirements of the following subparagraphs (3) and (4).

(3) *Filing of affidavit.* Any person subject to this regulation, who sells raw cane sugars, and who owns raw cane sugars at the close of business on February 9, 1946, shall not later than March 1, 1946, send by registered mail addressed to Commodity Credit Corporation, 150 Broadway, New York 7, New York, an affidavit setting out the total number of pounds of raw cane sugars owned by him at the close of business on February 9, 1946.

(4) *Payment to Commodity Credit Corporation.* Any person subject to the provisions of this regulation, who elects to increase his maximum price on February 10, 1946, shall make a statement to that effect in the affidavit described in subparagraph (3) and shall make payment by check or money order payable to the Commodity Credit Corporation in an amount computed as follows:

(i) The total number of pounds of raw cane sugars owned by him at the close of business on February 9, 1946;

(ii) Multiplied by .455 of a cent per pound.

Payment may be made at the time of filing the affidavit or monthly payments shall be made within 30 days following the close of the calendar month for the amount of sugar sold during such month, until the full amount due has been paid. The maximum price, in the event of failure to make such payment or payments, shall be the maximum price in effect prior to February 10, 1946.

(5) *Election to sell inventory at lower price.* Any person subject to this regulation who owns raw cane sugars at the close of business on February 9, 1946, may, in lieu of making payment to Commodity Credit Corporation, described in subparagraph (3) above, elect to sell or otherwise dispose of the entire amount of his inventory at or below the maximum price in effect on February 9, 1946. Such person shall state in the affidavit described in subparagraph (3) that he elects to sell his inventory at the lower price. At such time as he has sold an amount equal to his February 9, 1946 inventory, he shall file by registered mail with the Commodity Credit Corporation a final affidavit stating that he has fully complied with the requirement of this subparagraph (4).

After mailing the final affidavit in proper form such person may increase his maximum price in the amount set out in subparagraph (1).

(6) *Maximum prices for sales by Commodity Credit Corporation.* The Commodity Credit Corporation may add the sum of .455 of a cent per pound to the applicable maximum prices established by paragraphs (a) to (c) inclusive, of this section 8.

This amendment shall become effective 12:01 a. m. February 10, 1946.

NOTE: All reporting and record-keeping requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

Approved: February 4, 1946.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 46-2058; Filed, Feb. 5, 1946; 4:44 p. m.]

PART 1334—SUGAR

[MPR 60,[1] Amdt. 1]

DIRECT CONSUMPTION SUGAR

A statement of the considerations involved in the issuance of this amendment issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 60 is amended in the following respects:

[1] 10 F.R. 10978.

[1] 10 F.R. 14816.

1. Section 2 (a) (1) (ii) is amended to read as follows:

(ii) For sales of fine granulated beet sugar processed in Continental United States, $5.90.

2. Section 2 (e) is added to read as follows:

(e) *Specific additions to applicable maximum prices for certain sales of direct-consumption cane sugars*—(1) *Sales by primary distributors who own no cane sugars at the close of business on February 9, 1946.* Any primary distributor who owns no cane sugars at the close of business on February 9, 1946, may add 50 cents per one hundred pounds to the applicable maximum basis prices for direct-consumption cane sugars established by the preceding paragraphs (a) to (c) inclusive of this section 2, for sales by him of direct-consumption cane sugars on or after February 10, 1946.

(2) *Sales by persons owning cane sugars at the close of business on February 9, 1946.* Any primary distributor who owns any cane sugars at the close of business on February 9, 1946, may add 50 cents per one hundred pounds to the applicable maximum prices established by the preceding paragraphs (a) to (c) inclusive, of this section 2, for sales by him of direct-consumption sugars on and after February 10, 1946, upon the condition that he complies with all the pertinent requirements of the following subparagraphs (3) and (4).

(3) *Filing of affidavit.* Each primary distributor owning cane sugars at the close of business on February 9, 1946, shall not later than February 15, 1946, send by registered mail addressed to Commodity Credit Corporation, 150 Broadway, New York 7, New York, an affidavit setting out the following amounts of sugar owned by him at the close of business on February 9, 1946:

(i) The total number of pounds of direct-consumption cane sugar.

(ii) The total number of pounds of raw cane sugar (converted to a refined basis) in process of refinement.

(iii) The total number of pounds of raw cane sugar.

(iv) The total number of pounds of "price adjustment" and "crop-purchase" raw cane sugar as defined under paragraph (1) of the contract between Commodity Credit Corporation and Refiners of Cane Sugar in Continental United States.

(4) *Payment to Commodity Credit Corporation.* Any primary distributor owning direct-consumption cane sugars at the close of business on February 9, 1946, who elects to increase his maximum price on February 10, 1946, shall make a statement to that effect in the affidavit described in subparagraph (3) and shall make payment by check or money order payable to the Commodity Credit Corporation in an amount computed as follows:

(i) The total number of pounds of direct-consumption cane sugar plus the total number of pounds of cane sugar (converted to a refined basis) in process of refinement, multiplied by .49 of a cent per pound; plus

(ii) The difference between the total number of pounds of raw cane sugar and the total number of pounds of "price adjustment" and "crop-purchase" raw cane sugar, multiplied by .455 of a cent per pound.

Payment may be made at the time of filing the affidavit or monthly payments shall be made within 30 days following the close of the calendar month for the amount of such sugar sold during such month, until the full amount due has been paid. The maximum price, in event of failure to make such payment or payments, shall be the maximum price in effect prior to February 10, 1946.

(5) *Election to sell inventory at lower price.* Any primary distributor owning cane sugars at the close of business on February 9, 1946, may, in lieu of making payment to Commodity Credit Corporation, described in subparagraph (4) above, elect to sell or otherwise dispose of the entire amount of his inventory at or below maximum prices in effect on February 9, 1946. Such person shall state in the affidavit described in subparagraph (3), that he elects to sell his inventory at the lower price. At such time as he has sold an amount equal to his February 9 inventory, he shall file by registered mail with the Commodity Credit Corporation a final affidavit stating that he has fully complied with the requirements of this subparagraph (5).

After mailing the final affidavit in proper form such person may increase his maximum prices in the amounts set out in subparagraph (2).

This amendment shall become effective 12:01 a. m., February 10, 1946.

NOTE: All reporting and record-keeping requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

Approved: February 4, 1946.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 46-2059; Filed, Feb. 5, 1946; 4:44 p. m.]

PART 1351—FOOD AND FOOD PRODUCTS

[FPR 2, Amdt. 4 to Rev. Supp. 2]

OATS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Table I (a) of Appendix A of Revised Supplement No. 2 to Food Products Regulation No. 2 is amended to read as follows:

TABLE I

(a) *Schedule of premiums and discounts over or under standard grade and quality.* The base price of the standard grade and quality, No. 3 oats with a test weight of 27 pounds per bushel and moisture content not over 14½ percent, shall be adjusted for other grades and qualities by the following premiums (shown as plus) and the discounts (shown as minus) in cents per bushel:

Grade (all classes and special grade designations)	Minimum test weights per bushel (pounds)								
	Under 27	27	30	32	34	36	38	40	42
No. 1 oats	------	------	------	+4	+3	+6	+8	+10	+12
No. 2 oats	------	------	+3	+3½	+4	+5	+7	+9	+11
No. 3 oats	------	0	+2	+2½	+3	+4	+6	+7½	+9
No. 4 oats 85% S. C. or better	−2	−1	+1	+1½	+2	+3	+4½	+6	+7½
No. 4 oats under 85%	−3	−2	0	+½	+1	+2	+3½	+5	+5
Sample grade for factors other than moisture and musty	−4	−3	−1	−½	0	+1	+2½	+4	+4

Grade (all classes and special grade designations)	Minimum test weights per bushel (pounds)					
	26	29	32	34	36	38
No. 1 feed oats 70% S. C. or better	------	------	−1	0	+1	+2
No. 1 feed oats under 70% S. C.	------	------	−2	−1	0	+1
No. 2 feed oats	------	−4	−3	−2	−1	−1
No. 3 feed oats	−6	−5	−4	−3	−2	−2
Sample grade feed oats for factors other than moisture and musty	−7	−6	−5	−4	−3	−3
No. 1 mixed feed oats	------	------	−5	−4	−3	−3
No. 2 mixed feed oats	------	−7	−6	−5	−4	−4
No. 3 mixed feed oats	−9	−8	−7	−6	−5	−5
Sample grade mixed feed oats for factors other than moisture and musty	−10	−9	−8	−7	−6	−6

Discounts for the following factors as prescribed in the Official Grain Standards of the United States. In addition to the above premiums and discounts for grade and quality, other than "standard grade", the following additional discounts per bushel shall apply for the following grade notations:

(1) 1 cent per bushel discount for "weevily"; 1 cent per bushel discount for "thin"; 2 cents per bushel discount for "smutty"; 1 cent per bushel discount for "tough"; 2 cents per bushel discount for "garlicky"; 2 cents per bushel discount for "ergoty"; 2 cents per bushel discount for "sour" or "heating"; 4 cents per bushel discount for "hot"; 2 cents per bushel discount for the notation "commercially objectionable foreign odor (other than smut or garlic)". These discounts shall be cumulative.

(2) ½ cent per bushel discount for each 2 percent or fraction thereof of foreign material in excess of 7 percent for oats; or ½ cent per bushel discount for feed oats if in excess of 8 percent and not over 10 percent of foreign material.

(3) The base price for "musty" oats shall be adjusted according to the table for grade and quality on factors other than "musty" and then an additional discount of 2 cents per bushel shall apply.

(4) ½ cent per bushel discount for each 1 pound or fraction thereof by which the test weight per bushel is less than 23 pounds per bushel.

(5) For oats or feed oats or mixed oats containing more than 14½ percent of moisture, a discount of 1 cent per bushel for "tough" for moisture up to 16 percent (if such discount has not already been made for "tough" under subparagraph (1) above) and a further discount of ¾ cent per bushel for each ½ percent or fraction thereof of moisture in excess of 16 percent.

(6) 2 cents per bushel discount if the lot of oats grades sample grade on account of wild brome grass seed.

(7) 4 cents per bushel discount if the lot of oats grades sample grade on account of stones and/or cinders.

(8) (i) For oats, 1 cent per bushel discount for each 1 percent or fraction thereof of heat damaged kernels in excess of 5 percent and up to 15 percent inclusive and 1 cent per bushel discount for each 5 percent or fraction thereof in excess of 15 percent.

(ii) For feed oats and mixed feed oats, 1 cent per bushel discount for each 1 percent or fraction thereof of heat damaged kernels in excess of 8 percent and up to 18 percent inclusive and 1 cent per bushel discount for each 5 percent or fraction thereof in excess of 18 percent.

These discounts in the above subparagraphs (1), (2), (3), (4), (5), (6), (7) and (8) shall be cumulative except as otherwise provided therein.

Premium for recleaned oats. Oats which have been processed by cleaning and separation and containing less than 1 percent of foreign matter may be sold at a premium of 2 cents per bushel over the maximum price for the grade and quality of the oats so delivered as computed elsewhere in this supplement.

This amendment shall become effective February 11, 1946.

Issued this 6th day of February 1946.

CHESTER BOWLES,
Administrator.

Approved: January 29, 1946.

CLINTON P. ANDERSON,
Secretary of Agriculture.

[F. R. Doc. 46-2121; Filed, Feb. 6, 1946; 11:44 a. m.]

PART 1405—FERRO ALLOYS

[MPR 489,[1] Amdt. 2]

TUNGSTEN, MOLYBDENUM, VANADIUM, COBALT, AND CERTAIN OTHER ALLOYS AND METALS

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation No. 489 is amended in the following respects:

1. A new section 7a is added to read as follows:

SEC. 7a. *Maximum prices for conversion services.* The maximum price which any person may pay or receive for the service of converting ores, concentrates or other materials into any of the commodities for which maximum prices are established by this regulation shall be the difference between the cost of the ores, concentrates or other materials received by the converter and the maximum price of the commodity delivered to the person for whom the conversion service is performed. In any case in which the converter is furnished other than purchased material, market value shall be used instead of cost in figuring the maximum toll charge.

This amendment shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2118; Filed, Feb. 6, 1946; 11:43 a. m.]

[1] 8 F.R. 15182, 9716.

PART 1382—HARDWOOD LUMBER

[MPR 155,[1] Amdt. 20]

CENTRAL HARDWOOD LUMBER

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 155 is amended in the following respects:

1. In § 1382.64 (b) the price tables in subparagraphs (1) through (31) are amended to read as follows, respectively:

(1) ASH (OTHER THAN TOUGH WHITE ASH)

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3 common
1	$56.50	$42.50	$35.00	$23.50
1¼	59.00	44.50	36.00	24.50
1½	59.00	44.50	37.00	24.50
2	61.00	47.00	37.00	26.00
2½	62.00	48.00	37.00	----------
3	65.50	51.00	38.00	----------

(2) TOUGH WHITE ASH

1	$83.00	$50.00	$36.00	$22.50
1¼	88.50	55.50	37.00	23.50
1½	96.00	66.50	38.00	23.50
2	104.50	77.50	39.00	24.50
2½	121.00	83.00	40.00	----------
3	132.00	93.50	42.00	----------
4	143.00	104.50	47.50	----------

(3) BASSWOOD

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2A common	No. 2 common	No. 2B common	No. 3 common
½	$51.00	$34.00	$26.00	$21.50	$18.50	----------
⅝	59.00	39.00	30.00	24.50	21.50	----------
¾	66.50	44.50	34.00	29.00	24.50	----------
1	78.50	52.50	40.00	34.00	29.00	$23.50
1¼	84.00	58.00	42.00	36.00	30.00	24.50
1½	86.00	60.00	44.50	38.00	31.00	24.50
2	92.50	66.50	47.50	39.00	32.00	26.00
2½	101.50	73.00	----------	----------	----------	----------

(4) BEECH

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3A common	Box grade	No. 3B common
½	$42.50	$35.00	$27.00	----------	----------	----------
⅝	48.00	39.00	30.00	----------	----------	----------
¾	53.50	43.50	33.00	----------	----------	----------
1	61.00	50.00	37.00	$31.00	$26.00	$21.50
1¼	63.00	52.50	38.00	32.00	27.00	22.50
1½	65.50	54.50	39.00	33.00	28.00	22.50
2	70.00	58.00	41.00	34.00	29.00	23.50

(5) BUCKEYE

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3 common
1	$65.50	$43.50	$31.00	$20.50
1¼	71.00	44.50	31.00	21.50
1½	74.00	47.00	31.00	21.50
2	76.50	47.00	31.00	22.50

(6) BUTTERNUT

1	$87.00	$54.50	$31.00	$20.50
1¼	98.00	60.00	33.00	21.50
1½	103.50	65.50	34.00	21.50
2	114.50	76.50	36.00	22.50

(7) COTTONWOOD

½	$38.00	$34.00	$28.00	----------
⅝	42.50	38.00	31.00	----------
¾	47.00	41.50	34.00	----------
1	54.50	48.00	38.00	$23.50
1¼	56.50	49.00	40.00	24.50
1½	56.50	49.00	40.00	24.50
2	56.50	49.00	40.00	26.00

(8) SOFT ELM

½	$37.00	$29.50	$26.00	----------
⅝	41.50	34.00	29.00	----------
¾	47.00	37.00	31.00	----------
1	53.50	42.50	35.00	$23.50
1¼	55.50	44.50	36.00	24.50
1½	55.50	44.50	37.00	24.50
2	58.00	47.00	37.00	26.00
2½	59.00	48.00	37.00	----------
3	62.00	51.00	38.00	----------

(9) RED GUM—QUARTERED

1	$111.00	$62.00	$41.00	$23.50
1¼	115.50	72.00	42.00	24.50
1½	115.50	75.00	42.00	24.50
2	119.00	77.50	46.50	26.00
2½	121.00	83.00	----------	----------
3	126.50	88.50	----------	----------

(10) RED GUM—PLAIN

⅝	$77.50	$48.00	$30.00	----------
¾	88.50	52.50	35.00	----------
1	107.00	58.00	41.00	$23.50
1¼	110.00	68.50	41.00	24.50
1½	110.00	70.00	41.00	24.50
2	112.50	72.00	45.50	26.00

(11) SAP GUM—QUARTERED

1	$72.00	$56.50	$37.00	$23.50
1¼	77.50	64.50	38.00	24.50
1½	79.50	65.50	38.00	24.50
2	83.00	66.50	42.00	26.00
2½	88.50	73.00	45.50	----------
3	91.50	77.50	50.50	----------

(12) SAP GUM—PLAIN

⅝	$52.50	$42.50	$28.00	----------
¾	56.50	44.50	30.00	----------
1	67.50	52.50	35.00	$23.50
1¼	72.00	58.00	36.00	24.50
1½	75.00	61.00	36.00	24.50
2	80.50	63.00	39.00	26.00

(13) BLACK GUM—QUARTERED

1	$64.50	$53.50	$37.00	$23.50
1¼	66.50	55.50	38.00	24.50
1½	68.50	58.00	38.00	24.50
2	74.00	63.00	40.00	26.00
2½	83.00	66.50	45.50	----------
3	88.50	72.00	48.50	----------

(14) BLACK GUM—PLAIN

⅝	$50.00	$39.00	$26.00	----------
¾	51.00	40.50	28.00	----------
1	61.00	50.00	35.00	$23.50
1¼	63.00	52.50	37.00	24.50
1½	66.50	55.50	37.00	24.50
2	72.00	61.00	40.00	26.00

(15) TUPELO—QUARTERED

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3 common
1	$64.50	$53.50	$37.00	$23.50
1¼	66.50	55.50	38.00	24.50
1½	68.50	58.00	38.00	24.50
2	74.00	63.00	40.00	26.00
2½	83.00	66.50	45.50	----------
3	88.50	72.00	48.50	----------

(16) TUPELO—PLAIN

5/8	$50.00	$39.00	$26.00	----------
¾	51.00	40.50	28.00	----------
1	61.00	50.00	35.00	$23.50
1¼	63.00	52.50	37.00	24.50
1½	66.50	55.50	37.00	24.50
2	72.00	61.00	40.00	26.00

(17) HACKBERRY

Thickness (inches)	Log run	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No.3 common
5/8	$32.00	----------	----------	----------	----------
¾	36.50	----------	----------	----------	----------
1	44.00	$53.50	$42.50	$35.00	$23.50
1¼	45.00	55.50	44.50	36.00	24.50
1½	46.00	55.50	44.50	37.00	24.05
2	47.00	58.00	47.00	37.00	26.00
2½	----------	59.00	48.00	37.00	----------
3	----------	62.00	51.00	38.00	----------

(18) HICKORY

1	$44.00	$67.50	$47.00	$31.00	$22.50
1¼	46.00	70.00	49.00	32.00	23.50
1½	49.00	73.00	53.50	40.00	23.50
2	62.50	78.50	54.50	40.00	24.50

(19) HARD MAPLE

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	Sound wormy	No. 3A common	Box grade	No. 3B common
1/2	$65.50	$43.50	$23.50	$23.50	------	------	------
5/8	76.50	50.00	27.00	27.00	------	------	------
¾	86.00	56.50	31.00	31.00	------	------	------
1	101.50	66.50	36.00	36.00	$26.00	$20.50	$15.50
1¼	112.50	72.00	39.00	39.00	27.00	21.50	16.50
1½	117.50	75.00	41.00	41.00	27.00	21.50	16.50
2	125.50	83.00	43.50	43.50	28.00	22.50	17.50
2½	141.50	98.00	------	------	------	------	------
3	158.00	114.50	------	------	------	------	------
4	174.50	133.00	------	------	------	------	------

(20) SOFT MAPLE (WHAD)

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3 common
1/2	$50.00	$42.50	$27.00	----------
5/8	56.50	48.00	30.00	----------
¾	63.00	53.50	33.00	----------
1	73.00	62.00	37.00	$23.50
1¼	75.00	64.50	39.00	24.50
1½	78.50	67.50	39.00	24.50
2	82.00	71.00	42.00	26.00
2½	84.00	73.00	42.00	----------
3	89.50	78.50	43.50	----------
4	100.50	92.50	----------	----------

(21) RED OAK—QUARTERED

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	Sound wormy	No. 3A common	No. 3B common
1/2	$56.50	$40.50	$29.00	$24.50	------	------
5/8	64.50	46.00	33.00	28.00	------	------
¾	72.00	51.00	36.00	31.00	------	------
1	83.00	59.00	41.00	35.00	$32.00	$21.50
1¼	93.50	64.50	43.50	41.00	------	------
1½	99.00	68.50	45.50	44.50	------	------
2	110.00	74.00	48.50	47.50	------	------

(22) RED OAK—PLAIN

1/2	$52.50	$38.00	$29.00	$24.50	------	------
5/8	60.00	42.50	33.00	28.00	------	------
¾	66.50	47.00	36.00	31.00	------	------
1	82.00	59.00	41.00	35.00	$32.00	$21.50
1¼	89.50	64.50	42.00	41.00	32.00	21.50
1½	91.50	64.50	43.50	44.50	32.00	21.50
2	99.00	66.50	45.50	47.50	32.00	21.50
2½	126.50	83.00	------	------	------	------
3	140.50	92.50	------	------	------	------
4	157.00	107.00	------	------	------	------

(23) WHITE OAK—QUARTERED

1/2	$80.50	$56.50	$29.00	$24.50	------	------
5/8	92.50	64.50	33.00	28.00	------	------
¾	103.50	72.00	36.00	31.00	------	------
1	121.00	83.00	41.00	33.00	$32.00	$21.50
1¼	132.00	89.50	44.50	41.00	------	------
1½	140.00	97.00	46.50	44.50	------	------
2	156.00	108.00	49.50	47.50	------	------

(24) WHITE OAK—PLAIN

1/2	$66.50	$38.00	$29.00	$24.50	------	------
5/8	76.50	43.50	33.00	28.00	------	------
¾	85.00	48.00	36.00	31.00	------	------
1	103.50	60.00	41.00	35.00	$32.00	$21.50
1¼	116.50	66.50	42.00	41.00	32.00	21.50
1½	122.00	67.50	43.50	44.50	32.00	21.50
2	132.00	72.00	45.50	47.50	32.00	21.50
2½	153.50	88.50	------	------	------	------
3	170.00	103.50	------	------	------	------
4	186.50	120.00	------	------	------	------

(25) WHITE OAK (WHND)

Thickness (inches)	FAS	No. 1 common and better	No. 1 common
1/2	$37.00	$28.50	$24.00
5/8	42.50	30.50	27.50
¾	46.00	34.00	29.50
1	67.50	53.50	43.50
1¼	79.50	61.00	51.00
1½	82.00	62.00	55.50
2	91.50	66.50	61.00
2½	113.50	88.50	80.50
3	129.50	103.50	92.50
4	145.00	114.50	104.50

(26) YELLOW POPLAR—QUARTERED

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2A common	No. 2B common	No. 3 common
1/2	$63.00	$42.50	$30.00	$24.50	----------
5/8	72.00	48.00	34.00	28.00	----------
¾	80.50	53.50	38.00	31.00	----------
1	93.50	61.00	43.50	35.00	$23.50
1¼	99.00	64.50	45.50	36.00	24.50
1½	102.50	68.50	46.50	37.00	24.50
2	115.50	74.00	50.50	38.00	26.00

(27) YELLOW POPLAR—PLAIN

Thickness (inches)	FAS	Saps and selects	No. 1 common and selects or No. 1 common	No. 2A common	No. 2B common	No. 3 common
1/2	$60.00	$50.00	$40.50	$31.00	$26.00	-------
5/8	68.50	58.00	46.00	35.00	29.00	-------
¾	77.50	64.50	51.00	38.00	32.00	-------
1	89.50	74.00	59.00	44.50	36.00	$23.50
1¼	95.00	78.50	63.00	47.50	37.00	24.50
1½	99.00	82.00	67.50	48.50	38.00	24.50
2	109.00	87.00	72.00	52.50	40.00	26.00
2½	128.50	99.00	83.00	56.50	-------	-------
3	139.50	111.00	93.50	59.50	-------	-------
4	153.50	126.50	110.00	-------	-------	-------

(28) SYCAMORE—QUARTERED

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3 common
5/8	$59.00	$48.00	$37.00	----------
¾	59.00	48.00	37.00	----------
1	64.50	53.50	42.00	$23.50
1¼	66.50	55.50	42.00	24.50
1½	67.50	56.50	42.00	24.50
2	73.00	60.00	42.00	26.00

(29) SYCAMORE—PLAIN

5/8	$52.50	$41.50	$30.00	----------
¾	52.50	41.50	30.00	----------
1	58.00	47.00	33.00	$23.50
1¼	60.00	49.00	35.00	24.50
1½	62.00	51.00	35.00	24.50
2	66.50	54.50	35.00	26.00

(30) STRIPS

Species	Manufacture	Thickness (inches)	Width (inches)	Grade	
				Clear	No. 1 common
Red oak	Quartered	1	2 to 5½	$66.50	$44.50
White oak	Quartered	1	2 to 5½	88.50	61.00

(31) SOFT MAPLE (WHND)

Thickness (inches)	FAS	No. 1 common and selects or No. 1 common	No. 2 common	No. 3 common
1/2	$41.50	$34.00	$27.00	----------
5/8	47.00	38.00	30.00	----------
¾	52.50	42.50	33.00	----------
1	60.00	49.00	37.00	$23.50
1¼	63.00	52.50	39.00	24.50
1½	65.50	54.50	39.00	24.50
2	70.00	59.00	42.00	26.00
2½	75.00	64.50	42.00	----------
3	82.00	71.00	43.50	----------
4	92.50	85.00	----------	----------

2. In § 1382.64 (c) subparagraph (1) is amended to read as follows:

(c) *Maximum prices for dunnage.* (1) The maximum rail-delivered price for 1000 feet of dunnage lumber shall be as follows:

Delivered at:	*Maximum delivered price*
Baltimore, Md	$33.00
Beaumont, Tex	22.50
Boston, Mass	37.00
Charleston, S. C	23.50
Corpus Christi, Tex	23.50
Galveston, Tex	23.50
Gulfport, Miss	22.50
Houston, Tex	23.50
Jacksonville, Fla	23.50
Lake Charles, La	22.50

Delivered at:	*Maximum delivered price*
Mobile, Ala	$22.50
Morgan City, La	22.50
Newark, N. J	35.00
New Orleans, La	22.50
New York, N. Y	35.00
Pensacola, Fla	23.50
Philadelphia, Pa	34.00
Port Arthur, Tex	23.50
Portsmouth, Va	27.00
Savannah, Ga	23.50
Tampa, Fla	26.00

This amendment shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2116; Filed, Feb. 6, 1946; 11:43 a. m.]

PART 1389—APPAREL

[MPR 221[1], Amdt. 8]

MANUFACTURERS' PRICES FOR FALL AND WINTER KNITTED UNDERWEAR

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Maximum Price Regulation 221 is amended in the following respect:

Section 1389.304 (b) is hereby revoked.

This amendment shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2117; Filed, Feb. 6, 1946; 11:43 a. m.]

PART 1499—COMMODITIES AND SERVICES

[Rev. SR 11, Amdt. 69]

LUMBER INSPECTION SERVICES

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Section 1499.46 (f) of Revised Supplementary Regulation No. 11 to the GMPR is amended by adding the following new subparagraphs:

(2) Lumber inspection services (inspection, grading, certification and grademarking) when rendered by nonprofit organizations not engaged in the business of selling or distributing lumber.

(3) Laboratory testing services.

This amendment shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2119; Filed, Feb. 6, 1946; 11:43 a. m.]

[1] 7 F.R. 7318, 9615, 10719; 8 F.R. 13847, 4514; 9 F.R. 5174, 11758; 10 F.R. 8654.

PART 1405—FERRO ALLOYS

[RMPR 138,[1] Amdt. 2]

FERROMANGANESE AND MANGANESE ALLOYS AND METAL

A statement of the considerations involved in the issuance of this amendment, issued simultaneously herewith, has been filed with the Division of the Federal Register.

Revised Maximum Price Regulation No. 138 is amended in the following respects:

1. Section 7 is amended to read as follows:

SEC. 7. *Maximum prices for the conversion of manganese ore into ferromanganese.* The maximum price which any person may pay or receive for the service of converting manganese ore into ferromanganese shall be the difference between the maximum price of the ore received by the converter and the maximum price of the ferromanganese delivered to the person for whom the conversion service is performed.

This amendment shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator,

[F. R. Doc. 46-2115; Filed, Feb. 6, 1946; 11:43 a. m.]

TITLE 41—PUBLIC CONTRACTS

Chapter III—Committee on Purchases of Blind-made Products

PART 301—PURCHASES OF BLIND-MADE PRODUCTS

PRODUCTS MADE BY FEDERAL PRISON INDUSTRIES, INC., AND ALLOCATION PROCEDURE

Effective January 1, 1946, the regulations in this part are revised as follows:

1. Sections 301.5, 301.6, 301.7, 301.8 and 301.9 are renumbered, respectively, 301.6, 301.7, 301.8, 301.9 and 301.10.

2. A new § 301.5 is added, reading as follows:

§ 301.5 *Products made by Federal Prison Industries, Inc.* Section 7 of the act of May 27, 1930, 46 Stat. 392 (18 U.S.C. 744g), requires ordering offices to purchase those products made available by industries operated in Federal prisons. Where similar products are made by agencies for the blind, an agreement has been effected with Federal Prison Industries, Inc., that, when it receives an order for any such product which it is not in a position to supply, the original copy of the order, with a Federal Prison Industries, Inc. clearance, will be returned to the ordering office with the advice that the product is listed in the Schedule of Blind-made Products and that the duplicate copy of the order has been forwarded to the Committee on Purchases of Blind-made Products. This duplicate will be treated as a request for allocation and processed in the manner prescribed in § 301.6

3. Paragraphs (a) and (b) of renumbered § 301.6 are revised to read as follows:

§ 301.6 *Allocation procedure.* (a) Any ordering office requiring any commodity listed in the Schedule and which is not available from Federal Prison Industries, Inc. shall transmit a request for allocation specifying item numbers, quantities required, delivery points, and time within which delivery is needed. Requests for allocation shall be submitted in duplicate addressed in letter form to the Committee on Purchases of Blind-made Products, Procurement Division, Treasury Department, Seventh and D Streets SW., Washington 25, D. C.

(b) The Procurement Division will forward requests for allocation to National Industries or, in the discretion of the Director of Procurement, may furnish any Schedule item from Procurement Division stock, at the Schedule price plus any applicable Procurement Division surcharge. The Procurement Division will place a stamp of approval on each request for allocation, showing that it has taken the required action with respect thereto, and any request for allocation received by National Industries without such stamp shall be forwarded to the Procurement Division for approval.

(Sec. 2, 52 Stat. 1196; 41 U.S.C. 47)

Date: December 17, 1945.

[SEAL] ROBT. LEFEVRE,
Secretary.

[F. R. Doc. 46-2162; Filed, Feb. 6, 1946; 11:59 a. m.]

[1] 8 F.R. 8864, 10762.

TITLE 42—PUBLIC HEALTH

Chapter I—United States Public Health Service

PART 3—LEPERS

REVOCATION OF REGULATIONS

Regulations governing the care of lepers, United States Public Health Service, issued December 24, 1922, as amended January 15, 1924, and August 20, 1928, contained in Part 3, Title 42, Code of Federal Regulations, which have not been revoked heretofore, are hereby revoked.

(Sec. 215, Public Health Service Act, approved July 1, 1944 (58 Stat. 682))

Dated: February 1, 1946.

[SEAL] THOMAS PARRAN,
Surgeon General.

Approved: February 5, 1946.

MAURICE COLLINS,
Acting Federal Security Administrator.

[F. R. Doc. 46-2114; Filed, Feb. 6, 1946; 11:25 a. m.]

TITLE 46—SHIPPING

Chapter III—War Shipping Administration

[Rev. Gen. Order 24, Supp. 2]

PART 310—MERCHANT MARINE TRAINING

APPOINTMENT AND TRAINING OF CADET-MIDSHIPMEN IN UNITED STATES MERCHANT MARINE CADET CORPS

Effective as of February 1, 1946, General Order 24, Revised, is amended as follows:

1. Section 310.46 *Definitions* is amended by striking out paragraph (g) and redesignating paragraphs (h) and (i) as (g) and (h) respectively.

2. Paragraph (d) of § 310.47 *General requirements* is amended to read:

(d) No waivers for over or under age shall be granted except an allowance of three years to candidates, otherwise qualified, who have served on active duty in the armed forces or have served in the Merchant Marine for a period not less than one year and have been separated therefrom under honorable conditions.

3. Paragraph (b) of § 310.49 *Scholastic requirements* is amended to read:

(b) A candidate for appointment as cadet-midshipman (deck) or cadet-midshipman (engineer) must possess 15 units as shown below from accredited schools. Evidence showing completion of such units or showing that such units are scheduled to be completed by July 1 of the year scholastic tests are taken must be furnished by the candidate before an application will be approved.

REQUIRED GROUP (6 UNITS)

1 unit in algebra.
1 unit in geometry.
3 units in English.
1 unit in science (either physics, chemistry or general science).

OPTIONAL GROUP (9 UNITS)

In addition to the above required 6 units, a candidate must furnish evidence of the completion of at least 9 units of other subjects at accredited schools.

4. Paragraphs (c) and (d) of § 310.52 *Scholastic tests* are amended to read:

(c) Five points will be added to the grade received in competitive examination by any veteran of the armed forces or any unlicensed man in the United States Merchant Marine or the United States Maritime Service who has had at least one year active service and who has been separated therefrom under honorable conditions.

(d) A candidate who fails to receive sufficiently high grades in the competitive scholastic test may be permitted by the supervisor to take the next annual examination if he has not reached his 21st birthday (or his 24th birthday if a veteran) and remains otherwise qualified.

5. Section 310.53 *Required financing* is amended by striking out the figure "$100.00" and inserting in lieu thereof the figure "$150.00".

6. Paragraph (b) of § 310.56 *Appointments and assignments* is amended by striking out the following: ", or 10 deck and 10 engineer bimonthly,".

7. Section 310.57 *Liaison with local Selective Service Boards* is amended by striking out in paragraph (a) (2) the words "commanding officer" and inserting in lieu thereof the word "superintendent"; by striking out in paragraph (a) (3) the word "superintendent" and inserting in lieu thereof the word "superintendents"; and by striking out in said paragraph (a) (3) the words "by the commanding officers of".

8. Section 310.58 *Schools and courses* is amended by revising paragraphs (d) and (f) to read respectively:

(d) The course shall be, in general, one year at a cadet school followed by a year aboard merchant or training vessels, inclusive of authorized leave, and twenty-four months at the academy, inclusive of cruises in a training vessel and authorized leave, provided that:

(1) Cadet-midshipmen who reported to the academy as upper classmen before May 1, 1945, shall be eligible for graduation by July 1, 1946.

(2) Cadet-midshipmen who reported to the academy as upper classmen after May 1, 1945, shall be eligible for graduation during the last week of May 1947.

(3) Cadet-midshipmen, third class, attached to ships as of September 17, 1945, and those assigned to ships during balance of 1945, shall be detached during period April 1 to June 30, 1946, report to the officers of the district supervisors for examinations and if they are selected, report to the Academy as second classmen on July 1, 1946, and be eligible for graduation during the last week of May 1948.

(4) Cadet-midshipmen, fourth class, who reported to Cadet Schools July 1, 1945, and thereafter will be detached during May 1946 and assigned to ships as third classmen. This group will report to the Academy July 1, 1947, as second classmen and be eligible for graduation during the last week of May 1949.

(f) Lesson plans, instructors' manuals, class schedules, lesson assignments, quizzes, problems, and supplementary material shall be prepared by the Academic and Research Section of the United States Merchant Marine Cadet Corps assisted by the department heads of the Academy and the Cadet Schools as directed by the supervisor.

and § 310.58 is further amended by striking out in paragraph (g) the words "and sea courses".

9. Section 310.59 *Instructors and administrative personnel* is amended by inserting in paragraph (a) (1) the words "Civil Service or" before the words "contract basis"; and by striking out in paragraph (a) (2) the words "Educational Unit" and inserting in lieu thereof the words "Academic and Research Section".

10. Section 310.60 *General conduct* is amended by inserting before the period at the end of paragraph (b) the words "with recommendations for dismissal or request of resignation"; and by striking out in paragraph (d) the words "Educational Unit" and inserting in lieu thereof the words "Academic and Research Section".

11. Section 310.61 *Pay* is amended by revising paragraph (b) to read:

(b) Cadet-midshipmen will receive pay, while attached to merchant vessels, at the rate of $82.50 per month from their steamship company employers. In addition the steamship company employers shall pay the cadet-midshipmen such subsistence and room allowances in port, transportation allowances, and other bonuses or allowances as are paid to the licensed officers of the vessel to which the cadet-midshipmen are attached.

and § 310.61 is further amended by revising the second sentence in paragraph (e) to read: "In the event that a cadet-midshipman is dismissed from the Cadet Corps for disciplinary reasons, payment to such cadet-midshipman of all his earnings due and unpaid at the time of dismissal will be denied."

12. Paragraphs (b) (1) and (3) of § 310.63 *Transportation and travel expenses* are revised to read respectively:

(1) From New York, New Orleans, or San Francisco to the port where vessel of assignment is located, or to a place of special shore training, provided such transportation has not been paid by a steamship company or a shipyard and providing no leave is granted. Transportation requests and meal tickets for such travel will be issued by the district supervisor at New York, New Orleans, or San Francisco.

(3) Between ports and the academy or cadet schools and places of special shore training. Transportation requests and meal tickets for such travel will be issued by the superintendents.

13. Section 310.64 *Leave with pay* is amended to read:

§ 310.64 *Leave with pay.* Leave with pay from the government shall be as follows:

Fourth classmen: Christmas holidays—not more than 10 days; Easter—not more than 4 days; Annual—none.

Third classmen: Annual—not more than 4 weeks immediately after completion of fourth class courses.

Second classmen: Annual—not more than 4 weeks after passing examination at end of third class year and before reporting to Academy; Christmas holidays—not more than 10 days; Easter—not more than 4 days.

First classmen: Annual—not more than 4 weeks after passing examinations at end of second class year; Christmas holidays—not more than 10 days; Easter—not more than 4 days.

All cadet-midshipmen: Superintendents of cadet schools and academy and district supervisors may at their discretion grant leave with pay under the following conditions:

(1) Sick leave not to exceed 4 months,

(2) Emergency leave due to serious illness or injury, or death of very near relative—not to exceed 7 days.

Such other leave with pay may be granted as authorized by the supervisor.

14. Paragraphs (b) and (c) of § 310.65 *Uniforms, insignia, textbooks, equipment* are amended to read:

(b) The costs of uniforms, insignia, textbooks and other equipment shall be deducted from deposits and pay of fourth classmen who reported to cadet schools on and after September 1, 1945, and from the pay of second classmen report-

ing to the Academy on and after June 1, 1946.

(c) Effective for all cadet-midshipmen who reported to cadet schools on and after September 1, 1945, and while attached to the cadet schools and academy, towels shall be furnished by and laundered at the expense of cadet-midshipmen. Bed linen, spreads, pillow cases, blankets, pillows and mattresses shall be issued to all cadet-midshipmen on custody receipt while attached to Cadet Schools and the Academy, but the expense of laundering, cleaning and fumigation shall be borne by the cadet-midshipmen.

15. Section 310.69 *Resignations and dismissals* is amended as follows:

Subparagraphs (2) and (3) of paragraph (a) are stricken out and the following inserted in lieu thereof:

(2) If attached to a cadet school or the Academy, to the superintendents of those units.

The following subparagraph is added to paragraph (b):

(5) A cadet-midshipman may be dismissed or requested to resign for academic deficiencies or disciplinary reasons.

Paragraph (e) is amended to read:

(e) Recommendations of a responsible officer of the Cadet Corps for the dismissal of a cadet-midshipman must be supported by unanimous vote of an aptitude board consisting of three or more officers.

The following paragraphs are added:

(f) Cadet-midshipmen, fourth, second and first classes, recommended for dismissal or requested resignation shall be restricted to cadet schools or academy in a no-pay status until action is taken by the supervisor with the approval of the assistant deputy administrator.

(g) No person who has resigned or has been dismissed will be reappointed without the approval of the assistant deputy administrator upon recommendation of the supervisor.

16. Paragraph (a) of § 310.70 *Graduation; diploma* is amended by striking out the words "Educational Unit" and inserting in lieu thereof the words "Academic and Research Section".

(E.O. 9083, 9054, 9198; 3 C.F.R. Cum. Supp.)

[SEAL] GRANVILLE CONWAY,
Acting Administrator.

JANUARY 31, 1946.

[F. R. Doc. 46-2086; Filed, Feb. 6, 1946; 10:53 a. m.]

Notices

DEPARTMENT OF THE INTERIOR.

Office of the Secretary.

[Order 2161]

SUPERINTENDENT OF OSAGE INDIAN AGENCY

DELEGATION OF AUTHORITY WITH RESPECT TO OIL LEASES

JANUARY 31, 1946.

Pursuant to the provisions of section 5 of the act of May 11, 1938 (52 Stat. 347, 348; 25 U.S.C. sec. 396e), it is hereby ordered as follows:

I. The Superintendent of the Osage Indian Agency, or such other officer in charge of the Agency acting in his stead, may hereafter act in the following classes of matters, subject to right of appeal to the Secretary of the Interior as hereinafter provided:

(a) Approve oil leases made by the Osage Tribal Council such authority to be exercised as to each lease sale only after approval by the Secretary of the Interior of the schedule of bids covering the particular sale.

(b) Approve assignments of Osage oil leases now or hereafter in force, bonds and other instruments required for leases or assignments thereof, and the acceptance of the voluntary surrender of leases.

II. Any person aggrieved by any decision or order of the Superintendent approving, disapproving, or rejecting any lease, assignment, bond, or voluntary surrender of a lease, may appeal to the Secretary of the Interior within 30 days from the date of such decision or order.

III. This order shall become effective thirty days after publication in the FEDERAL REGISTER.

HAROLD L. ICKES,
Secretary of the Interior.

[F. R. Doc. 46-2074; Filed, Feb. 6, 1946; 9:54 a. m.]

CIVILIAN PRODUCTION ADMINISTRATION.

[C-424]

CONSUMERS TEXTILE MFG. CO., INC.

CONSENT ORDER

Consumers Textile Manufacturing Company, Inc., a corporation located at 312 E. 96th Street, New York, New York, is engaged in the business of manufacturing work clothes such as aprons, coats and coveralls. David Ullman is president of the corporation and its operating head. The corporation is charged by the Civilian Production Administration with wilful violations of Conservation Order M-317 and Priorities Regulation No. 3, in that (1) it accepted the delivery of 31,258 yards of cotton textile (osnaburg) which material it had acquired by use of preference ratings AA2X, and it thereafter used this material for purposes other than those for which such preference ratings were assigned and authorized; (2) it knowingly purported to apply or extend preference ratings of AA2X, assigned by Conservation Order M-317 and Supplementary Order M-317-a, to purchase orders covering approximately 225,000 yards of cotton textile (osnaburg) without being entitled to do so. The violations in question began on September 6, 1944 and continued to March 30, 1945. Consumers Textile Manufacturing Company, Inc., admits the violations charged, acknowledges that it has on hand and in its inventory 90,000 yards of the above-mentioned osnaburg, and has consented to the issuance of this order.

Wherefore, upon the agreement and consent of Consumers Textile Manufacturing Company, Inc., the Regional Compliance Manager and the Regional Attorney and upon the approval of the Compliance Commissioner, *It is hereby ordered,* That:

(a) Consumers Textile Manufacturing Company, Inc., shall not sell, deliver, or use the 90,000 yards of osnaburg which it has in inventory except in accordance with written instructions and authority from the Civilian Production Administration.

(b) Consumers Textile Manufacturing Company, Inc., shall promptly consummate any sale or complete any use of the said osnaburg which may be authorized and approved by the Civilian Production Administration.

(c) Consumers Textile Manufacturing Company, Inc., shall not sell, deliver, or use the said osnaburg for any purpose which may be contrary to the provisions of this order.

(d) Nothing contained in this order shall be deemed to relieve Consumers Textile Manufacturing Company, Inc., from any restriction, prohibition, or provision containd in any other order or regulation of the Civilian Production Administration except insofar as the same may be inconsistent with the provisions hereof.

(e) The restrictions and prohibitions contained herein shall apply to Consumers Textile Manufacturing Company, Inc., its successors and assigns or persons acting on its behalf. Prohibitions against the taking of any action include the taking indirectly as well as directly of any such action.

Issued this 5th day of February 1946.

CIVILIAN PRODUCTION ADMINISTRATION,
By J. JOSEPH WHELAN,
Recording Secretary.

[F. R. Doc. 46-2071; Filed, Feb. 5, 1946; 4:49 p. m.]

FEDERAL COMMUNICATIONS COMMISSION.

WDSM, INC.[1]

PROPOSED TRANSFER OF CONTROLS

The Commission hereby gives notice that on January 17, 1946, there was filed with it an application (B4-TC-474) for its consent under section 310 (b) of the Communications Act (47 USCA 310) to the proposed transfer of control of WDSM, Inc. (licensee of standard broadcast station WDSM, Superior, Wisconsin), from James J. Conroy, Roland C. Buck, George W. Welles, Jr., Victoria B. Conroy, and Joseph H. Weisberg to Ridson, Inc., 55 East Fourth Street, St. Paul, Minnesota. The proposed transfer of control of the above licensee is based upon a contract entered into between the selling stockholders and Robert Ridder on December 13, 1945, pursuant to which the stockholders proposed to sell to Ridder all of the outstanding stock of WDSM, Inc. for the sum of $15,000 plus the amount of cash on hand, bills and accounts receivable at closing, the net proceeds of federal and state tax refunds and minus any indebtedness or liability of licensee for taxes or otherwise existing or accrued at closing. The price, however, is not to be increased by any amount of cash, bills or accounts receivable arising out the sale of fixed assets after December 10, 1945. Of the pur-

[1] Section 1.364, Part 1, Rules of Practice and Procedure.

chase price $10,000 is to be placed in escrow with the Northern National Bank of Duluth, Minnesota, with the stock certificates and resignations of officials. The balance of the purchase price is to be paid to the escrowee for the selling stockholders within ten days of notice of approval of the matter by the Commission. Upon such notice the bank is to deliver the certificates and resignations to purchaser and the consideration to the selling stockholders. According to the contract James J. Conroy, Roland C. Buck and George W. Welles, Jr., each covenant that they will not for a period of three years from the transfer engage or be financially interested in radio or television broadcasting from any station under contract to broadcast programs of the American Broadcasting Company and located at Duluth, Minnesota or Superior, Wisconsin or within 50 miles thereof. The contract may be terminated by a majority in interest of the selling stockholders if the application is not granted within six months from December 13, 1945. The contract was assigned by Ridder to Ridson, Inc. on December 14, 1945. Further details as to the arrangements between the parties or pertaining to the application may be determined from an examination of the application and associated papers on file at the offices of the Commission.

In the Commission's decision of September 6, 1945, granting the application for transfer of control of the Crosley Corporation (Docket No. 6767), it was announced that public hearings would be held to consider proposed new rules and regulations for the handling of assignment and transfer applications including provision for public notice by the applicant and the Commission of the filing of such applications and pertinent details in cases where a controlling interest is involved. Thereafter, on October 3, 1945, the Commission also gave public notice (10 F.R. 12926) that pending the issuance of such proposed new rules, hearing thereon, and final adoption, consideration of such applications would be deferred unless applicants desired to follow the procedure proposed in the Crosley decision, and supplement their applications so as to come within the framework of the announced procedure including the provision for public notice. Subsequently, on December 13, 1945, the Commission adopted tentatively a proposed rule of procedure to govern the handling of assignment and transfer applications including the character of notice required of applicants in such cases. Pursuant thereto the Commission was advised by letter of January 16 and orally on January 29, 1946, that notice would immediately be inserted in the "Evening Telegram" a newspaper of general circulation in the City of Superior, Wisconsin, concerning the proposed transfer of control of the licensee.

In accordance with the procedure proposed in the Crosley decision and that announced in the Commission's release and the proposed rule no action will be had for a period of 60 days from January 30, 1946.

(Sec. 310 (b), 48 Stat. 1086; 47 U.S.C. 310 (b))

[SEAL] FEDERAL COMMUNICATIONS COMMISSION,
T. J. SLOWIE,
Secretary.

[F. R. Doc. 46-2161; Filed, Feb. 6, 1946; 11:59 a. m.]

INTERSTATE COMMERCE COMMISSION.

[S. O. 396, Special Permit 27]

RECONSIGNMENT OF POTATOES AT CINCINNATI, OHIO

Pursuant to the authority vested in me by paragraph (f) of the first ordering paragraph of Service Order No. 396 (10 F.R. 15008), permission is granted for any common carrier by railroad subject to the Interstate Commerce Act:

To disregard entirely the provsions of Service Order No. 396 insofar as it applies to the reconsignment at Cincinnati, Ohio, February 1, 1946, by F. E. Baldwin & Company of car PFE-35662, potatoes, now on the Pennsylvania Railroad, to Baltimore, Maryland (PRR).

The waybill shall show reference to this special permit.

A copy of this special permit has been served upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and notice of this permit shall be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., this 1st day of February 1946.

V. C. CLINGER,
Director,
Bureau of Service.

[F. R. Doc. 46-2082; Filed, Feb. 6, 1946; 10:51 a. m.]

[S. O. 440, Amdt. 1]

UNLOADING OF COMMODITIES AT LAREDO, TEX.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 4th day of February, A. D. 1946.

Upon further consideration of Service Order No. 440 (11 F.R. 1175), and good cause appearing therefor: *It is ordered,* That:

Service Order No. 440 be, and it is hereby, amended by substituting the following paragraph (a) for paragraph (a) thereof:

Commodities at Laredo, Texas, be unloaded. (a) The International-Great Northern Railroad Company (Guy A. Thompson, Trustee), its agents or employees, shall unload forthwith the following car now on hand at Laredo, Texas:

Consignee: Order of Commission Federal de Electricidad c/o Francisco Pasquel and Company, NP 30923 containing galvanized strand wire.

It is further ordered, That this order shall become effective immediately; that a copy of this order and direction shall be served upon the International-Great Northern Railroad Company (Guy A. Thompson, Trustee), and upon the Association of American Railroads, Car Service Division, as Agent of the Railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission, at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 46-2077; Filed, Feb. 6, 1946; 10:51 a. m.]

[S. O. 442, Amdt. 1]

UNLOADING OF FERTILIZER AT HOUSTON, TEX.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 4th day of February, A. D. 1946.

Upon further consideration of Service Order No. 442 and good cause appearing therefor: *It is ordered,* That:

Service Order No. 442 be, and it is hereby, amended by substituting the following paragraph (a) for paragraph (a) thereof:

Fertilizer at Houston, Texas, be unloaded. (a) The Missouri-Kansas-Texas Railroad Company of Texas, its agents or employees, shall unload forthwith the following car loaded with fertilizer now on hand at Houston, Texas, consigned to the French Supply Council: TP 40832.

It is further ordered, That this order shall become effective immediately; that a copy of this order and direction shall be served upon the Missouri-Kansas-Texas Railroad Company of Texas, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL,
Secretary.

[F. R. Doc. 46-2078; Filed, Feb. 6, 1946; 10:51 a. m.]

[S. O. 443-A]

UNLOADING OF MACHINERY AT BROWNSVILLE, TEX.

At a session of the Interstate Commerce Commission, Division 3, held at its

office in Washington, D. C., on the 4th day of February, A. D. 1946.

Upon further consideration of Service Order No. 443, and good cause appearing therefor; *It is ordered*, That:

(a) Service Order No. 443, *Machinery at Brownsville, Texas, be unloaded*, be, and it is hereby, vacated and set aside (40 Stat. 101, sec. 402, 418; 41 Stat. 476, sec. 4; 54 Stat. 901, 911; 49 U.S.C. 1 (10)–(17), 15 (2))

It is further ordered, That this order shall become effective at 12:01 a. m., February 7, 1946; that a copy of this order and direction shall be served upon the St. Louis, Brownsville and Mexico Railway Company (Guy A. Thompson, Trustee), and upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 46–2079; Filed, Feb. 6, 1946; 10:51 a. m.]

[No. 29468]

REFRIGERATOR CARS; BASIS OF CAR-HIRE

At a general session of the Interstate Commerce Commission, held at its office in Washington, D. C., on the 5th day of February A. D. 1946.

The Commission having under consideration the matter of car-hire and particularly the mileage basis of car-hire used by, and the compensation paid by common carriers by railroad for use of refrigerator cars not owned by the carrier using them (and whether or not owned by another carrier);

It is ordered, That a proceeding of inquiry and investigation be, and it is hereby, instituted by the Commission upon its own initiative into and concerning the matter of the mileage basis used by, and the compensation paid by common carriers by railroad and the terms of existing contracts, agreements and arrangements for the use of refrigerator cars not owned by the carrier using them (and whether or not owned by another carrier) with a view to establishing reasonable rules, regulations, and practices with respect to the use, control, supply, movement, exchange, and return of such cars, including the compensation to be paid and other terms of any contract, agreement, or arrangement for the use of such cars.

It is further ordered, That all common carriers by railroad subject to the Interstate Commerce Act, the Railway Express Agency, and all other persons owning or leasing refrigerator cars to common carriers by railroad engaged in interstate and foreign commerce, be, and they are hereby, made respondents to this proceeding; that a copy of this order be served upon each of said respondents; and that notice of this proceeding be given to the general public by depositing a copy of this order in the Office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

And it is further ordered, That this proceeding be assigned for hearing in Washington, D. C., at the offices of the Interstate Commerce Commission before Chairman Barnard and Examiner F. L. Sharp February 20, 1946, at 10 a. m., e. s. t.

By the Commission.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 46–2084; Filed, Feb. 6, 1946; 10:51 a. m.]

[S. O. 445–A]

UNLOADING OF COMMODITIES AT NEW ORLEANS, LA.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 4th day of February A. D. 1946.

Upon further consideration of Service Order No. 445 and good cause appearing therefor: *It is ordered*, That:

(a) Service Order No. 445, *Commodities at New Orleans, Louisiana, be unloaded*, be, and it is hereby, vacated and set aside. (40 Stat. 101, sec. 402, 418; 41 Stat. 476, sec. 4; 54 Stat. 901, 911; 49 U.S.C. 1 (10)–(17), 15 (2))

It is further ordered, That this order shall become effective at 12:01 a. m., February 6, 1946; that a copy of this order and direction shall be served upon the New Orleans and Northeastern Railroad Company, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 46–2080; Filed, Feb. 6, 1946; 10:51 a. m.]

[S. O. 448, Amdt. 1]

UNLOADING OF COMMODITIES AT BELLE CHASSE, LA.

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 4th day of February, A. D. 1946.

Upon further consideration of Service Order No. 448, and good cause appearing therefor: *It is ordered*, That:

Service Order No. 448, be, and it is hereby, amended by eliminating the following cars from paragraph (a) thereof;

Initials and No.	*Contents*
B&O, 272493	Soda ash.
UP, 187605	Do.
ATSF, 210125	Do.
CBQ, 28191	Do.

It is further ordered, That this amendment shall become effective at 12:01 a. m., February 5, 1946; that copies of this order and direction shall be served upon the New Orleans and Lower Coast Railroad Company, and upon the Association of American Railroads, Car Service Division, as agent of the railroads subscribing to the car service and per diem agreement under the terms of that agreement; and that notice of this order be given to the general public by depositing a copy in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director, Division of the Federal Register.

By the Commission, Division 3.

[SEAL] W. P. BARTEL, *Secretary.*

[F. R. Doc. 46–2081; Filed, Feb. 6, 1946; 10:51 a. m.]

[No. 29468]

REFRIGERATOR CARS; BASIS OF CAR-HIRE

FEBRUARY 5, 1946.

The Commission has this day entered an order instituting a proceeding of inquiry and investigation upon its own initiative into and concerning the matter of the mileage basis used by and the compensation paid by common carriers by railroad for the use of refrigerator cars.

This proceeding has been assigned for initial hearing in Washington, D. C., at the office of the Interstate Commerce Commission before Chairman George M. Barnard and Examiner F. L. Sharp, February 20, 1946, at 10:00 a. m.

At that hearing the Commission proposes to hear the parties only upon the reasonableness of the present rules, regulations, practices and contracts by which compensation for refrigerator cars is paid only on a mileage basis. The object of the present hearing will be to arrive at a method of compensation which will promote better utilization of refrigerator cars. Written statements may be received in evidence, subject to the Commission's general rules of practice.

Oral argument before the Commission will be had immediately following the hearing.

[SEAL] G. W. LAIRD, *Acting Secretary.*

[F. R. Doc. 46–2083; Filed, Feb. 6, 1946; 10:51 a. m.]

OFFICE OF DEFENSE TRANSPORTATION.

CERTAIN TOWING AND TRANSPORTATION COMPANIES OPERATING IN NEW YORK HARBOR AND CONTIGUOUS WATERS

NOTICE AND ORDER OF POSSESSION, CONTROL, AND OPERATION OF THE TRANSPORTATION SYSTEMS, PLANTS, AND FACILITIES

To each company named in Executive Order 9693 of the President of the United States dated February 5, 1946 (*supra*), concerning the possession, control, and

operation of the transportation systems, plants, and facilities of certain towing and transportation companies operating in New York Harbor and contiguous waters:

1. You are hereby notified that, by order of the President of the United States (Executive Order 9693, *supra*), possession and control of your transportation system, including all real and personal property, plants, facilities, and other assets, used or useful in connection with the operation of such system, are hereby taken and assumed by the Director of the Office of Defense Transportation as of 12:01 a. m. on February 6, 1946. Possession and control is not taken of any of your property, plants, facilities, or other assets, which are not used or useful in the operation of your transportation system.

2. The purpose of possession, control, and operation of your transportation system and properties by the United States pursuant to said Executive order is to assure the maintenance of an effective system of transportation for military and civilian movements.

3. Effective this date, Laurence C. Turner is hereby appointed Federal Manager of the transportation systems and properties taken hereunder, with full authority, subject to my direction:

(a) To possess, control, and operate, or arrange for the operation of the systems and properties taken hereunder in such manner as may be necessary to carry out the provisions, and to accomplish the purposes of the Executive order, through or with the aid of such public or private agencies, persons, or corporations as he may designate;

(b) Subject to the provisions of the Executive order, to manage or operate, or to arrange for the management or operation of, said systems and properties under such terms and conditions of employment as he deems advisable and proper;

(c) From time to time, to return to you such real or personal property, or other assets, as he determines to be unnecessary to the operation of your transportation system; and

(d) To request the Secretary of War and the Secretary of the Navy or such persons as they may designate, to furnish protection for persons employed or seeking employment with the transportation systems of which possession is taken hereunder and the properties of such systems, and to furnish equipment, manpower, and other facilities or services necessary to carry out the provisions, and to accomplish the purposes of said Executive order.

4. Copies of this notice and order shall be posted by you in your principal place of business, and in each office, terminal, and vessel maintained in connection with the operation of your transportation system.

Issued at Washington, D. C., this 5th day of February 1946.

J. M. JOHNSON,
Director,
Defense Transportation.

[F. R. Doc. 46-2076; Filed, Feb. 6, 1946; 10:33 a. m.]

OFFICE OF PRICE ADMINISTRATION.

[Order 98 Under Order 375 of 3 (b)]

S & S CONE CORP.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith, it is ordered that:

Authorization of maximum prices governing sales of "Continental Nut Crunch", a confectionery item manufactured by S & S Cone Corporation, New York, New York. (a) The maximum prices for the indicated sales below of "Continental Nut Crunch", a confectionery item manufactured by S & S Cone Corporation, 537 Tiffany Street, Bronx, New York, in accordance with its formula contained in its price application of December 6, 1945, shall be:

(1) From S & S Cone Corporation to wholesalers, chain stores and department stores per pound, delivered, in 5-lb. boxes	$0.56
(2) From wholesalers to retailers per pound, delivered	.70
(3) From retailers to consumers per pound	.93
(4) From chain stores and department stores to consumers per pound	.84

(b) The maximum prices established in this order are the highest prices for which "Continental Nut Crunch" may be sold by the respective sellers. All sellers on sales of this item shall reduce the above appropriate maximum prices by applying their customary discounts, allowances and price differentials which have been applied to sales of other comparable confectionery items.

(c) S & S Cone Corporation shall mail or otherwise supply to its purchasers at the time, or prior to the first delivery to such purchaser, a written notice as follows:

The Office of Price Administration has authorized us to sell our "Continental Nut Crunch" packed in 5-lb. boxes, to wholesalers, chain stores and department stores, at a maximum price of $0.56 per pound, delivered. Wholesalers are authorized to sell this item to retailers at a maximum price of 70¢ per pound, delivered. Chain stores and department stores are authorized to sell this item to consumers, at a maximum price of 84¢ per pound. On sales of this item all sellers are required to reduce their maximum prices by applying their customary discounts, allowances, and price differentials which have been applied to sales of comparable confectionery items.

(d) S & S Cone Corporation for a period of at least ninety days shall place in or on each box distributed through a wholesaler, a notice as follows:

The Office of Price Administration has authorized wholesalers to sell this five pound box of "Continental Nut Cruch" to retailers at a maximum delivered price of 70¢ per pound. Retailers are authorized to sell this item to consumers at a maximum price of 93¢ per pound.

(e) This order may be revoked or amended at any time by the Price Administrator.

(f) This Order No. 98 shall become effective February 6, 1946.

NOTE: This action has the prior written approval of the Secretary of Agriculture (10 F.R. 8419, 9419, 10961).

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2042; Filed, Feb. 5, 1946; 11:53 a. m.]

[SO 119, Order 68]

HEDMAN CO.

ADJUSTMENT OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith, and filed with the Division of the Federal Register, and pursuant to Supplementary Order No. 119, it is ordered:

(a) *Manufacturer's maximum prices.* The Hedman Company, of 1158 West Armitage Avenue, Chicago 14, Illinois, may increase its maximum prices in effect immediately prior to the issuance of this order for sales of stenographs, check protectors and sign-o-meters, which it manufactures by 11.4 percent, provided the amount of such increase is separately stated as an adjustment charge on each invoice or other evidence of sale.

(b) *Maximum prices of purchasers for resale.* Persons purchasing the articles referred to in paragraph (a) for resale may not increase their maximum prices for their resales of those articles by reason of the price increase permitted manufacturer by this order.

(c) *Notification.* At the time of, or prior to the first invoice to a purchaser for resale, showing a maximum price adjusted pursuant to the provisions of this order, the manufacturer shall notify the purchaser in writing that he may not increase his maximum prices for his resales in effect at the issuance date of this order by reason of the adjustment permitted the manufacturer. If such purchaser for resale did not have a maximum price for such resale at that time, the manufacturer must notify him in writing that he may not take the amount of the adjustment charge into consideration in calculating his maximum resale price under the regulation applicable to his sales. This notice may be given in any convenient form.

(d) *Revocation or amendment.* This order may be revoked or amended by the Price Administrator at any time.

(e) *Effective date.* This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2054; Filed, Feb. 5, 1946; 11:52 a. m.]

[SO 142, Order 20]

ACME ELECTRIC & MFG. CO.

ADJUSTMENT OF MAXIMUM PRICES

Order 20 under Supplementary Order No. 142; adjustment provisions for sales of industrial machinery and equipment; Acme Electric & Manufacturing Co. Docket No. 6083-SO-142-136-27.

For the reasons set forth in an opinion issued simultaneously herewith and filed

with the Division of the Federal Register and pursuant to section 2 of Supplementary Order 142; *It is ordered:*

(a) The maximum prices for sales by the Acme Electric & Manufacturing Company, Cuba, New York, of its radio transformers and certain specialty transformers shall be as follows:

The manufacturer shall compute maximum prices for sales of such radio transformers under the provisions of section 19 (i) (3) of Revised Maximum Price Regulation 136, substituting the figure 38.4% for the percentage applicable to the part being priced which is set forth in that section.

The manufacturer shall compute sales of the specialty transformers listed below in accordance with the provisions of Order No. 572 (Specialty Transformers Adjustment of Maximum Prices) under Revised Maximum Price Regulation 136 by substituting for the figure 14.4% in paragraph (b) (1) of that order the figure of 19.2% for air-cooled and industrial transformers and the figure 21.5% for all specialty transformers except fluorescent ballast, gas tube sign, air-cooled and industrial transformers. This order does not apply to fluorescent transformers.

(b) The maximum prices for sales by resellers of the items described in paragraph (a) shall be determined as follows:

The reseller shall increase for radio transformers the maximum net prices he had in effect to a purchaser of the same class, just prior to the issuance of this order, by the same percentage by which his net invoiced cost has been increased by reason of this order.

The reseller shall increase for specialty transformers the maximum net prices he had in effect to a purchaser of the same class, just prior to the issuance of this order, by the same amount, in dollars and cents, by which his net invoiced cost has been increased by reason of this order.

(c) The Acme Electric & Manufacturing Company shall notify each person who buys radio transformers for resale of the percentage increase which this order permits the reseller to increase his maximum net prices, and shall notify each person who buys for resale the specialty transformers listed in paragraph (a) of the dollar-and-cents amount by which this order permits the reseller to increase his maximum net prices. A copy of each notice shall be filed with the Machinery Branch, Office of Price Administration, Washington 25, D. C.

(d) All requests not granted herein are denied.

This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2056; Filed, Feb. 5, 1946; 11:53 a. m.]

[MPR 120, Order 1582]

BRADFORD COAL CO. ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No. 120; *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net ton for the indicated uses and shipments as set forth herein. All are in District No. 1. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classifications of the respective size groups. The location of each mine is given by county and state. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad locomotive fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.212 and all other provisions of Maximum Price Regulation No. 120.

BRADFORD COAL CO., BIGLER, PA., AURORA NO. 10 MINE, D SEAM, MINE INDEX NO. 5660, CLEARFIELD COUNTY, PA., SUBDISTRICT 7, RAIL SHIPPING POINT, ROWLES, PA., STRIP MINE

	Size group Nos.				
	1	2	3	4	5
Rail and truck price classification	F	F	F	F	F
Rail shipment [1]	335	335	335	305	305
Railroad locomotive fuel [1]	320	320	305	295	295
Truck shipment	360	335	335	325	315

[1] Subject to the provisions of Order No. 1438 under MPR 120.

CAMBRIA-CLEARFIELD MINING CO., C/O REMBRANT PEALE JR., ST. BENEDICT, PA., AUGHENBAUGH MINE, D SEAM, MINE INDEX NO. 5634, CLEARFIELD COUNTY, PA., SUBDISTRICT 7, RAIL SHIPPING POINT, ROWLES, PA., STRIP MINE

Rail and truck, price classification	F	F	F	F	F
Rail shipment [1]	335	335	335	305	305
Railroad locomotive fuel [1]	320	320	305	295	295
Truck shipment [1]	360	335	335	325	315

[1] Subject to the provisions of Order No. 1438 under MPR 120.

MIDDLE PENNSYLVANIA COAL CORP., MADERA, PA., HEGARTY MINE, A SEAM, MINE INDEX NO. 5670, CLEARFIELD COUNTY, PA., SUBDISTRICT 13, RAIL SHIPPING POINT, MADERA, PA., STRIP MINE

Rail and truck price classification	H	H	H	H	H
Rail shipment [1]	330	330	310	285	285
Railroad locomotive fuel	320	320	305	295	295
Truck shipment [1]	350	330	330	315	305

[1] Subject to the provisions of Order No. 1548 under MPR 120, as amended.

THE NEW YORK CENTRAL RAILROAD CO. COAL MINING DEPT., INDIANA, PA., GAZZAM NO. 1-D MINE, D SEAM, MINE INDEX NO. 5631, CLEARFIELD COUNTY, PA., SUBDISTRICT 13, RAIL SHIPPING POINT, CARNWATH, PA., STRIP MINE

Rail and truck price classification	C	C	C	C	C
Rail shipment	370	365	345	330	330
Railroad locomotive fuel	320	320	305	295	295
Truck shipment	375	350	350	340	330

NEW YORK CENTRAL RAILROAD CO. COAL MINING DEPT., INDIANA, PA., GAZZAM NO. 1-E MINE, E SEAM, MINE INDEX NO. 5632, CLEARFIELD COUNTY, PA., SUBDISTRICT 13, RAIL SHIPPING POINT, CARNWATH, PA., STRIP MINE

Rail and truck price classification	F	F	F	F	F
Rail shipment	335	335	335	305	305
Railroad locomotive fuel	320	320	305	295	295
Truck shipment	360	335	335	325	315

SOMERSET CONSTRUCTION CO., 1301 TOWSON ST., BALTIMORE 30, MD., SOMERSET NO. 3 MINE, PITTSBURGH SEAM, MINE INDEX NO. 5629, SOMERSET COUNTY, PA., SUBDISTRICT 41, RAIL SHIPPING POINT, NIVERTON, PA., STRIP MINE

Rail and truck price classification	F	F	F	F	F
Rail shipment	335	335	335	305	305
Railroad locomotive fuel	320	320	305	295	295
Truck shipment	360	335	335	325	315

SPRINGFIELD COAL CORP., ST. BENEDICT, PA., SPRINGFIELD NO. 4 MINE, B SEAM, MINE INDEX NO. 5664, CAMBRIA COUNTY, PA., SUBDISTRICT 24, RAIL SHIPPING POINT, SPANGLER, PA., DEEP MINE

Rail and truck price classification	D	D	D	D	D
Rail shipment	395	375	370	360	360
Railroad locomotive fuel	355	355	340	330	330
Truck shipment	405	380	380	370	360

WILLIAMS COAL MINING CO., RAMEY, PA., QUEEN NO. 1 MINE, D SEAM, MINE INDEX NO. 5646, CLEARFIELD COUNTY, PA., SUBDISTRICT 19, RAIL SHIPPING POINT, BECCARIA, PA., STRIP MINE

Rail and truck price classification	B	B	B	B	C
Rail shipment [1]	380	370	350	340	330
Railroad locomotive fuel [1]	320	320	305	295	295
Truck shipment [1]	380	355	355	345	330

[1] Subject to the provisions of order No. 1548 MPR 120 as amended.

This order shall become effective February 6, 1946.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2034; Filed, Feb. 5, 1946; 11:54 a. m.]

[MPR 120, Order 1583]

K. R. BIXBY ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No. 120; *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net

ton for the indicated uses and shipments as set forth herein. All are in District No. 10. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classification of the respective size groups. The location of each mine is given by county and state. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad locomotive fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.221 and all other provisions of Maximum Price Regulation No. 120.

K. R. BIXBY, c/o ASSOCIATED COALS, INC., 310 S. MICHIGAN AVE., CHICAGO (4), ILL., DU QUOIN STORAGE PILE MINE, NO. 6 SEAM, MINE INDEX NO. 2027, PERRY COUNTY, ILL., DU QUOIN SUBDISTRICT, RAIL SHIPPING POINT, DU QUOIN, ILL., STORAGE PILE MINE

Size group No. 14: Rail shipments for all uses 195

PRODUCERS COAL CO., EQUALITY, ILL., STONEFORT MINE, NO. 2 SEAM, MINE INDEX NO. 2025, SALINE COUNTY, ILL., RAIL SHIPPING POINT, STONEFORT, ILL., STRIP MINE, MAXIMUM RAIL PRICE GROUP NO. 2, SOUTHERN SUBDISTRICT, MAXIMUM TRUCK PRICE GROUP NO. 17-B-1

	Size group Nos.											
	1	2, 3	4, 5	6	7	8	9 to 12 incl.	13, 14	15	16	26, 27	29
Rail shipments for all uses	335	335	305	305	(1)	305	260	220	165	115	240	210
Truck shipment	325	325	310	300	290	270	275	245	180	------	260	------

[1] Size group No. 7, rail shipped coal: R. R. Locomotive fuel 265, for all others used 265.

PRODUCERS COAL CO., CARRIER MILLS, ILL., CARRIER MILLS MINE, NO. 5 SEAM, MINE INDEX NO. 2026, SALINE COUNTY, ILL., RAIL SHIPPING POINT, CARRIER MILLS, ILL., STRIP MINE, MAXIMUM RAIL PRICE GROUP NO. 2, SOUTHERN SUBDISTRICT, MAXIMUM TRUCK PRICE GROUP NO. 17-B-1

Rail shipments for all uses	335	335	305	305	(1)	305	260	220	165	115	240	210
Truck shipment	325	325	310	300	290	270	275	245	180	------	260	------

[1] Size group No. 7, rail shipped coal: locomotive fuel 265, for all others used 265.

DALE THRUSH, SMITHFIELD, ILL., SMITHFIELD MINE, NO. 1 SEAM, MINE INDEX NO. 2024, FULTON COUNTY, ILL., STRIP MINE, MAXIMUM TRUCK PRICE GROUP NO. 6-B, SECTION 4

	Size group Nos.										
	1	2, 3	4, 5	6	7	8	9 to 12 inc.	13, 14	15	26, 27	29
Truck shipment	345	340	325	315	275	255	260	210	155	225	------

TRUAX-TRAER COAL CO., 310 S. MICHIGAN AVE., CHICAGO, ILL., BURNING STAR MINE, NO. 5 AND NO. 6 SEAM,[1] MINE INDEX NO. 49,[1] JACKSON COUNTY, ILL., RAIL SHIPPING POINT, HALLIDAYSBORO, ILL., DEEP AND STRIP MINE, MAXIMUM RAIL PRICE GROUP NO.[1] DU QUOIN SUBDISTRICT, MAXIMUM TRUCK PRICE GROUP NO.[1]

Size group Nos.: 1, 2, 3, 4, 5, 6, 7, 8, 9 to 12, inc., 13, 14, 15, 16, 26, 27, 29.
Rail shipments for all uses;[1] truck shipment;[1] railroad locomotive fuel.[1]

[1] Previously established.
[2] Change of seam designation.

This order shall become effective February 6, 1946.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2035; Filed, Feb. 5, 1946; 11:54 a. m.]

[MPR 120, Order 1584]

FIFE COAL CO. ET AL.

ESTABLISHMENT OF MAXIMUM PRICES AND PRICE CLASSIFICATIONS

For the reasons set forth in an accompanying opinion, and in accordance with § 1340.210 (a) (6) of Maximum Price Regulation No. 120; *It is ordered:*

Producers identified herein operate named mines assigned the mine index numbers, the price classifications and the maximum prices in cents per net ton for the indicated uses and shipments as set forth herein. All are in District No. 3. The mine index numbers and the price classifications assigned are permanent but the maximum prices may be changed by an amendment issued after the effective date of this order. Where such an amendment is issued for the district in which the mines involved herein are located and where the amendment makes no particular reference to a mine or mines involved herein, the prices shall be the prices set forth in such amendment for the price classifications of the respective size groups. The location of each mine is given by county and state. The maximum prices stated to be for truck shipment are in cents per net ton f. o. b. the mine or preparation plant and when stated to be for rail shipment or for railroad fuel are in cents per net ton f. o. b. rail shipping point. In cases where mines ship coals by river the prices for such shipments are those established for rail shipment and are in cents per net ton f. o. b. river shipping point. However, producer is subject to the provisions of § 1340.214 and all other provisions of Maximum Price Regulation No. 120.

FIFE COAL CO., 721 COLLEGE AVE., MORGANTOWN, W. VA., GANS MINE, PITTSBURGH SEAM, MINE INDEX NO. 2189, MONONGALIA COUNTY, W. VA., RAIL SHIPPING POINT, MORGANTOWN, W. VA., DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 3

	Size group Nos.				
	1	2	3	4	5
Price classification	F	F	F	F	F
Rail shipment and railroad fuel	308	308	288	283	273
Truck shipment	343	343	313	308	298

GREGORY & POOLE, LUMBERPORT, W. VA., GREGORY NO. 3 MINE, PITTSBURGH SEAM, MINE INDEX NO. 2158, HARRISON COUNTY, W. VA., RAIL SHIPPING POINT, WOLF SUMMIT, W. VA., STRIP MINE, MAXIMUM TRUCK PRICE GROUP NO. 3

Price classification	F	F	F	F	F
Rail shipment and railroad fuel	308	308	288	283	273
Truck shipment	343	343	313	308	298

KONYA COAL CO., JACOBS BLDG. BOX 328, FAIRMONT, W. VA., JOYCE MINE, PITTSBURGH SEAM, MINE INDEX NO. 2188, MARION COUNTY, W. VA., RAIL SHIPPING POINT, ALICE MINE SIDING, W. VA., DEEP MINE, MAXIMUM TRUCK PRICE GROUP NO. 3

Price classification	F	F	F	F	F
Rail shipment and railroad fuel	308	308	288	283	273
Truck shipment	343	343	313	308	298

This order shall become effective February 6, 1946.

(56 Stat. 23, 765; 57 Stat. 566; Pub. Law 383, 78th Cong.; E.O. 9250, 7 F.R. 7871; E.O. 9328, 8 F.R. 4681)

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2036; Filed, Feb. 5, 1946; 11:54 a. m.]

[MPR 188, Order 4844]

H. R. BASFORD CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.157 of Maximum Price Regulation No. 188, and section 6.4 of Second Revised Supplementary Regulation No. 14; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by H. R. Basford Company of 425 Second Street, San Francisco 7, Calif.

(1) For all sales and deliveries to the following classes of purchasers by any person, the maximum prices are those set forth below:

Article	Model No.	Maximum prices for sales to—			
		Wholesalers (jobbers)	Chain stores	Retailers other than chain stores	Consumers
Gripso vise pliers, 8"...	20	*Each* $1.20	*Each* $1.44	*Each* $1.60	*Each* $2.40

These maximum prices are for the articles described in the manufacturer's reports filed December 20, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. They are f. o. b. factory, and subject to a cash discount of 1% for payment within ten days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. These prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement with the correct model number and retail ceiling price properly filled in:

Model Number 20
OPA Retail Ceiling Price—$2.40 each
Do Not Detach or Obliterate

(c) At the time of, or prior to, the first invoice to each purchaser for resale at wholesale, the manufacturer shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 6th day of February 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2037; Filed, Feb. 5, 1946; 11:54 a. m.]

[MPR 188, Order 4845]

MAREMONT AUTOMOTIVE PRODUCTS, INC.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by Maremont Automotive Products, Inc., 1600 South Ashland Avenue, Chicago 8, Ill.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Maximum prices for sales by any seller to—			
		Wholesalers (jobbers)	Chain stores	Other retailers (dealers)	Consumers
Wheeled hand garden cultivator	A	*Each* $2.65	*Each* $2.65	*Each* $3.53	*Each* $5.05
	B	3.82	3.82	5.10	7.28
	C	5.40	5.40	7.20	10.29
	D	7.39	7.39	9.86	14.08

These maximum prices are for the articles described in the manufacturer's application dated December 7, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are f. o. b. factory, and subject to a cash discount of 2% for payment within 10 days, net 60 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, Washington, D. C., under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement with the correct model number and retail ceiling price properly filled in:

OPA Retail Ceiling Price—$_____
Do Not Detach or Obliterate

(c) At the time of, or prior to, the first invoice to each purchaser for resale at wholesale, the manufacturer shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 6th day of February 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2038; Filed, Feb. 5, 1946; 11:55 a. m.]

[MPR 188, Order 4846]

WEST BEND ALUMINUM CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188, *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by West Bend Aluminum Company of West Bend, Wis.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

FOR SALES OF OUTBOARD MOTORS

By any seller to—	Maximum selling prices (each)	
	Model No. 5830 (1.1 hp.)	Model No. 5840 (2.5 hp.)
Wholesalers (jobbers)	None	$51.00
Retailers (dealers)	$37.45	59.50
Consumers—located in zone I (Minnesota, Iowa, Wisconsin, Illinois, and the Upper Peninsula of Michigan)	56.75	88.30
Consumers—located in zone II (North Dakota, South Dakota, Nebraska, Kansas, Oklahoma, Missouri, Arkansas, Tennessee, Pennsylvania, Indiana, Ohio, Lower Michigan, W. Virginia, Virginia, Kentucky, Maryland, Delaware, New Jersey, New York, Connecticut, Massachusetts, Rhode Island, District of Columbia, Vermont, and New Hampshire)	56.95	88.60
Consumers—located in Zone III (Montana, Wyoming, Colorado, New Mexico, Texas, Louisiana, Mississippi, Alabama, Georgia, Florida, North Carolina, South Carolina, and Maine)	57.10	88.90
Consumers—located in Zone IV (Washington, Oregon, Idaho, Nevada, Utah, California, and Arizona)	57.30	89.20

These prices are for the articles described in the manufacturer's application dated January 23, 1946.

(2) Maximum prices to purchasers for resale are f. o. b. factory, and are subject to a cash discount of 2% for payment within 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. Other than the conditions stated under (a) (2), those prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for those sales, and no sales or deliveries may be made until maximum prices have been established by the Office of Price Administration.

(b) The dealer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order before offering for sale, selling or delivering it to a con-

sumer. That tag or label shall contain the following statement with the retail ceiling price in the zone in which the dealer is located properly filled in:

Model No. ------
OPA Retail Ceiling Price—$------
Do Not Detach or Obliterate

(c) At the time of, or prior to, the first invoice to each purchaser for resale, the manufacturer and each distributor shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. These notices may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 6th day of February 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2039; Filed, Feb. 5, 1946; 11:55 a. m.]

[MPR 188, Order 4847]

MASTER APPLIANCE CO.

APPROVAL OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to § 1499.158 of Maximum Price Regulation No. 188; *It is ordered:*

(a) This order establishes maximum prices for sales and deliveries of certain articles manufactured by the Master Appliance Company, 618 North Mechanic Street, Jackson, Mich.

(1) For all sales and deliveries to the following classes of purchasers by the sellers indicated below, the maximum prices are those set forth below:

Article	Model No.	Maximum prices for sales by any seller to—			
		Jobbers	Chains and department stores	Retailers	Consumers
Food chopper and bracket aluminum chrome finish	45-2	*Each* $1.54	*Each* $1.85	*Each* $2.07	*Each* $3.10
Food chopper aluminum polished finish	45-1	1.35	1.62	1.80	2.70
Knife sharpener with bracket 8 wheels, die cast aluminum chrome finish	46-1	.50	.60	.67	1.00
Knife sharpener no bracket die cast aluminum polished finish	46-2	.375	.45	.50	.75
Bracket to fit food chopper and knife sharpener	46-2	.20	.24	.27	.40

These maximum prices are for the articles described in the manufacturer's application dated December 31, 1945.

(2) For sales by the manufacturer, the maximum prices apply to all sales and deliveries since Maximum Price Regulation No. 188 became applicable to those sales and deliveries. These prices are f. o. b. factory and subject to a cash discount of 2% for payment in 10 days, net 30 days.

(3) For sales by persons other than the manufacturer, the maximum prices apply to all sales and deliveries after the effective date of this order. These prices are subject to each seller's customary terms and conditions of sale on sales of similar articles.

(4) If the manufacturer wishes to make sales and deliveries to any other class of purchaser or on other terms and conditions of sale, he must apply to the Office of Price Administration, under the Fourth Pricing Method, § 1499.158 of Maximum Price Regulation No. 188, for the establishment of maximum prices for these sales, and no sales or deliveries may be made until maximum prices have been authorized by the Office of Price Administration.

(b) The manufacturer shall attach a tag or label to every article for which a maximum price for sales to consumers is established by this order. That tag or label shall contain the following statement:

Model No. ------
OPA Retail Ceiling Price $------
Do Not Detach or Obliterate

(c) At the time of, or prior to, the first invoice to each purchaser for resale at wholesale, the manufacturer shall notify the purchaser in writing of the maximum prices and conditions established by this order for sales by the purchaser. This notice may be given in any convenient form.

(d) This order may be revoked or amended by the Price Administrator at any time.

(e) This order shall become effective on the 6th day of February 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2040; Filed, Feb. 5, 1946; 11:55 a. m.]

[MPR 220, Revocation of Order 8]

AMERICAN FINISH AND CHEMICAL CO.

DETERMINATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of Federal Register and in accordance with paragraph (c) of Order No. 8 under Maximum Price Regulation 220, *It is ordered:*

Order No. 8 under § 1315.1558 of Maximum Price Regulation 220 is hereby revoked.

A copy of this order is on file with the Secretary of the Office of Price Administration, Washington, D. C., for inspection by the public.

This order of revocation shall become effective February 5, 1946.

Issued this 5th day of February 1946.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 46-2041; Filed, Feb. 5, 1946; 11:55 a. m.]

[MPR 591, Order 267]

COLDAIRE CORP.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591, *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following freezers and storage cabinets manufactured by the Coldaire Corporation, 56 East Walton Place, Chicago 11, Ill., and a described in the application dated December 10, 1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

Model	On sales to—		
	Distributors	Dealers	Consumers
No. 3C 45—3 cu. ft. ⅛ hp. condensing unit	$130	$156	$260
No. 10C 45—10 cu. ft. ¼ hp. condensing unit	190	228	380
No. 12D 45—12 cu. ft. ⅓ hp. condensing unit	350	420	700
No. 17C 45—17½ cu. ft. ½ hp. condensing unit	280	336	560

(b) The maximum net prices established in (a) above may be increased by the following amount to each class of purchaser to cover the cost of crating when crating is actually supplied: $6.00.

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales in the same general category on October 1, 1941.

(d) On sales by a distributor or dealer the following charges may be added to the maximum prices established in (a) above:

(1) The actual amount of freight paid to obtain delivery to his place of business. Such charges shall not exceed the lowest common carrier rates.

(2) Crating charges actually paid to his supplier but in no instance exceeding the amount specified in (b) above.

(e) Each seller covered by this order, except a dealer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale, except dealers, including allowable transportation and crating charges.

(f) The Coldaire Corporation, 56 East Walton Place, Chicago 11, Illinois, shall stencil on the lid or cover of the freezers and storage cabinets covered by this order, substantially the following:

OPA Maximum Retail Price—$------

Plus freight and crating as provided in Order No. 267 under Maximum Price Regulation No. 591.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2044; Filed, Feb. 5, 1946; 11:56 a. m.]

[MPR 591, Order 268]

F. H. SULLIVAN & CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591; *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following refrigeration freezer box, manufactured by the F. H. Sullivan and Company, Route 6, Box 27, Vancouver, Washington, and as described in the application dated November 19, 1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

	On sales to—	
	Jobbers and dealers	Consumers
20 cu. ft. ¼ hp. condensing unit	$300	$495

(b) The maximum net prices established in (a) above may be increased by the following amount to each class of purchaser to cover the cost of crating when crating is actually supplied: $6.00.

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales in the same general category on October 1, 1941.

(d) On sales by jobbers and dealers the following charges may be added to the maximum prices established in (a) above:

(1) The actual amount of freight paid to obtain delivery to his place of business. Such charges shall not exceed the lowest common carrier rates.

(2) Crating charges actually paid to his supplier but in no instance exceeding the amount specified in (b) above.

(e) Each seller covered by this order, except a dealer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale, except dealers, including allowable transportation and crating charges.

(f) F. H. Sullivan and Company of Vancouver, Washington, shall stencil on the lid or cover of the refrigeration freezer boxes covered by this order, substantially the following:

OPA Maximum Retail Price $495.00

Plus freight and crating as provided in Order No. 268 under Maximum Price Regulation No. 591.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2044-A; Filed, Feb. 5, 1946; 11:56 a. m.]

[MPR 591, Order 269]

MURDOCH, INC.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591; *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following home freezers manufactured by Murdoch, Inc., 3630 Haverford Avenue, Philadelphia 4, Pa., and as described in the application dated December 8, 1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

Model	On sales to—		
	Distributors	Dealers	Consumers
Vertical box, 14.5 cu. ft. ½ hp. condensing unit	$300	$350	$550

(b) The maximum net prices established in (a) above may be increased by the following amount to each class of purchaser to cover the cost of crating when crating is actually supplied: $6.00.

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales in the same general category on October 1, 1941.

(d) On sales by a distributor or dealer the following charges may be added to the maximum prices established in (a) above:

(1) The actual amount of freight paid to obtain delivery to his place of business. Such charges shall not exceed the lowest common carrier rates.

(2) Crating charges actually paid to his supplier but in no instance exceeding the amount specified in (b) above.

(e) Each seller covered by this order, except a dealer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale, except dealers, including allowable transportation and crating charges.

(f) Murdoch, Inc. of Philadelphia, Pennsylvania, shall stencil on the lid or cover, the home freezer covered by this order, substantially the following:

OPA Maximum Retail Price—$550.00

Plus freight and crating as provided in Order No. 269 under Maximum Price Regulation No. 591.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2045; Filed, Feb. 5, 1946; 11:57 a. m.]

[MPR 591, Order 270]

PACIFIC ELECTRICAL AND MECHANICAL CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591; *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following deep freeze mechanical refrigerator manufactured by the Pacific Electrical and Mechanical Company, Inc., 1733 Westlake Avenue, North, Seattle 9, Washington, and as described in the application dated November 23, 1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

Model	On sales to—		
	Distributors	Dealers	Consumers
No. PE No. 112 cu. ft. ¼ hp. condensing unit	$230	$276	$460

(b) The maximum net prices established in (a) above may be increased by the following amount to each class of purchaser to cover the cost of crating when crating is actually supplied: $6.00.

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales in the same general category on October 1, 1941.

(d) On sales by a distributor or dealer the following charges may be added to the maximum prices established in (a) above:

(1) The actual amount of freight paid to obtain delivery to his place of business. Such charges shall not exceed the lowest common carrier rates.

(2) Crating charges actually paid to his supplier but in no instance exceeding the amount specified in (b) above.

(e) Each seller covered by this order, except a dealer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale, except dealers, including allowable transportation and crating charges.

(f) The Pacific Electrical and Mechanical Company, Inc., shall stencil on the lid or cover of the deep freeze mechanical refrigerator covered by this order, substantially the following:

OPA Maximum Retail Price $460.00

Plus freight and crating as provided in Order No. 270 under Maximum Price Regulation No. 591.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2046; Filed, Feb. 5, 1946; 11:57 a. m.]

[MPR 591, Order 271]

H. P. RANDALL MFG. CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591, *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following quick freeze storage locker manufactured by the H. P. Randall Manufacturing Company, Demopolis, Ala., and as described in the application dated November 16,1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

Model	On sales to—		
	Distributors	Dealers	Consumers
Quick freeze storage locker 12 cu. ft. ¼ hp. condensing unit	$235	$282	$470

(b) The maximum net prices established in (a) above may be increased by the following amount to each class of purchaser to cover the cost of crating when crating is actually supplied: $6.00.

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales in the same general category on October 1, 1941.

(d) On sales by a distributor or dealer the following charges may be added to the maximum prices established in (a) above:

(1) The actual amount of freight paid to obtain delivery to his place of business. Such charges shall not exceed the lowest common carrier rates.

(2) Crating charges actually paid to his supplier but in no instance exceeding the amount specified in (b) above.

(e) Each seller covered by this order, except a dealer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale except dealers, including allowable transportation and crating charges.

(f) The H. P. Randall Manufacturing Company of Demopolis, Alabama, shall stencil on the lid or cover of the quick freeze storage locker covered by this order, substantially the following:

OPA Maximum Retail Price $470.00

Plus freight and crating as provided in Order No. 271 under Maximum Price Regulation No. 591.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2047; Filed, Feb. 5, 1946; 11:57 a. m.]

[MPR 591, Order 272]

E. O. OLSON CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591, it is ordered:

(a) *Manufacturer's maximum prices.* (1) The maximum list price, f. o. b. point of shipment, for sales by E. O. Olson Company of the Model 101 Awning Adjusting Bracket manufactured by it and as described in the application which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be: $1.25 each.

(2) The maximum list price set forth in (1) above shall be subject to the following trade discounts:

	Percent
On sales to jobbers	50
On sales to retailers	33⅓

(b) *Jobbers and retailers maximum prices.* (1) The maximum price for sales by jobbers and retailers of the Model 101 Awning Adjusting Bracket manufactured by the E. O. Olson Company shall be:

	Each
On sales to retailers	$0.83
On sales to consumers	1.25

(c) The maximum prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales of commodities within the same general category during March 1942.

(d) Each seller covered by this order, except a retailer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale.

(e) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2048; Filed, Feb. 5, 1946; 11:57 a. m.]

[MPR 591, Order 273]

STONER MFG. CORP.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591; *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following farm and home freezers manufactured by the Stoner Manufacturing Corporation, 328 Gale Street, Aurora, Ill., and as described in the application dated November 29, 1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

Model	On sales to—		
	Distributors	Dealers	Consumers
12.75 cu. ft. ½ hp. condensing unit	$215	$258	$430
12.75 cu. ft. ½ hp. condensing unit with stainless steel liner	235	282	470

(b) The maximum net prices established in (a) above may be increased by the following amount to each class of purchaser to cover the cost of crating when crating is actually supplied: $6.00.

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as fa-

vorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales in the same general category on October 1, 1941.

(d) On sales by a distributor or dealer the following charges may be added to the maximum prices established in (a) above:

(1) The actual amount of freight paid to obtain delivery to his place of business. Such charges shall not exceed the lowest common carrier rates.

(2) Crating charges actually paid to his supplier but in no instance exceeding the amount specified in (b) above.

(e) Each seller covered by this order, except a dealer, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers upon resale, except dealers, including allowable transportation and crating charges.

(f) The Stoner Manufacturing Corporation of Aurora, Illinois, shall stencil on the lid or cover of the farm and home freezers covered by this order, substantially the following:

OPA Maximum Retail Price—$------

Plus freight and crating as provided in Order No. 273 under Maximum Price Regulation No. 591.

(g) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2049; Filed, Feb. 5, 1946; 11:58 a. m.]

[MPR 591, Order 274]

BURKLYN CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591; *It is ordered:*

(a) The maximum net prices, f. o. b. point of shipment, for sales by any person of the following Release Hinges manufactured by the Burklyn Company of Los Angeles, California, and as described in the application dated November 6 and December 27, 1945, which is on file with the Building Materials Price Branch, Office of Price Administration, Washington 25, D. C., shall be:

Item	On sales to—	
	Jobbers	Retailers
	Per dozen	*Per dozen*
Release hinge, 2½"----------	$3.25	$4.35
Release hinge, 4"----------	3.35	4.45
Release hinge, 6"----------	3.50	4.65

(b) The maximum prices for sales by any person to consumers of the following items shall be:

Item:	*On sales to consumers (each) (cents)*
Release hinge, 2½"----------	55
Release hinge, 4"----------	55
Release hinge, 6"----------	60

(c) The maximum net prices established by this order shall be subject to discounts and allowances and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales of commodities in the same general category during March 1942.

(d) Each seller covered by this order, except a retailer shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers except retailers upon resale.

(e) The Burklyn Company of Los Angeles, California shall print on the box containing the hinges covered by this order, substantially the following:

OPA Maximum Retail Price—$------

(f) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2050; Filed, Feb. 5, 1946; 11:58 a. m.]

[MPR 591, Order 275]

RONAN AND KUNZL

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 9 of Maximum Price Regulation No. 591, *It is ordered:*

(a) The maximum price excluding federal excise tax, for sales by any person to consumers of the following Electric Storage Water Heaters manufactured by Ronan and Kunzl and as described in the application dated November 9, 1945, shall be:

Model 6A-6 gallon electric storage water heater, galvanized tank, insulated, single element---------- $40.50

(b) The maximum net price, excluding federal excise tax, f. o. b. point of shipment, for sales by any person to dealers in quantities of less than 5 heaters, shall be the maximum price specified in (a) above less a discount of 33⅓ percent.

(c) The maximum net price, excluding federal excise tax, f. o. b. point of shipment, for sales by any person to dealers in quantities of 5 or more heaters, shall be the maximum price specified in (a) above, less a discount of 40 percent.

(d) The maximum net price, excluding federal excise tax, f. o. b. point of shipment, for sales by any person to jobbers, shall be the maximum price specified in (a) above, less a discount of 50 percent.

(e) The maximum prices established by this order shall be subject to such further discounts and allowances including transportation allowances, and the rendition of services which are at least as favorable as those which each seller extended or rendered or would have extended or rendered to purchasers of the same class on comparable sales of commodities in the same general category during March 1942.

(f) The maximum price on an installed basis of the commodities covered by this order shall be determined in accordance with Revised Maximum Price Regulation No. 251, as amended.

(g) Each seller covered by this order, except on sales to consumers, shall notify each of his purchasers, in writing, at or before the issuance of the first invoice after the effective date of this order, of the maximum prices established by this order for each such seller as well as the maximum prices established for purchasers except dealers upon resale.

(h) Ronan and Kunzl shall attach to each electric water heater covered by this order, a tag containing the following:

OPA maximum retail price not installed, including actual Federal excise tax paid at source $------

(i) This order may be revoked or amended by the Price Administrator at any time.

This order shall become effective February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.
Acting Administrator.

[F. R. Doc. 46-2051; Filed, Feb. 5, 1946; 11:58 a. m.]

[MPR 591, Amdt. 9 to Order 48]

GAS-FIRED CONVERSION BURNERS

ADJUSTMENT OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, Order 48 under section 22 of Maximum Price Regulation No. 591 is amended in the following respects:

1. Paragraph (d) of section 2.8 is amended to read as follows:

(d) *Notification by manufacturers.* Any manufacturer who applies the increase permitted under this section shall notify each purchaser, in writing, at or before the issuance of the first invoice after February 4, 1946, of the actual dollars-and-cents increase for each type of gas-fired conversion burner over his maximum price to that class of purchaser in effect on February 4, 1946.

2. Paragraph (e) of section 2.8 is amended to read as follows:

(e) *Resellers increase.* The maximum price for sale by any reseller of the types of gas-fired conversion burners or repair or service parts therefor covered by this section shall be his maximum price to each class of purchaser in effect on

February 4, 1946 plus the actual dollars-and-cents increase in present cost resulting from the increase granted the manufacturer under this section and of which he is notified by the manufacturer.

A seller shall not be considered a reseller within the meaning of this paragraph when he uses the types of gas-fired conversion burners covered by this section on or in connection with the sale of another article (such as a furnace, etc.) and his maximum price for the burner and the other article is established on the basis of a lump sum.

This amendment shall become effective February 5, 1946.

Issued this 5th day of February 1946.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 46-2064; Filed, Feb. 5, 1946; 4:46 p. m.]

[2d Rev. MPR 195, Rev. Order 13]

CEILING PRICES FOR EGG CASES

EASTERN EGG CASES AND COMPONENT PARTS

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 7a of 2d Revised Maximum Price Regulation 195, *It is ordered:*

Order 13 under section 7a of 2d Revised Maximum Price Regulation 195 is revised to read as follows:

(a) *What this order covers.* This order covers all sales of eastern egg cases and component parts when sold in sets. It also covers the sale of extra covers when not sold in sets. The maximum prices fixed by this order supersede any maximum price or pricing method previously established under 2d Revised Maximum Price Regulation 195.

(b) *Definition of "eastern egg cases and component parts."* For the purpose of this order, "eastern egg cases" refers to wooden egg cases whether sawn or veneer produced in that portion of the United States east of and including the States of North and South Dakota, Nebraska, Kansas, Oklahoma, and Texas. It includes the ends with cleats attached and centers customarily produced from 3/16" veneer. Sawn sides, tops, and bottoms are included in the order but are priced upon individual application under paragraph (g) below.

(c) Maximum prices. The maximum prices f. o. b. mill for standard 30-dozen eastern egg cases, unassembled (K. D.) are as follows:

	All species
Complete egg cases 3/16" veneer, K. D.	33¢ per case.[1]
Egg case 3/16" veneer sides, top, and bottoms (sold in sets)	16½¢ per set.
Egg case ends with cleats attached and centers (sold in sets)	16½¢ per set.[1]
Separate covers (3/16" veneer)	5¢ each.

[1] An addition may be made to the price of the complete case or to the price of a set of ends and centers, as the case may be, when corrugated fasteners are applied in accordance with a customer's requirement. The maximum charge for corrugated fasteners, including attaching, shall be ½¢ per case or per set of ends and centers.

On all sales to resellers, these prices must be reduced by at least eight (8%) per cent.

(d) *Discounts and allowances.* The maximum prices set forth herein are the highest prices which can be charged except in the case of warehouse sales by registered distributors as defined in paragraph (e). The maximum prices shall be reduced by all discounts or allowances customarily made by the seller for cash or prompt payments.

(e) *Warehouse sales by registered distributors.* A seller who desires to add a mark-up for distribution from a warehouse must register as a distributor and must receive specific authorization to add such mark-up.

A warehouse distributor must apply for a registration certificate to the Building Materials and Construction Price Branch of the Office of Price Administration, request a specific mark-up and show that he is properly qualified as one who purchases egg cases or component parts, stores the cases or parts in a warehouse which is located in a principal area of egg production, and sells them to the local trade in small quantities, knocked down or assembled before sale.

In his application, the distributor should give the weighted average selling price and the weighted average dollar mark-up made on warehouse sales of K. D. egg cases in March 1942 and in October 1944, and the same information also on any sales which were made of assembled egg cases. He should also indicate whether sales were on an f. o. b. or delivered basis and he should give any other information which would assist the Office of Price Administration in determining whether his requested mark-up is proper.

The Administrator may grant or deny the application in whole or in part.

(f) *Other provisions.* The provisions of section 9 (b), 10, 11, 12, 13 and 14 (b) of the regulation shall apply to sales made under this order.

(g) *Other items or additions not covered.* Any item or addition for an item subject to this order which is not specifically priced shall also be covered by this order. This includes the item of sawn sides, tops, and bottoms. If a seller cannot determine the price for such an item or addition, he must apply to the Building Materials and Construction Price Branch, Office of Price Administration, Washington 25, D. C., and give a description of the item or addition, the requested price, and his October 1944 selling price. Any requested price not disapproved within 30 days of receipt of the application shall be considered as approved. The Office of Price Administration may approve, disapprove, or revise prices requested or established under this paragraph (g) so as to make them consistent with the level of prices otherwise fixed by this order.

This order shall become effective February 6, 1946.

NOTE: All record keeping and reporting requirements of this order have been approved by the Bureau of the Budget, in accordance with Federal Reports Act of 1942.

Issued this 5th day of February 1946.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 46-2060; Filed, Feb. 5, 1946; 4:46 p. m.]

[SO 119, Order 69]

VOSS BROS. MFG. CO.

ADJUSTMENT OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to sections 13 and 14 of Supplementary Order No. 119, it is ordered:

(a) *Manufacturer's maximum prices.* Voss Brothers Manufacturing Company, 1355 West Second Street, Davenport, Iowa, may increase by no more than 10.4 percent its ceiling prices to each class of purchaser for domestic rinse tubs and stands, of its manufacture.

(b) *Maximum prices of purchasers for resale.* A person who hereafter buys an article covered by this order and resells it in substantially the same form, may collect from his customer, in addition to his properly established maximum price in effect prior to the issuance of this order, an adjustment charge in the same amount as the adjustment charge authorized for and which he pays to his supplier. If such a purchaser did not have an established maximum price for sales of the article prior to the issuance of this order, he may add the same adjustment charge to the maximum price which he hereafter establishes for his sales under the applicable regulation. If the applicable regulation requires maximum resale prices to be computed on the basis of cost, the reseller must find his maximum prices (without the permitted adjustment charge) by using as cost his invoice cost, not including any adjustment charge stated on the invoice. On all sales except sales to ultimate consumers, these additional adjustment charges may be made and collected only if they are separately stated on each invoice.

(c) *Terms of sale.* Maximum prices adjusted by this order are subject to each seller's customary terms, discounts, allowances and other price differentials on sales to each class of purchaser in effect during March 1942, or established under any applicable OPA regulation.

(d) *Notification.* At the time of, or prior to, the first invoice to a purchaser for resale showing a ceiling price adjusted in accordance with the terms of this order, the seller shall notify each purchaser in writing of the adjusted ceiling prices for resales of the articles covered by this order. This notice may be given in any convenient form.

(e) This order may be revoked or amended by the Price Administrator at any time.

(f) *Effective date.* This order shall become effective on February 6, 1946.

Issued this 5th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2055; Filed, Feb. 5, 1946; 11:53 a. m.]

[RMPR 357, Order 9]

CERTAIN INDIA TANNED GOATSKINS

MAXIMUM PRICES FOR IMPORTATION AND RESALE AFTER ARRIVAL IN THE UNITED STATES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register and pursuant to section 6 of Revised Maximum Price Regulation 357, *It is ordered:*

(a) The maximum price at which any person may purchase, sell or deliver the following selection of SPD mark East India tanned goatskins shall be a price computed as though such selection were listed in section 4, Table I of Revised Maximum Price Regulation 357 as follows:

Mark	Selection		Average weight in pounds per dozen skins	Price
	Grades	Percent in each grade		
SPD	V	100	22-24	$0.73

(b) This order may be amended or revoked at any time by the Office of Price Administration.

(c) This Order No. 9 shall become effective February 11, 1946.

Issued this 6th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2122; Filed, Feb. 6, 1946; 11:44 a. m.]

[MPR 594, Amdt. 1 to Order 7]

CHRYSLER CORP.

AUTHORIZATION OF MINIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 8 of Maximum Price Regulation 594, *It is ordered:*

Order 7 under MPR 594 is amended in the following respects:

1. Paragraph (a) (1) is amended to read as follows:

(1) *Charge for new automobile.* A charge for the new automobile not to exceed the applicable net wholesale price in the following schedule less a wholesale delivery payment of $30.00 and the applicable retroactive volume payment in subparagraph (i) below, when the direct dealers are entitled to such payments under their Company-direct dealer agreements:

Model	Description	Net wholesale price
D-24 De Luxe	3 passenger coupe	$767.89
	2 door sedan	817.56
	4 door sedan	851.20
D-24 Custom	Club coupe	890.42
	4 door sedan	897.50

(i) *Retroactive volume payment:*

Quantity of new automobiles:	*Volume payment*
26 to 50	$6.00
51 to 100	12.00
101 to 175	18.00
176 to 250	24.00
251 and up	30.00

2. The following items and respective net wholesale prices are added to the schedule in paragraph (a) (2):

Description:	*Net wholesale price*
"A" cooling	$4.22
Export tool kit	4.82
Extreme duty springs	2.41
Radio antennae:	
Skyway type	3.74
Header type	5.24

3. The following items and respective net wholesale prices are added to the schedule in paragraph (d) (2):

Description:	*Net wholesale price*
"A" cooling	$4.43
Export tool kit	5.06
Extreme duty springs	2.53
Radio antennae:	
Skyway type	3.93
Header type	5.50

4. Paragraph (d) (4) is amended to read as follows:

(4) *Charge for transportation.* A charge to cover the direct dealer's transportation expense not to exceed the following:

(i) *When the transportation charge to direct dealer is prepaid.* A charge not to exceed the average net invoice transportation charge to the direct dealer for the new automobile and extra or optional equipment being sold including transportation tax; or

(ii) *When the transportation charge to direct dealer is not prepaid.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile and extra or optional equipment from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate, except that where the new automobile and extra or optional equipment is transported by truck-away, and the direct dealer pays the truck-away charge, the charge may be the truck-away charge, at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

5. Paragraph (e) is amended by adding the following sentence immediately below the schedule in that paragraph:

These additional allowances are retroactive.

6. The following items and respective factory retail prices are added to the schedule in paragraph (f) (2):

Description:	*Factory retail price*
"A" cooling	$5.60
Export tool kit	6.40
Extreme duty springs	3.20
Radio antennae:	
Skyway type	5.35
Header type	7.20

7. Paragraph (f) (3) is amended to read as follows:

(3) *Charge for transportation*—(i) *When transportation charge to resller is prepaid.* A charge not to exceed the average net invoice transportation charge for the new automobile and extra or optional equipment being sold, including transportation tax; or

(ii) *When transportation charge to reseller is not prepaid.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile and extra or optional equipment from Detroit, Michigan, to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate, except that where the new automobile and extra or optional equipment is transported by truck-away, and the reseller pays the truck-away charge, the charge may be the truck-away charge, at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate.

This amendment shall be effective as of January 16, 1946.

Issued this 5th day of February, 1946.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 46-2065; Filed, Feb. 5, 1946; 4:46 p. m.]

[MPR 594, Amdt. 1 to Order 8]

CHRYSLER CORP.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 8 of Maximum Price Regulation 594, *It is ordered:*

Order 8 to MPR 594 is amended in the followihg respects:

1. Paragraph (a) (1) is amended to read as follows:

(1) *Charge for new automobile.* A charge for the new automobile not to exceed the applicable net wholesale price in the following schedule less a wholesale delivery payment of $35.00 and the applicable retroactive volume discount in subparagraph (i) below, when the direct dealers are entitled to such payments under their Company-direct dealer agreements:

Model	Description	Net wholesale price
S-11 De Luxe	3 passenger coupe	$830.59
	2 door sedan	892.04
	Club coupe	909.05
	4 door sedan	915.11
S-11 Custom	2 door sedan	942.36
	Club coupe	955.23
	4 door sedan	962.92

(i) *Retroactive volume discount.*

Quantity of new automobiles:	Volume discount
26–75	$6.00
76–175	12.00
176–325	18.00
326–500	24.00
501 and up	30.00

2. The following items and respective net wholesale prices are added to the schedule in paragraph (a) (2):

Description:	Net wholesale price
"A" cooling	$3.62
Export tool kit	4.82
Extreme duty springs	2.41
Radio antennae:	
Skyway type	3.74
Header type	5.24

3. Paragraph (d) (1) (i) is amended by adding the following sentence immediately below the schedule in that paragraph:

These quantity allowances are non-retroactive.

4. The following items and respective net wholesale prices are added to the schedule in paragraph (d) (2):

Description:	Net wholesale price
"A" cooling	$3.80
Export tool kit	5.06
Extreme duty springs	2.53
Radio antennae:	
Skyway type	3.93
Header type	5.50

5. Paragraph (d) (4) is amended to read as follows:

(4) *Charge for transportation.* A charge to cover the direct dealer's transportation expense not to exceed the following:

(i) *When the transportation charge to direct dealer is prepaid.* A charge not to exceed the average net invoice transportation charge to the direct dealer for the new automobile and extra or optional equipment being sold including transportation tax; or

(ii) *When the transportation charge to direct dealer is not prepaid.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile and extra or optional equipment from Detroit, Michigan, to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate, except that where the new automobile and extra or optional equipment is transported by truck-away, and the direct dealer pays the truck-away charge, the charge may be the truck-away charge, at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

6. The following items and respective factory retail prices are added to the schedule in paragraph (e) (2):

Description:	Factory retail price
"A" cooling	$4.85
Export tool kit	6.40
Extreme duty springs	3.20
Radio antennae:	
Skyway type	5.35
Header type	7.20

7. Paragraph (e) (3) is amended to read as follows:

(3) *Charge for transportation*—(i) *When transportation charge to reseller is prepaid.* A charge not to exceed the average net invoice transportation charge for the new automobile and extra or optional equipment being sold including transportation tax; or

(ii) *When transportation charge to reseller is not prepaid.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile and extra or optional equipment from Detroit, Michigan, to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate, except that where the new automobile and extra or optional equipment is transported by truck-away, and the reseller pays the truck-away charge, the charge may be the truck-away charge, at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

This amendment shall be effective as of January 16, 1946.

Issued this 5th day of February 1946.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 46-2066; Filed, Feb. 5, 1946; 4:45 p. m.]

[MPR 594, Amdt. 1 to Order 10]

CHRYSLER CORP.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 8 of Maximum Price Regulation 594, *It is ordered:*

Order 10 under MPR 594 is amended in the following respects:

1. Paragraph (a) (1) is amended to read as follows:

(1) *Charge for new automobile.* A charge for the new automobile not to exceed the applicable net wholesale price in the following schedule less a wholesale delivery payment of $37.50 and the applicable retroactive car volume payment in subparagraph (i) below, when the distributors, direct dealers at wholesale or direct dealers at retail, are entitled to such payments under their Company-distributor or dealer agreements:

Model	Description	Net wholesale price
C-38 Royal	3 passenger coupe	$888.61
	2 door sedan	961.45
	Club coupe	981.14
	4 door sedan	983.28
C-38 Windsor	3 passenger coupe	936.51
	2 door sedan	1,012.55
	Club coupe	1,024.44
	4 door sedan	1,052.34

(i) *Car volume payment:*

Quantity of new automobiles:	
For distributors and direct dealers at wholesale:	Payment
151–500	$6.25
501 and up	12.50
For direct dealers at retail:	
26–75	6.25
76–150	12.50
151–300	18.75
301–500	25.00
501 and up	31.25

2. The following items and respective net wholesale prices are added to the schedule in paragraph (a) (2):

Description:	Net wholesale price
"A" cooling	$3.62
Bumper buffer bars	3.62
Export tool kit	4.82
Extreme duty springs	2.41
Radio antennae:	
Skyway type	3.74
Header type	5.24

3. Paragraph (d) (1) (i) is amended by changing the numeral "75" appearing in the phrase "75 and up" in the schedule in that paragraph to read "76" and by adding a sentence immediately below that schedule to read as follows:

These car volume payments are non-retroactive.

4. The following items and respective net wholesale prices are added to the schedule in paragraph (d) (2):

Description:	Net wholesale price
"A" cooling	$3.80
Bumper buffer bars	3.80
Export tool kit	5.06
Extreme duty springs	2.53
Radio antennae:	
Skyway type	3.93
Header type	5.50

5. Paragraph (d) (4) is amended to read as follows:

(4) *Charge for transportation.* A charge to cover the transportation expense of the distributor or direct dealer at wholesale not to exceed the following:

(i) *When the transportation charge to distributor or direct dealer at wholesale is prepaid.* A charge not to exceed the average net invoice transportation charge to the distributor or direct dealer at wholesale for the new automobile and extra or optional equipment being sold including transportation tax; or

(ii) *When the transportation charge to distributor or direct dealer at wholesale is not prepaid.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transpor-

tation of the new automobile and extra or optional equipment from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate, except that where the new automobile and extra or optional equipment is transported by truck-away, and the distributor or direct dealer at wholesale pays the truck-away charge, the charge may be the truck-away charge, at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

6. The following items and respective factory retail prices are added to the schedule in paragraph (e) (2):

Description:	*Factory retail price*
"A" cooling	$4.85
Bumper buffer bars	5.80
Export tool kit	6.40
Extreme duty springs	8.20
Radio antennae:	
Skyway type	5.35
Header type	7.20

7. Paragraph (e) (3) is amended to read as follows:

(3) Charge for transportation—(i) *When transportation charge to reseller is prepaid.* A charge not to exceed the average net invoice transportation charges for the new automobile and extra or optional equipment being sold, including transportation tax at the current legal rate; or

(ii) *When transportation charge to reseller is not prepaid.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the new automobile and extra or optional equipment from Detroit, Michigan, to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate, except that where the new automobile and extra or optional equipment is transported by truck-away, and the reseller pays the truck-away charge, the charge may be the truck-away charge, at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

This amendment shall be effective as of January 16, 1946.

Issued this 5th day of February 1946.

CHESTER BOWLES,
Administrator.

[F. R. Doc. 46-2067; Filed, Feb. 5, 1946; 4:45 p. m.]

[MPR 594, Order 12]

HUDSON MOTOR CAR CO.

AUTHORIZATION OF MAXIMUM PRICES

For the reasons set forth in an opinion issued simultaneously herewith and filed with the Division of the Federal Register, and pursuant to section 8 of Maximum Price Regulation 594, *It is ordered:*

(a) Hudson Motor Car Company, hereinafter called Company, may sell and deliver f. o. b. Detroit, Michigan, to distributors for resale to master dealers under distributor-dealer agreements, each of the Hudson new passenger automobiles listed in subparagraph (1) at a price not to exceed the applicable Company net price in that subparagraph subject to a wholesale discount of 3.5% of the applicable list price shown in that subparagraph, to be paid or credited to distributors under the same terms and conditions as in effect on January 1, 1941, plus applicable charges in subparagraph (2):

(1) *Automobile.*

Model	Description	Company net price	List price
51	Chassis	$657.14	$831
51	3-Passenger Coupe	856.42	1,085
51	Brougham	876.33	1,111
51	Sedan	904.96	1,147
51	Club Coupe	903.35	1,145
52	3-Passenger Coupe	938.08	1,191
52	Brougham	969.46	1,230
52	Sedan	995.28	1,263
52	Club Coupe	996.27	1,264

(2) *Charges*—(i) *Extra or optional equipment.* A charge for each item of extra or optional equipment listed below affixed to the new automobile (or to be affixed when available) which shall not exceed the respective company net price shown below:

Description	Company net price to distributor	Distributor net price to dealer	List price
Arm rests, extra, front door, all models	$2.61	$2.80	$3.61
Combination fuel and vacuum pump, all models	4.35	4.66	6.01
Direction indicator, Models 51 and 53	15.66	16.78	21.65
Direction indicator, Models 52 and 54	8.70	9.32	12.03
Drivemaster, all models, except with RHD	51.49	53.57	67.66
Electric clock, Models 51 and 53	8.27	8.86	11.43
Fender lamps, Models 51 and 53	9.48	10.16	13.11
Front and rear bumper extension, Models 51 and 53	11.96	12.81	16.53
Hub caps, large, Models 51 and 53	5.66	6.06	7.82
Leather trims, full:			
Sedans and Broughams, Models 51 and 52	32.63	34.96	45.11
3-Passenger Coupe, Models 51 and 52	22.69	24.31	31.37
Club Coupe, Models 51 and 52	28.58	30.62	39.51
Leather trims, three-quarter:			
Sedans and Broughams, Model 51	25.68	26.88	34.24
3-Passenger Coupe, Model 51	18.38	19.24	24.51
Club Coupe, Model 51	23.11	24.19	30.81
Sedans and Broughams, Model 52	30.88	32.32	41.17
3-Passenger Coupe, Model 52	21.66	22.67	28.88
Club Coupe, Model 52	26.96	28.22	35.95
Oil bath air cleaner, all models	1.95	2.09	2.70
Overdrive, all models	53.25	56.21	71.61
Police and taxicab clutch with heavy rear chassis springs, 11" brakes and heavy type seat cushion springs	6.64	7.11	9.17
Rubber cushion pads:			
All seats, Models 51 and 53	10.44	11.19	14.44
Front seats only, Models 51 and 53	5.22	5.59	7.21
Steering wheel, 17" with horn operating Ring, Models 51 and 53	3.58	3.84	4.95
Steering wheel, 18", Models 51 and 53	11.75	12.59	16.25
Special paint-nepal-ivory, All models	34.80	37.29	48.12
Special paint, copper red, all models	8.70	9.32	12.03
Special two-tone paint, copper red and harvest tan, all models	$34.80	$37.29	$48.12
Two-tone paint, standard colors, all models	10.88	11.66	15.05
Vacumotive drive, all models	24.61	25.98	33.10
Vacuum antenna, all models	5.66	6.06	7.82
Visor, fixed type, extra, Models 51 and 53	1.96	2.10	2.71
Visors, two, swivel type, Models 51 and 53	3.05	3.27	4.22
Weathermaster, all models	22.00	27.83	40.13
Wheel rim trim rings, all models	7.62	8.16	10.53
Window reveal mouldings, Models 51 and 53:			
Sedans and Broughams	10.88	11.66	15.05
Coupes	6.09	6.53	8.43
Tire options			
4-16 x 6.00 6-ply tires over 4-16 x 6.00 4-ply tires, Models 51 and 53	12.83	13.75	17.74
4-15 x 6.50 4-ply tires, including large hub caps, over 4-16 x 6.00 4-ply tires, Models 51 and 53	11.87	12.72	16.41
4-15 x 6.50 6-ply tires, including large hub caps, over 4-16 x 6.00 4-ply tires, Models 51 and 53	24.41	26.15	33.74
4-15 x 7.00 4-ply tires, including large hub caps, over 4-16 x 6.00 4-ply tires, Models 51 and 53	19.30	20.68	26.68
4—15 x 7.00 6-ply tires, including large hub caps, over 4—16 x 6.00 4-ply tires, Models 51 and 53	36.65	39.27	50.67
4—15 x 6.50 6-ply tires over 4—15 x 6.50 4-ply tires, Models 52 and 54	12.54	13.44	17.34
4—15 x 7.00 4-ply tires over 4—15 x 6.50 4-ply tires, Models 52 and 54	6.78	7.26	9.37
4—15 x 7.00 6-ply tires over 4—15 x 6.50 4-ply tires, Models 52 and 54	20.76	22.24	28.70

(ii) *Factory handling charge.* A charge for handling of the new automobile computed in accordance with the same method the Company had in effect on October 15, 1941.

(iii) *Federal excise taxes.* A charge to cover expense of Federal excise taxes, at current legal rate, on the new automobile and extra or optional equipment computed in accordance with the method the Company had in effect on October 15, 1941; except that in the case of extra or optional equipment the tax shall be computed on the basis of Company net prices for the extra or optional equipment sold with the automobile.

(iv) *Transportation expense.* A charge to cover transportation cost which the Company may prepay for transporting the automobile and extra or optional equipment from Detroit, Michigan, to the point at which delivery is made to the distributor, computed in accordance with the same method the Company had in effect on October 15, 1941, plus transportation tax at the current legal rate.

(v) *Retail report card.* A charge for a retail report card not to exceed $5.00 which shall be refunded or credited under the same terms and conditions in effect on January 1, 1941.

(vi) *Manufacturer's statement of origin.* A charge not to exceed twenty-five cents ($0.25) for preparing and furnishing a manufacturer's statement of origin or similar document for the new

automobile when requested by the distributor.

(vii) *Anti-freeze.* A charge for anti-freeze supplied with the automobile not to exceed the applicable maximum price.

(b) The Company may sell and deliver f. o. b. Detroit, Michigan, to distributors for resale other than under distributor-dealer agreements, each of the Hudson new passenger automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the total of the following charges:

(1) *Automobile.* The applicable Company net price in subparagraph (1) of paragraph (a) for the new automobile less the additional volume discount in paragraph (c).

(2) *Extra or optional equipment.* A charge for extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed to the new automobile (or to be affixed when available) which shall not exceed the applicable Company net price to distributor in that subparagraph.

(3) *Delivery at factory to ultimate purchaser on distributor's order.* A charge not to exceed $10.00 for preparing and conditioning the new automobile for delivery at the factory to an ultimate purchaser on distributor's order.

(4) *Other expense.* Charges to cover factory handling, federal excise taxes, transportation expense, retail report card, manufacturer's statement of origin or similar document, and anti-freeze, determined in accordance with applicable methods provided for those charges in subparagraph (2) of paragraph (a).

(c) *Volume discount.* If during a yearly period ending September 30th of the year 1946 and on September 30th of each year thereafter, a distributor shall have sold at retail, or a master dealer shall have purchased for resale at retail, a net quantity of thirty-six or more new Hudson passenger automobiles, the Company shall pay or credit to the applicable distributor or master dealer as soon as practicable after September 30, 1946 and after September 30th of each year thereafter under the same terms and conditions in effect on October 15, 1941, an amount obtained by applying the applicable discount in the following schedule to the respective list price in subparagraph (1) of paragraph (a):

Volume schedule:	*Discount (percent)*
1 to 35 inclusive	None
36 to 75	½
76 to 100	¾
101 to 125	1
126 to 200	1½
201 to 300	2
301 to 450	2½
451 and over	3

(d) The Company may sell and deliver f. o. b. Detroit, Michigan, to users each of the Hudson new passenger automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the total of the following charges:

(1) *Automobile.* The applicable list price in subparagraph (1) of paragraph (a) for the new automobile, less discounts thereon at rates no less than 89.59% of the discount rates in effect on January 1, 1941 to the applicable class of purchaser.

(2) *Extra or optional equipment.* A charge for extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed to the new automobile (or to be affixed when available) which shall not exceed the applicable list price in that subparagraph, less discounts thereon at rates no less than 91.67% of the discount rates in effect on January 1, 1941 to the applicable class of purchaser; except that, for any item of equipment in the following schedule, the percentage to be applied to the discount rate in effect on January 1, 1941 to the applicable class of purchaser shall be the respective percentage in the schedule:

Rates schedule:	*(Percent)*
Overdrive	91.07
Vacumotive drive	91.07
Weathermaster	94.70

(3) *State and local taxes.* A charge not to exceed its expense for State and local taxes on the sale or delivery of the new automobile and extra or optional equipment.

(4) *Additional handling charge.* A charge for preparing and conditioning the new automobile for delivery to the user not to exceed $10.00.

(5) *Gasoline, oil and anti-freeze.* A charge for gasoline, oil, and anti-freeze supplied with the automobile not to exceed applicable maximum prices.

(6) *Other expense.* Charges to cover factory handling, Federal excise taxes, transportation expense, and statement of origin or similar document determined in accordance with applicable methods provided in subparagraph (2) of paragraph (a).

(e) A distributor when selling under a distributor-dealer arrangement may sell and deliver to master dealers each of the Hudson new passenger automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the applicable Company net price in that subparagraph plus the following applicable charges.

(1) *Extra or optional equipment.* A charge for each item of extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed (or to be affixed when available) to the new automobile which shall not exceed the applicable distributor net price to dealer listed in that subparagraph.

(2) *Transportation.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the automobile and extra or optional equipment from Detroit, Michigan, to the receiving station nearest to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate; except that, where the automobile or extra or optional equipment is transported by truck-away and the distributor pays the truck-away charge, the charge may be the truck-away charge at truckload rate, for the most direct route from Detroit, Michigan to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

(3) *Federal excise taxes.* A charge not to exceed the charges made by the Company to cover Federal excise taxes on the new automobiles and extra or optional equipment.

(4) *Factory handling charge.* A charge for factory handling not to exceed the charge the Company makes to the distributor.

(5) *Unloading and warehousing charges.* When the new automobile is stored in a warehouse by the distributor, a charge not to exceed $10.00 to cover warehousing expense and a charge not to exceed $3.50 to cover unloading and greasing expense.

(6) *Retail report card.* A charge for a retail report card not to exceed $5.00 which shall be refunded or credited under the same terms and conditions in effect on January 1, 1941.

(7) *Manufacturer's statement of origin.* A charge not to exceed twenty-five cents ($0.25) for preparing and furnishing a manufacturer's statement of origin or similar document for the new automobile when requested by the master dealer.

(8) *Gasoline, oil and anti-freeze.* A charge for gasoline, oil and anti-freeze supplied with the automobile not to exceed applicable maximum prices.

(f) A distributor when not selling under a distributor-dealer arrangement and any other reseller at retail may sell and deliver each of the Hudson new passenger automobiles listed in subparagraph (1) of paragraph (a) at a price not to exceed the respective list price in that subparagraph plus the following applicable charges:

(1) *Extra or optional equipment.* A charge for each item of extra or optional equipment listed in subparagraph (2) (i) of paragraph (a) affixed (or to be affixed when available without any added charge to the purchaser for the installation) to the new automobile which shall not exceed the applicable list price in that subparagraph.

(2) *Transportation.* A charge to cover transportation expense not to exceed the rail freight charge at carload rate, by the most direct route, for the transportation of the automobile and extra or optional equipment from Detroit, Michigan, to the receiving station nearest to the place at which delivery is made to the purchaser, including transportation tax at the current legal rate; except that, where the automobile or extra or optional equipment is transported by truck-away and the reseller pays the truck-away charge, the charge may be the truck-away charge at truckload rate, for the most direct route from Detroit, Michigan, to the place at which delivery is made to the purchaser including transportation tax at the current legal rate.

(3) *Federal excise taxes.* A charge not to exceed the charge made by his supplier to cover Federal excise taxes on the new automobile and extra or optional equipment.

(4) *State and local taxes.* A charge not to exceed his expense for State and local taxes on the sale or delivery of the new automobile and extra or optional equipment.

(5) *Factory handling.* A charge to cover the factory handling charge made by the Company not to exceed $4.50.

(6) *Reseller's preparing and conditioning charge.* A charge for the preparing and conditioning of the new automobile by the reseller for delivery to the purchaser not to exceed $15.00.

(7) *Gasoline, oil and anti-freeze.* A charge for gasoline, oil and anti-freeze supplied with the automobile upon delivery to the purchaser not to exceed applicable maximum prices.

(g) *Resales in territories and possessions.* A reseller is authorized to sell each of the Hudson new passenger automobiles listed in paragraph (a) (1) in a territory or possession of the United States at a price not to exceed the maximum price permitted by paragraph (e) or (f), whichever is applicable, to which he may add a sum not to exceed the expense incurred by or charged to him for: payment of territorial and insular taxes on the purchase, sale or introduction of the new automobile in the territory or possession, when not charged under paragraph (e) or (f); export premiums; boxing and crating for export purposes; assembly costs, if any; marine and war risk insurance; landing, wharfage, and terminal operations; ocean freight; and freight to port of embarkation when not charged under paragraph (e) or (f).

(h) All requests not granted herein are denied.

(j) This order may be amended or revoked by the Administrator at any time.

This order shall become effective February 4, 1946.

Issued this 4th day of February 1946.

JAMES G. ROGERS, Jr.,
Acting Administrator.

[F. R. Doc. 46-2009; Filed, Feb. 4, 1946; 4:36 p. m.]

Regional and District Office Orders.

[Region III Rev. Order G-12 Under 18 (c), Amdt. 1]

FLUID MILK IN INDIANA

For the reasons set forth in an opinion attached hereto and pursuant to the authority vested in the Regional Administrator of Region III under the provisions of § 1499.75 (a) (9) of Supplementary Regulation No. 15 to the General Maximum Price Regulation and § 1351.807 of Maximum Price Regulation No. 280; *It is hereby ordered,* That:

(a) Paragraph (a) (1) of Order No. G-12 under § 1499.18 (c) of the General Maximum Price Regulation—Order Adjusting The Maximum Prices of Fluid Whole Milk Sold at Retail and Wholesale in The State of Indiana—is amended to read as follows:

(a) *Sales of approved fluid milk.* (1) The maximum price at which any person may sell or deliver approved fluid milk at retail or wholesale in the counties of: Bartholomew, Benton, Blackford, Boone, Brown, Carroll, Clay, Crawford, Daviess, Dearborn, Decatur, Delaware, Dubois, Franklin, Fountain, Gibson, Grant, Greene, Hamilton, Hancock, Harrison, Hendricks, Henry, Howard, Jackson, Jefferson, Jennings, Knox, Lawrence, Madison, Martin, Monroe, Morgan, Newton, Ohio, Orange, Owen, Parke, Perry, Pike, Posey, Pulaski, Putnam, Ripley, Rush, Scott, Shelby, Spencer, Starke, Sullivan, Switzerland, Tippecanoe, Tipton, Union, Vermillion, Wabash, Warren, Washington, and White, all in the State of Indiana shall be: (1) The maximum prices established for him under § 1499.2 of the General Maximum Price Regulation, or (2) the maximum prices established for him under any previous order issued by the Regional Administrator of Region III, or (3) the prices set forth in the following schedule, whichever are greater:

Type of delivery	Container	Size	Adjusted maximum price
Retail	Glass or other	½ gallon or multiples thereof	49¢ per gallon.
	Glass or paper	do	25¢ per half-gallon.
	do	1 quart or multiples thereof	13¢ per quart.
	do	1 pint	7½¢ per pint.
	do	½ pint	5¢ per half-pint.
Wholesale	Glass or other	1 gallon or multiples thereof	44¢ per gallon.
	Glass or paper	½ gallon or multiples thereof	22¢ per half-gallon.
	do	1 quart or multiples thereof	11¢ per quart.
	do	1 pint	6¢ per pint.
	do	½ pint	3¾¢ per half-pint.

(b) Paragraph (a) (3) of the above order is amended to read as follows:

(3) The maximum price at which any person may sell or deliver approved fluid milk at retail or wholesale in the counties of Allen, Cass, Elkhart, Fayette, Fulton, Huntington, Jasper, Johnson, Kosciusko, Marion, Marshall, Miami, Porter, Wayne and Warrick, all in the State of Indiana shall be: (1) The maximum prices established for him under § 1499.2 of the General Maximum Price Regulation, or (2) the maximum prices established for him under any previous order issued by the Regional Administrator of Region III, or (3) the prices set forth in the following schedule, whichever are greater:

Type of delivery	Container	Size	Adjusted maximum price
Retail	Glass or other	1 gallon or multiples thereof	51¢ per gallon.
	Glass or paper	½ gallon or multiples thereof	27¢ per half-gallon.
		1 quart or multiples thereof	14¢ per quart.
		1 pint	8¢ per pint.
		½ pint	6¢ per half-pint.
Wholesale	Glass or other	1 gallon or multiples thereof	46¢ per gallon.
	Glass or paper	½ gallon or multiples thereof	23¢ per half-gallon.
		1 quart or multiples thereof	12¢ per quart.
		1 pint	7¢ per pint.
		½ pint	3¾¢ per half-pint.

This amendment shall become effective February 5, 1946.

Issued this 5th day of February 1946.

E. C. TURNEY,
Acting Regional Administrator.

Approved: February 1, 1946.

T. J. STITTS,
Director, Dairy Branch, Production and Marketing Administration, U. S. Department of Agriculture.

[F. R. Doc. 46-2070; Filed, Feb. 5, 1946; 4:47 p. m.]

[Region III Order G-37 Under MPR 329, Amdt. 3]

FLUID MILK IN INDIANA

For the reasons set forth in an opinion accompanying this order and under the authority vested in the Regional Administrator of Region III of the Office of Price Administration by § 1351.408 (b) of Maximum Price Regulation No. 329; *It is hereby ordered,* That:

(a) Section (a) of Order No. G-37 under Maximum Price Regulation No. 329—Purchases of Milk from Producers for Resale as Fluid Milk—Adjustment of the Maximum Price Milk Distributors may Pay Producers in Certain Designated Areas in the State of Indiana—is hereby amended to read as follows:

(a) Any milk distributor in the Counties of Bartholomew, Benton, Blackford, Brown, Carroll, Clay, Crawford, Daviess, Dearborn, Decatur, Delaware, Franklin, Fountain, Gibson, Greene, Hamilton, Hancock, Harrison, Hendricks, Henry, Jackson, Jefferson, Jennings, Knox, Lawrence, Madison, Martin, Monroe, Morgan, Newton, Ohio, Orange, Owen, Parke, Perry, Pike, Posey, Pulaski, Putnam, Ripley, Rush, Scott, Shelby, Spencer, Starke, Sullivan, Switzerland, Tippecanoe, Tipton, Union, Vermillion, Wabash, Warren, and White in the State of Indiana, may pay to producers for "milk" an amount not to exceed $3.20 per cwt., f. o. b. plant for milk of 4% butterfat content, plus 5 cents for each one tenth of 1% variation over 4% and minus 5 cents for each one tenth of 1% butterfat variation under 4%; *Provided, however,* That such milk distributors shall be subject to the express restrictions of § 1351.402 (b), (c), (d), (e) and (f) of Maximum Price Regulation No. 329, except as is permitted in Order No. G-33 under Maximum Price Regulation No. 329.

(b) Section (d) of the above order is hereby amended to read as follows:

(d) Any milk distributor in the Counties of Allen, Boone, Cass, Clinton, Dubois, Grant, Elkhart, Fayette, Fulton, Huntington, Jasper, Johnson, Kosciusko, Marshall, Miami, Porter, Venderburg, Wayne, and Warrick in the State of Indiana may pay to producers for "milk" an amount not to exceed $3.45 per cwt., f. o. b. plant for milk of 4% butterfat content, plus 5 cents for each one tenth of 1% variation over 4% and minus 5 cents

for each one tenth of 1% butterfat variation under 4% provided, however, that such milk distributors shall be subject to the express restrictions of § 1351.402 (b), (c), (d), (e), and (f) of Maximum Price Regulation No. 329 except as is permitted in Order No. G–33 under Maximum Price Regulation No. 329.

This amendment shall become effective February 5, 1946.

Issued February 5, 1946.

E. C. TURNEY,
Acting Regional Administrator.

Approved: February 1, 1946.

T. G. STITTS,
Director, Dairy Branch, Production and Marketing Administration, U. S. Department of Agriculture.

[F. R. Doc. 46–2069; Filed, Feb. 5, 1946; 4:47 p. m.]

[Region VII 2d Rev. Order G–7 Under SR 15, Amdt. 9]

FLUID MILK IN COLORADO

Pursuant to the Emergency Price Control Act of 1942, as amended, the Stabilization Act of 1942, as amended, and Supplementary Regulation 15 to the General Maximum Price Regulation, and for the reasons set forth in the accompanying opinion, this Amendment No. 9 to Second Revised Order No. G–7, as compiled to include Amendment No. 8, is issued.

1. Subparagraph (3) of paragraph (c), "Area 1", is hereby amended to read as follows:

(3) "Area 1" means all that area in the State of Colorado contained within the Counties of Baca, Bent, Boulder, Clear Creek, Delta (except the communities of Paonia and Bowie), Fremont, Gilpin, Hinsdale, Las Animas, Larimer, Mesa, Mineral, Moffat, Montrose (except that portion contained in Area 4), Otero, Ouray, Pitkin, Prowers, Summit (except that portion contained in Area 6), the municipality of Crested Butte in Gunnison County and a distance of five miles beyond the corporate limits thereof at all points; the Towns of Oak Creek, Phippsburg, Pinnacle, Haybro, Routt, and Oak Hills in Routt County, and the mining camp of Climax in Lake County.

2. Subparagraph (4) of paragraph (c), "Area 2", is hereby amended to read as follows:

(4) "Area 2" means all that area in the State of Colorado contained within the County of Alamosa (except the municipality of Alamosa and a distance of five miles beyond the corporate limits thereof at all points), Chaffee, Cheyenne, Conejos, Costilla, Crowley (except the Town of Ordway and a distance of three miles beyond the corporate limits thereof at all points), Custer, Dolores (except that portion contained in Area 7), Eagle (except that portion contained in Area 6), Elbert, El Paso (except the Colorado Springs Area), Garfield, Grand (except the Town of Grand Lake and a distance of five miles beyond the corporate limits thereof at all points), Gunnison (except that portion contained in Area 6), Jackson, Kit Carson, Kiowa, Lincoln, Morgan, Park, Phillips, Pueblo (except the Pueblo Area, and except the hamlet of Rye in Pueblo County and all that area lying within a radius of five miles thereof), Rio Blanca, Rio Grande (except the municipality of Del Norte), Routt (except that portion contained in Area 1), Saguache, San Miguel (except that portion contained in Area 4), Washington, and Yuma.

3. Subparagraph (8) of paragraph (c), "Area 6", is hereby amended to read as follows:

(8) "Area 6" means all that area in the State of Colorado contained within the Camp Hale Military Reservation; and the communities of Paonia and Bowie in the County of Delta, and the coal mining camps of Somerset and Oliver in the County of Gunnison.

Effective date. This Amendment No. 9 shall become effective on the 5th day of February 1946.

Issued this 5th day of February 1946.

RICHARD Y. BATTERTON,
Regional Administrator.

Approved: February 1, 1946.

T. G. STITTS,
Director, Dairy Branch, Production and Marketing Administration, U. S. Department of Agriculture.

[F. R. Doc. 46–2068; Filed, Feb. 5, 1946; 4:47 p. m.]

LIST OF COMMUNITY CEILING PRICE ORDERS

The following orders under Revised General Order 51 were filed with the Division of the Federal Register January 31, 1946.

Region II

Camden Order 24, Amendment 2, covering dry groceries in certain areas in New Jersey. Filed 9:51 a. m.

New York Order 14–F, covering fresh fruits and vegetables in the five Boroughs of New York City. Filed 12:01 p. m.

New York Order 15–F, covering fresh fruits and vegetables in all of Nassau and Westchester counties, New York. Filed 12:01 p. m.

New York Order 16–F, covering fresh fruits and vegetables in the counties of Dutchess, Orange, Putnam, Rockland, Suffolk and Ulster, New York. Filed 12:00 m.

Philadelphia Order 3–C, Amendment 1, covering poultry in Philadelphia, Delaware and Montgomery counties, Pennsylvania, and Camden county, New Jersey. Filed 12:00 m.

Syracuse Order 6–F, Amendment 1, covering fresh fruits and vegetables in certain areas in New York. Filed 9:37 a. m.

Region III

Charleston Order 7–F, Amendment 47, covering fresh fruits and vegetables in Lincoln, Logan, Mingo and Wayne counties except the City of Huntington in Wayne county, West Virginia. Filed 9:37 a. m.

Charleston Order 9–F, Amendment 47, covering fresh fruits and vegetables in Cabell county and the city of Huntington in Wayne County, West Virginia. Filed 9:37 a. m.

Charleston Order 10–F, Amendment 47, covering fresh fruits and vegetables in certain counties in West Virginia. Filed 9:37 a. m.

Charleston Order 11–F, Amendment 47, covering fresh fruits and vegetables in Berkeley, Jefferson and Morgan counties, West Virginia. Filed 9:38 a. m.

Charleston Order 15–F, Amendment 44, covering fresh fruits and vegetables in certain counties in West Virginia. Filed 9:38 a. m.

Charleston Order 16–F, Amendment 44, covering fresh fruits and vegetables in Boone, Fayette, Kanawha, Putnam and Raleigh counties, West Virginia. Filed 9:38 a. m.

Charleston Order 17–F, Amendment 43, covering fresh fruits and vegetables in certain counties in West Virginia. Filed 9:39 a. m.

Louisville Order 3–C, Amendment 6, covering poultry in Jefferson county, Kentucky and Clark and Floyd counties, Indiana. Filed 9:39 a. m.

Region IV

Atlanta Order 12–F, Amendment 12, covering fresh fruits and vegetables in the Atlanta-Decatur Metropolitan Trade area. Filed 9:40 a. m.

Atlanta Order 13–F, Amendment 12, covering fresh fruits and vegetables in certain counties outside of the Atlanta-Decatur Trade area. Filed 9:40 a. m.

Atlanta Order 14–F, Amendment 12, covering fresh fruits and vegetables in certain counties in Georgia. Filed 9:40 a. m.

Atlanta Order 15–F, Amendment 12, covering fresh fruits and vegetables in Bibb and Muscogee counties, Georgia, and Phenix City, Alabama. Filed 9:40 a. m.

Birmingham Order 1–C, Amendment 17, covering poultry in certain areas in Alabama. Filed 9:40 a. m.

Region V

Kansas City Order 9–C and 11–O, Amendment 6, covering poultry and eggs in counties of Johnson and Wyandotte, Kansas; City of North Kansas City, Jackson and Buchanan counties, Missouri. Filed 12:02 p. m.

New Orleans Order 3–F, Amendment 27, covering fresh fruits and vegetables in the state of Louisiana. Parishes of Orleans, St. Bernard and Jefferson except Grand Isle. Filed 12:01 p. m.

New Orleans Order 5–F, Amendment 18, covering fresh fruits and vegetables in the cities of Shreveport, Bossier City, Monroe and West Monroe. Filed 12:01 p. m.

Wichita Order 33, Amendment 5, covering dry groceries sold by Groups 3 and 4 stores. Filed 11:57 a. m.

Wichita Order 1–C, covering poultry. Filed 11:58 a. m.

Region VI

Milwaukee Order 9–F, Amendment 44, covering fresh fruits and vegetables in Sheboygan and Fond du Lac counties, Wisconsin. Filed 9:36 a. m.

Milwaukee Order 11–F, Amendment 36, covering fresh fruits and vegetables in Milwaukee county, cities of Racine

and Kenosha, Wisconsin. Filed 9:36 a. m.

Milwaukee Order 12–F, Amendment 17, covering fresh fruits and vegetables in the cities of La Crosse and Sparta, Wisconsin. Filed 9:36 a. m.

Milwaukee Order 1–O, Amendment 9, covering eggs in Milwaukee county, Wisconsin. Filed 9:33 a. m.

Omaha Order 15–F, Amendment 2, covering fresh fruits and vegetables in certain counties in Nebraska and the city of Council Bluffs in Iowa. Filed 9:15 a. m.

Omaha Order 16–F, Amendment 2, covering fresh fruits and vegetables in certain counties in Nebraska. Filed 9:52 a. m.

Omaha Order 17–F, Amendment 2, covering fresh fruits and vegetables in certain counties in Nebraska. Filed 9:52 a. m.

Springfield Order 13–F, Amendment 45, covering fresh fruits and vegetables in the city of Springfield, and Sangamon county, Illinois. Filed 9:52 a. m.

Springfield Order 14–F, Amendment 46, covering fresh fruits and vegetables in the city of East St. Louis, Illinois and the Townships of Centerville, Sugar Loaf, Canteen, and Stites in St. Clair county, Illinois. Filed 9:52 a. m.

Springfield Order 15–F, Amendment 45, covering fresh fruits and vegetables in the city of Decatur, Macon county, Illinois. Filed 9:53 a. m.

Springfield Order 22–F, Amendment 12, covering fresh fruits and vegetables in the city of Quincy, Adams county, Illinois. Filed 9:53 a. m.

Region VII

Salt Lake City Order 11–F, Amendments 28, 29, and 30, covering fresh fruits and vegetables in certain counties in Utah. Filed 12:01 p. m.

Salt Lake City Order 12, Amendment 30, covering fresh fruits and vegetables in certain counties in Utah with certain exceptions. Filed 12:00 m.

Region VIII

Los Angeles Order 8–F, Amendment 13, covering fresh fruits and vegetables in the San Diego Metropolitan area. Filed 11:59 a. m.

Los Angeles Order 9–F, Amendment 12, covering fresh fruits and vegetables in San Diego county with the exception of certain cities in the Metropolitan area. Filed 11:59 a. m.

Los Angeles Order 10–F, Amendment 12, covering fresh fruits and vegetables in Imperial county, excluding Bard and Winterhaven. Filed 11:58 a. m.

Los Angeles Order L. A. 3–O, Amendment 1, covering eggs in the San Bernardino, Santa Barbara, Ventura, San Diego, and Imperial counties. Filed 11:58 a. m.

Los Angeles Order L. A. 4–O, Amendment 1, covering eggs in San Luis Obispo and Kern counties. Filed 11:58 a. m.

Phoenix Order 9–F, Amendment 26, covering fresh fruits and vegetables in the Phoenix area. Filed 11:59 a. m.

Phoenix Order 10–F, Amendment 22, covering fresh fruits and vegetables in the Tucson area. Filed 11:59 a. m.

Phoenix Order 11–F, Amendment 21, covering fresh fruits and vegetables in the Cochise area. Filed 11:59 a. m.

Phoenix Order 2–C, Amendment 1 to Appendix A, covering poultry in certain areas in Arizona.

Copies of any of these orders may be obtained from the OPA Office in the designated city.

ERVIN H. POLLACK,
Secretary.

[F. R. Doc. 46–2013; Filed, Feb. 4, 1946; 4:36 p. m.]

LIST OF COMMUNITY CEILING PRICE ORDERS

The following orders under Revised General Order 51 were filed with the Division of the Federal Register January 31, 1946.

Region I

Montpelier Order 1–C, Amendment 7, covering poultry in the entire State of Vermont. Filed 9:46 a. m.

Providence Order 3–F, Amendment 39, covering fresh fruits and vegetables in the Providence, Rhode Island Metropolitan area. Filed 9:45 a. m.

Region II

Camden Order 23, Amendment 2, covering dry groceries in certain areas in New Jersey. Filed 9:46 a. m.

Camden Order 25, Amendment 2, covering dry groceries in certain counties in New Jersey. Filed 9:42 a. m.

Camden Order 6–W, Amendment 2, covering dry groceries in certain counties in New Jersey. Filed 9:42 a. m.

District of Columbia Order 6–F, covering fresh fruits and vegetables in the Washington, D. C., area. Filed 9:41 a. m.

District of Columbia Order 7–C, Amendment 1, covering poultry in the Washington, D. C., area. Filed 9:41 a. m.

Region IV

Jackson Order 1–O, Amendment 6, covering eggs in the Mississippi area. Filed 9:44 a. m.

Memphis Order 8–F, Amendment 14, covering fresh fruits and vegetables in the city of Memphis and the county of Shelby, Tennessee. Filed 9:41 a. m.

Region V

New Orleans Order 6–F, Amendment 18, covering fresh fruits and vegetables in certain areas in Louisiana. Filed 9:55 a. m.

New Orleans Order 33–C, Amendment 7, covering poultry in the city of New Orleans, Algiers, Gretna, Metairie, McDonoughville, Arabi and Chalmette, Louisiana. Filed 9:55 a. m.

New Orleans Order 7–O, Amendment 7, covering eggs. Filed 9:55 a. m.

Wichita Order 15–F, Amendment 11, covering fresh fruits and vegetables in the counties of Chase, Coffey, Greenwood, Lyon, Marion and Morris, Kansas. Filed 10:01 a. m.

Wichita Order 16–F, Amendment 11, covering fresh fruits and vegetables in Reno county, Kansas. Filed 10:01 a. m.

Wichita Order 5, Amendments 31 and 32, covering dry groceries. Filed 11:58 and 11:57 a. m.

Region VI

Twin Cities Orders 1–D and 2–D, covering butter and cheese in certain counties in the Twin Cities area. Filed 9:53 a. m.

Region VII

Denver Order 4–F, Amendment 30, covering fresh fruits and vegetables in the Denver area. Filed 9:53 a. m.

Denver Order 5–F, Amendment 30, covering fresh fruits and vegetables in the Pueblo area. Filed 9:54 a. m.

Denver Order 6–F, Amendment 30, covering fresh fruits and vegetables in the Colorado Springs and Manitou area. Filed 9:54 a. m.

Denver Order 7–F, Amendment 30, covering fresh fruits and vegetables in the Boulder, Fort Collins, Greeley area. Filed 9:54 a. m.

Denver Order 93, Amendment 5A, covering dry groceries sold by Group 4 stores in the Group 4 area No. 1. Filed 9:54 a. m.

Denver Order 94, Amendment 6A, covering dry groceries sold by Group 4 stores in the Group 4 area No. 2. Filed 9:54 a. m.

Salt Lake City Order 12–F, Amendments 28 and 29, covering fresh fruits and vegetables in Cache, Carbon and Emery counties. Filed 9:42 and 9:43 a. m.

Salt Lake City Order 13–F, Amendments 28 and 29, covering fresh fruits and vegetables in Rich, and Daggett counties. Filed 9:43 a. m.

Region VIII

Nevada Order 11–F, Amendment 15, covering fresh fruits and vegetables in Reno and Sparks, Nevada. Filed 9:41 a. m.

Nevada Order 15–F, Amendment 15, covering fresh fruits and vegetables in Blue Diamond, Henderson, Las Vegas, North Las Vegas, Pittman, Sloan and Whitney, Nevada. Filed 9:41 a. m.

San Francisco Order 14, Amendment 6, covering dry groceries in the counties of Alameda, Contra Costa, Marin, San Mateo and the city and county of San Francisco. Filed 9:44 a. m.

San Francisco Order 22, Amendment 4, covering dry groceries in certain areas in California. Filed 9:44 a. m.

San Francisco Order 24, Amendment 1, covering dry groceries in the City of Fresno. Filed 9:44 a. m.

San Francisco Order 25, Amendment 1, covering dry groceries in certain areas in California. Filed 9:44 a. m.

San Francisco Order 2–W, Amendment 1, covering dry groceries in the City of Fresno. Filed 9:45 a. m.

Seattle Order 16–F, Amendment 24, covering fresh fruits and vegetables in Seattle, Tacoma, and Bremerton, Washington. Filed 9:45 a. m.

Seattle Order 17–F, Amendment 21, covering fresh fruits and vegetables in Bellingham and Everett, Washington. Filed 9:45 a. m.

Seattle Order 18–F, Amendment 21, covering fresh fruits and vegetables in Olympia, Aberdeen, Hoquiam, Centralia and Chehalis, Washington. Filed 9:45 a. m.

Seattle Order 19–F, Amendment 20, covering fresh fruits and vegetables in certain areas in Washington. Filed 9:45 a. m.

Copies of any of these orders may be obtained from the OPA Office in the designated city.

ERVIN H. POLLACK,
Secretary.

[F. R. Doc. 46-2015; Filed, Feb. 4, 1946; 4:36 p. m.]

WAR SHIPPING ADMINISTRATION.

"INSPECTION BARGE NO. 1"

DETERMINATION OF OWNERSHIP

Notice of determination by War Shipping Administrator pursuant to section 3 (b) of the act approved March 24, 1943 (Public Law 17, 78th Congress).

Whereas on May 20, 1945, title to the vessel "Inspection Barge No. 1" (168645) (including all spare parts, appurtenances and equipment) was requisitioned pursuant to section 902 of the Merchant Marine Act, 1936, as amended; and

Whereas section 3 (b) of the act approved March 24, 1943 (Public Law 17, 78th Congress), provides in part as follows:

(b) The Administrator, War Shipping Administration, may determine at any time prior to the payment in full or deposit in full with the Treasurer of the United States, or the payment or deposit of 75 per centum, or just compensation therefor, that the ownership of any vessel (the title to which has been requisitioned pursuant to section 902 of the Merchant Marine Act, 1936, as amended, or the act of June 6, 1941, (Public Law 101, Seventy-seventh Congress)), is not required by the United States, and after such determination has been made and notice thereof has been published in the FEDERAL REGISTER, the use rather than the title to such vessel shall be deemed to have been requisitioned for all purposes as of the date of the original taking: *Provided, however,* That no such determination shall be made with respect to any vessel after the date of delivery of such vessel pursuant to title requisition except with the consent of the owner. * * *;

and

Whereas no portion of just compensation for the said vessel has been paid or deposited with the Treasurer of the United States; and

Whereas the ownership of the said vessel, spare parts, appurtenances and equipment is not required by the United States; and

Whereas the former owner of the vessel has consented to this determination and to the return of the vessel and the conversion of the requisition of title therein to a requisition of use thereof in accordance with the above-quoted provision of law;

Now therefore, I, Emory S. Land, Administrator, War Shipping Administration, acting pursuant to the above-quoted provisions of law, do hereby determine that the ownership of said vessel, spare parts, appurtenances and equipment is not required by the United States, and that, from and after the date of publication hereof in the FEDERAL REGISTER, the use rather than title thereto shall be deemed to have been requisitioned, for all purposes, as of the date of the original taking.

Dated: February 5, 1946.

[SEAL] GRANVILLE CONWAY,
Acting Administrator.

[F. R. Doc. 46-2085; Filed, Feb. 6, 1946; 10:53 a. m.]